

1 developed down the road for either residential or commercial
2 uses.

3 MS. BARKHURST: Thank you. We'll explore those
4 ideas.

5 CHAIRWOMAN CHAVEZ: Thank you. Any other
6 questions? Okay. With that, I'm going to close the floor.
7 Ready for a motion.

8 COMMISSIONER NELSON: I move for continuance in
9 the -- in the matter of SPR2026-003, and I move it to be 90
10 days.

11 CHAIRWOMAN CHAVEZ: We have a motion. And a
12 second?

13 VICE CHAIR GUERRERO: Second.

14 COMMISSIONER NELSON: And I would like to make a
15 point. This is not a deferral. It's a continuance. That
16 means that every bit of testimony that happened today on
17 this item are in the record and part of it. So we don't go
18 over the same territory twice. Okay? People will be able
19 to speak again, but we're not going to have it be --
20 everything is in the record. Okay? So we're just going to
21 add to it.

22 CHAIRWOMAN CHAVEZ: Okay. We have a motion and a
23 second. All in favor for a 90-day continuance please say
24 aye.

25 COMMISSION: Aye.

1 CHAIRWOMAN CHAVEZ: Any opposed? Okay. Motion
2 carries.

3 We are going to take -- before we get started on the
4 next case -- before we get started on the next case, we're
5 going to take a ten-minute break, and we'll be back.

6 (Note: Hearing in recess at 10:47 a.m.

7 and reconvened at 11:02 a.m.)

8 CHAIRWOMAN CHAVEZ: Okay. We have an announcement
9 please. Hello. So we evidently have an issue with the fire
10 marshal and the occupancy in this chamber. So we need a
11 little more time to figure that out. Mr. Hamm and his team
12 are going to figure out -- there's a room off to the side.
13 We'll let you know what we need to do next. So we're going
14 to not reconvene right now, and as soon as they're ready,
15 they will let us know.

16 (Note: Hearing in recess at 11:04 a.m.

17 and reconvened at 11:14 a.m.)

18 CHAIRWOMAN CHAVEZ: Okay. Thank you for that
19 cooperation. Apologize for the delay. We are on agenda
20 item no. 10, the Board of Adjustment. I just want to remind
21 folks what the -- what the agenda is on this; 15 minutes for
22 each the appellant and the applicant, 5 minutes for our
23 staff, 1 minute for public testimony, 2 minutes to close.
24 Okay? All right. And because we've moved some folks over
25 to the other room, we're going to call five -- when it comes

1 time to public testimony, we're going to call five people up
2 at a time to allow -- if they're in that other room, to come
3 over, stand up against this wall. Okay.

4 All right. Ms. Gould.

5 MS. GOULD: Hello. Okay. Now we've got it.
6 Thank you, Madam Chair and Commissioners. I'm Maggie Gould.
7 I'm the County's Zoning Administrator and also the hearing
8 officer for our administrative zoning hearings.

9 As you said, this is BA2026-001; also, ZA2026-0024.
10 Pat Hauser appeals the Zoning Administrator's decision to
11 approve a conditional use to allow a church and incidental
12 facilities for a mosque and parking areas, landscaping, and
13 fencing on tract 208B, MRGCD Map 23, located at 9600 Second
14 Street, Northwest, zoned A-1 and containing approximately
15 3.9 acres.

16 The CPC is acting in its role as Board of Adjustment
17 for this matter, and the Board of Adjustment has duties and
18 powers, which include to hear and determine appeals where it
19 is alleged that there is error or abuse of discretion or a
20 requirement in any determination made by the Zoning
21 Administrator, or -- and to hear and determine appeals from
22 the rulings, decisions, and determinations of the Zoning
23 Administrator granting or denying applications for variation
24 from requirements of this ordinance or granting or denying
25 applications for conditional use permits authorized by this

1 ordinance.

2 Upon hearing of such appeals, the Board of Adjustment
3 may affirm, change, or modify the ruling or the decision or
4 determination appealed from or in lieu, thereof, make such
5 other additional determination as it deems proper in these
6 premises, and so what this means, as always your role as the
7 Commission, you may deny the appeal and uphold the decision
8 of the Zoning Administrator. You may grant the appeal and
9 overturn the administrative decision, or you may modify the
10 decision broadly, and that's, as with any other appeal,
11 that's -- that's your place here.

12 The other thing is that we have received, as you've
13 gotten, we've received many, many comments on this case kind
14 of across the spectrum. We have two comment deadlines.
15 You've gotten the materials that we had at those two
16 deadlines. We did receive additional comments after the
17 deadline that the Commission may choose to accept. We do
18 have copies for you that can be entered into the record,
19 and, again, that is the pleasure of the Commission.

20 CHAIRWOMAN CHAVEZ: Yes. Please admit them to the
21 record.

22 MS. GOULD: Okay. Here -- here we have copies for
23 you now.

24 Okay. So this area is developed with a mix of
25 residential, commercial, and industrial uses. There are

1 multiple special use permits including a plant nursery,
2 trailer court, sales of yard and garden equipment, a
3 contractor's yard. There's A-1, our rural agricultural
4 zone; M-1, light manufacturing to the north; also, our C-1,
5 neighborhood commercial; and A-1 to the south. R-1 and A-1,
6 again, residential districts to the east and west, and the
7 site contains a home that would be demolished for this
8 project.

9 This request is for conditional use. Conditional uses
10 are uses that are expected to occur in the underlying zone
11 but require review for compatibility, and the conditional
12 use is not a zone change. The property retains its
13 underlying zoning, and so the conditional use criteria is
14 that the proposed site is adequate for the use, that the
15 proposed use can be developed so that undue traffic and
16 congestion or hazard will not be created, and the proposed
17 use will not have an adverse effect on the neighborhood or
18 seriously conflict with the character of the area.

19 And so this request was initially heard by the ZA at
20 our March 20th hearing. The applicant stated that the site
21 would be large enough; that there would be sufficient
22 parking, landscaping, and open space. He stated that the --
23 this could be a positive addition to the area and provide a
24 transition between the commercial uses along Alameda and the
25 residential uses going north.

1 And so then this proposed building included worship
2 areas, class rooms, kitchen, storage, library and gym in a
3 two-story approximately 50,000 square foot building. This
4 case was deferred to -- or continued, rather, to our April
5 8th hearing to allow time for further discussions about
6 traffic and about the layout itself including landscaping.

7 So, again, at the April hearing, there was sort of more
8 information about the site plan. We had better landscaping
9 buffers. We had had the additional discussions with our
10 traffic engineering. We did have speakers at the April 8th
11 meeting come to talk about their concerns including traffic,
12 the size of the building, and the possible impact on the
13 area, especially including that the intersection of Second
14 and Alameda does get congested.

15 However, the ZA found that this request met conditional
16 use criteria, because the site was large enough to
17 accommodate parking. It met the required setbacks and could
18 be developed without a variance. And so this -- this was
19 appealed timely. The appellant, Mr. Hauser, was present at
20 the hearing and did express his concerns.

21 And so as this process has gone on, we've gotten
22 updated materials from both the appellant and the applicant,
23 and we got some clarifying materials from the applicant,
24 because on our end, we were really trying to pin down -- so
25 part of what happens with the -- the conditional use

1 approval is more about the use and less about the layout,
2 and at building permit, things like traffic studies,
3 drainage, all of those things occur as kind of a second
4 part. And so because of the concerns about traffic, because
5 of all of these community concerns, we wanted a little more
6 information, and so we got some additional materials from
7 the applicant, and in looking at those materials, we started
8 to look at the proposed classrooms and school use and felt
9 like the magnitude of that rose beyond what would be an
10 incidental use and would be kind of a conditional use on its
11 own.

12 And so our concern about that was there is a process
13 for looking at kind of those uses that hadn't occurred, and
14 so the -- that school use would need to be remanded back to
15 the ZA for consideration as its own particular conditional
16 use permit. And so in discussions with the applicant, the
17 applicant felt that that was not -- that it would be easier
18 to simply just remove the discussion of any kind of school
19 and classroom. And so we did receive from the applicant
20 some -- some supplemental materials that I would like to
21 show and then, at the pleasure of the Commission, enter into
22 the record. And then when it is during the applicant's
23 time, the applicant can further discuss this.

24 And so what we're looking at then is the site plan,
25 which is similar to the original site plan with very few

1 changes on the ground -- and I am so sorry -- very few
2 changes on the ground floor. The ground floor is still
3 showing as that approximately 43,000 square foot footprint
4 with our parking and landscaping areas. What -- the
5 clarification that has been provided is in this layout of
6 the second floor.

7 And one of the things that happens is sometimes when
8 we're looking at conditional use permits and even sometimes
9 with special use permits, people are still working. They
10 know the parking. They know kind of the -- the bits of the
11 development that will get us through, but they're still
12 working on program, and so what this site plan shows, rather
13 than the original site plan, is removing this section from
14 the proposed square footage on the second floor.

15 This is a basketball court that is open floor to
16 ceiling. This is a worship area that is also open, and so
17 we're looking at reduced square footage, and I'm going to
18 leave that bit to the applicant to walk you through the --
19 the site plan.

20 And so if the Commission would like to make a motion to
21 accept these documents into the record -- and I can try to
22 blow them up for you a little bit more.

23 COMMISSIONER NELSON: So moved.

24 CHAIRWOMAN CHAVEZ: We have a motion. We have a
25 second?

1 COMMISSIONER SILVA: Second.

2 CHAIRWOMAN CHAVEZ: All in favor?

3 COMMISSION: Aye.

4 MS. GOULD: Okay. And so with that I will stand
5 for any questions, and then we can move on to the appellant,
6 the applicant, and our -- our large amount of public comment
7 that we have today.

8 CHAIRWOMAN CHAVEZ: Any questions for Ms. Gould?
9 Nope.

10 Okay. Thank you.

11 MS. GOULD: Let me just leave up the --

12 CHAIRWOMAN CHAVEZ: So we're going to hear from
13 the appellant first; is that correct?

14 COMMISSIONER NELSON: I don't know who we're going
15 to hear from.

16 CHAIRWOMAN CHAVEZ: The applicant first.

17 MR. HAMM: Yes, please.

18 CHAIRWOMAN CHAVEZ: Okay. If we can have the
19 applicant.

20 MS. GOULD: Mr. Tahat.

21 MS. LOPEZ: Yes, Mr. Tahat is joining on line, and
22 I see him, and he would be the next speaker, please.

23 CHAIRWOMAN CHAVEZ: Okay. Please raise your right
24 hand. Swear to tell the truth? Name And address for the
25 record.

1 MR. TAHAT: I swear to tell the truth. This is
2 Joseph Tahat. My address is 12300 Del Rey Avenue,
3 Northeast, Albuquerque, and the zip code, 87122.

4 CHAIRWOMAN CHAVEZ: Okay. Thank you. Please
5 proceed. You have 15 minutes.

6 MR. TAHAT: Okay. So this application is for
7 Islamic center. Islamic center proposed to have the mosque
8 and incidental facility, the gym, the basketball, the other
9 room, and they would like to have a school. Despite
10 teaching in classes that incidental for any religious
11 facility, there is a complete school from preschool to high
12 school.

13 With the -- with the school, an engineer should expect
14 that there is some traffic associated with the school. So
15 after we hear the public and their comment about their
16 existing problem for the intersection on Second Street and
17 Alameda, the Albuquerque Islamic Center Board decided to
18 remove the school entirely from the project. So the
19 decision now from the -- just the board is going to be on
20 the mosque only and the facility associated with that,
21 without school. There is no school. There is no preschool
22 classes. There is no elementary school. There is no middle
23 school. There is no high school. This is just for
24 confirmation for everybody.

25 So this application started for two years, and it

1 granted an approval without any appeal, without any
2 opposition. And I appreciate that from everybody from the
3 community effort, Albuquerque Islamic Board and County of
4 Bernalillo, and even the neighbor, where many of them were
5 in favor for this project from the start until now.

6 This project has more than 3,100 supporter, verified
7 signature through on-line ap. They collected more than
8 1,000 support, verified signature within one day, 24 hour,
9 and within one week, they have more than 3,100 supporter for
10 -- for this project.

11 Because I know there is many comment from the public,
12 so I would like to explain something for them. First, yes,
13 we heard you. We hear that there is a problem. But what
14 you call problem, we call input as engineer. So the problem
15 is an input for me. I know there's traffic on Alameda. I
16 know there's traffic on Paseo Del Norte. There is traffic
17 on Montano, and these three streets are main streets connect
18 the east and west side of Albuquerque. This city is
19 expanding, and with expansion, there's traffic, and the
20 responsibility to solve the traffic problem is on all of us.
21 We have to share the responsibility to solve the problem.

22 One of the solution for the problem is the traffic
23 study. But who's going to do the traffic study? Let's say
24 -- now, without the school, there is no problem at all with
25 -- with the traffic, but let's say we need to do a traffic

1 study and this project is disallowed for some reason. Who's
2 going to do the traffic study? Who's going to solve the
3 problem?

4 Let us say it's approved. Then there is a traffic
5 study going to be generated that's for the school. It's not
6 in here. For today it's not in here. We are not voting on
7 that, but for -- for the traffic study, it's going to happen
8 with or without school to make sure that there's easy
9 traffic in there, and there's no problem, because the owner
10 of this project want their Islamic center and want that
11 place to expand. They have existing location on Menaul.
12 Menaul is also a main street in the City, and it's very
13 busy. It's commercial, has a lot of property there,
14 commercial property, and the owner of that location have a
15 problem with the parking lot in there. So they selected
16 this big location, this big lot, four acre -- it's almost
17 four acre -- to have a solution.

18 So everybody is looking for a solution. The one who
19 applied for this project want a solution, and the one who
20 opposing this project is looking for a solution, and the
21 solution will come through this project. This project is
22 the solution for all the problem. So I can mention like
23 some of the solution that this project will provide.

24 So the existing area have mixed use. There is
25 commercial. There is mobile home. There is light

1 industrial like the landscaping property, and they store
2 gravel. They store compost. They store many things.

3 So -- and that existing. So --

4 MR. HAMM: Madam Chair, it appears Mr. Tahat is
5 intending to share his screen. Just -- maybe we want to
6 pause a moment to see if we can get the document up that
7 he's referring to.

8 And Mr. Tahat, if you are intending to show a document
9 to us, we are only seeing you, just so you're aware.

10 MR. TAHAT: So let me have that document on my
11 computer, so I can share it.

12 MR. HAMM: And staff's also -- we'd be happy to
13 facilitate that if there's a document in the record that we
14 can show.

15 MR. TAHAT: So it's the written statement, page
16 no. 2, the neighboring residential benefit.

17 MS. GOULD: And then -- yeah. I believe so. If
18 -- Madam Chair, Commissioners, if we can confirm with
19 Mr. Tahat that this is the document that he -- he wanted on
20 the screen.

21 CHAIRWOMAN CHAVEZ: Sir?

22 MR. TAHAT: Yes.

23 CHAIRWOMAN CHAVEZ: Is this the correct document?

24 MR. TAHAT: So no. 3 is neighboring residential
25 benefit. So the first thing, the buffer zone. So the

1 current situation, so now everybody go there. We can see it
2 live there. So there is nothing between the commercial and
3 those single-family house, just this lot. The owner of this
4 lot suffered for year to sell his property just because of
5 the location. Mr. Chavez, the one who owned this land for
6 generation, he inherit this land generation after
7 generation. He was in favor for this project.

8 He came into the County, and he showed his support for
9 the project from the beginning. So it was his property for
10 a long time in the market during the low interest rate on
11 the mortgage in 2022 until 2024, and he couldn't sell it
12 site couldn't sell it. Why? Because adjacent to a nursery.
13 It's licensed. It's good business. I buy from there. It's
14 nice nursery. There is a gas station. It's the cheapest in
15 the City. There is a mechanic shop. They change oil, and
16 there's another three gas station there, convenience store.

17 But who want to live there? And what's the effect of
18 the neighbor, of those existing commercial thing? Those are
19 licensed. They are perfect business. There is no complaint
20 about the business. But what will save those neighbor,
21 those single-family house? What will save them from the
22 dust? What will save them from the air pollution? What
23 will save them from the car emission? What will save them
24 from the rodent, from the insect, from everything that
25 generate from compost, and the smell from the car shop and

1 the gas station? This project.

2 This project is a buffer. It's a real buffer. It's a
3 physical barrier to -- to -- to work like sound barrier and
4 windbreaker, dust breaker, insect breaker. It's a natural
5 barrier. Think about six feet wall, two walls, one next to
6 the commercial, one next to the residential, and the
7 building about 22 feet height in the middle. What would
8 happen to the sound? It's going to break and dissipate once
9 it hit the wall and once it hit the building. What will
10 happen to the insect? It will have physical barrier. The
11 rodent -- the, rodent it will have physical barrier before
12 it goes to -- to the residential.

13 So, now, let us look to the -- to the lot from the
14 street. The building is invisible (sic). The six feet
15 wall --

16 CHAIRWOMAN CHAVEZ: Sir, hold on. Hold on.

17 MS. GOULD: Yeah, and I'm sorry to interrupt.
18 Madam Chair, Commissioners. If -- if there are other things
19 that are in the record that we have access to, we can -- we
20 can bring those up, because it seems like for whatever
21 reason, Mr. Tahat is not able to share his screen.

22 MR. TAHAT: So there is another plan. It's called
23 "Visibility from Second Street." So this is exactly where
24 the location of the building will be, and this is the -- I
25 don't want to call it setback, but this is the distance

1 between the front wall and the building. It's about 270
2 some, and the building, I put at 26, but this will be
3 smaller than 26, but 26 is the highest allowable by the
4 zoning. We will not exceed that. So I draw 26 feet, and I
5 draw six-foot wall, and then there's a pedestrian, and there
6 is a car. Neither one can see the building. Neither one.

7 What can they see? They can see the wall. They can
8 see the trees above the wall, and they can see that there is
9 an open space. What's beyond that? So it's not unknowing
10 anymore, and anyway for anybody, neither for the pedestrian,
11 neither for the cars user or the drivers, and nobody can see
12 from Second Street unless they want to see it. They want to
13 jump over the wall, or they want to go through the gate and
14 see the building. Otherwise, it's invisible. Nobody can
15 see it.

16 So it -- it's shaping that buffer between the
17 commercial and the residential. It work to clean the air,
18 reduce the dust, reduce the insect and the rodent, because
19 they are physical barrier. They alleviate and dissipate the
20 sound, and the sound does not happen from Alameda only.
21 It's happen also from the train in the back. There is a
22 train, and it's noisy, to blow emission, black emission,
23 also. And so I don't see any problem in and any mismatch
24 with the neighborhood.

25 It's going to bring back the integrity of the location,

1 why it's -- now, it's mixed use, but it will bring back what
2 missing from that place, the open space, the -- that nature
3 of the agriculture, because you going to see the trees and
4 the wall only. You cannot see the building from the street,
5 and it going to play as a barrier and a real buffer,
6 physical buffer between the commercial and all of the
7 problem related to that.

8 So the Board decided to remove the school, not because
9 I see it's impossible, not because I see it's -- it's a
10 problem, just because I see there is a lot of opposition for
11 that, and we want to go with the people, because those are
12 our neighbor. Those are the residents of Albuquerque, the
13 City that we love. This is the people who gonna live with
14 us, share the road with us. So we want to still them, "Hey,
15 people, we hear you," but don't put the horse between the
16 cart -- or don't put the cart in front of the horse.

17 After this approval, there is -- the typically thing
18 that we did approval and we do the design. There is not
19 just the -- from what I see from the appellant, he mentioned
20 the -- the grading and the drainage. All of that has been
21 looked at by engineering eye. So there is a solution for
22 the drainage, and we have it, but because of the process
23 here, it goes by site plan only, and then the engineering
24 thing will come in just like item 6 in this meeting. They
25 have some engineering problem, but now, the road, they gonna

1 solve it, and exactly like this project, there is drainage
2 issue, and there is solution. Anything that the public call
3 problem, the engineer call input. So you see traffic. Yes,
4 I see it like you, exactly. I use that street, but I have a
5 problem, and I have an input. The problem is input for me.
6 And there is some -- many other problems that Mr. Pat Hauser
7 didn't mention. What is the trusses design? What is the
8 foundation design? What is the soil test? All of that have
9 been done. All of that been done. But the typical process
10 is just to apply, get the application, see if it feasible.
11 We can do this in -- on this land.

12 And -- and the approval letter mentioned all of that,
13 the approval letter -- the previous approval letter, the one
14 that Mr. Hauser appealed. It's mentioned the traffic. It's
15 mentioned the sufficient ingress and egress of the vehicle.
16 It mentioned all of that, and if -- if an engineer looked to
17 the site, it's very big. It's adequate to solve and
18 accommodate any solution to solve any problem, any
19 engineering problem coming down the road. So --

20 CHAIRWOMAN CHAVEZ: Sir, your time is up.

21 MR. TAHAT: So what you call problem, I call
22 input. What you are looking to solve, I'm looking to solve.
23 You are looking for a solution. I'm looking for a solution.

24 CHAIRWOMAN CHAVEZ: Sir? Mr. Tahat, your time is
25 up, sir.

1 MR. TAHAT: Okay. Thank you.

2 CHAIRWOMAN CHAVEZ: Thank you.

3 SPECTATOR: Madam Chair, I have a question.

4 CHAIRWOMAN CHAVEZ: Sir, we're not taking any
5 questions from the audience. At this moment in time, I'm
6 going to ask you to hold on your question. So if signed up
7 to speak, we'll hear you then, and I'm also going to ask for
8 you to hold any applause or any disruptions to this hearing.
9 Okay?

10 SPECTATOR: Yes, ma'am.

11 CHAIRWOMAN CHAVEZ: Thank you. Any questions from
12 the Commission? No. Not at this time. Okay. Thank you.

13 All right. Okay. So ready for the appellant. Yes,
14 sir. Raise your right hand. Swear to tell the truth?

15 MR. HAUSER: I do.

16 CHAIRWOMAN CHAVEZ: Name for the record.

17 MR. HAUSER: My name is Pat Hauser.

18 CHAIRWOMAN CHAVEZ: you have 15 minute, sir.

19 MR. HAUSER: Thank you very much, ma'am. I
20 appreciate it.

21 Couple of quick questions. I had requested 120-day
22 deferral/continuance on this. I did not see that mentioned
23 at the onset. And so that was one of my requests so that
24 there would be additional information available and did not
25 hear that mentioned in the opening comments, and also, have

1 documents for each of you that you can follow me on my
2 presentation. I thought that might be advantageous for you
3 to be able to do that.

4 Well, good morning, Madam Chair and Members of the
5 Board. Before I begin, I want to be truly clear that I and
6 those supporting this special use are not affiliated with
7 and we do not support any group or individual using this
8 case to promote antireligious rhetoric. That is not our
9 agenda, and it is not the agenda of the neighbors who joined
10 this appeal. The case is about traffic, safety,
11 infrastructure, zoning law, and planning policy. It's also
12 problematic that we've seen all of these changes being
13 submitted now by the applicant when we weren't aware of them
14 to start with.

15 I am the appellant in this case. I'm also speaking in
16 support of any related appeals and the written materials
17 submitted by other neighbors. We're asking you this morning
18 to uphold this appeal, because the Zoning Administrator
19 approved this prema- -- this permit prematurely and
20 inaccurately, and the applicant did not carry the burden
21 required by Section 24 of the Bernalillo County Zoning Code.

22 Before I go further, I want to make one clarification
23 for the Board. In this appeal there's a mistaken criterion
24 by me. I -- I was applying Resolution 116 Version, Section
25 24 of Bernalillo County code. Section 24 of the Bernalillo

1 County puts the burden on the applicant to prove three
2 things before a conditional use can be approved. First, the
3 site is adequate in size and shape to accommodate the use;
4 second, that the site can be developed so that undue
5 traffic, congestion, and hazards will not be created; third,
6 that the proposed use will have no adverse effect on the
7 neighborhood and not seriously conflict with the character
8 of the area.

9 The application materials say the same thing. They
10 require an adequate site plan -- it was just talked about
11 that he didn't have that -- showing all buildings,
12 structures, dimensions, and site conditions drawn to scale
13 and with enough clarity to convey the scope of the proposal.
14 This is supposed to be proven at the zoning stage. It's not
15 supposed to be guessed at now and fixed later. That is
16 actually where this case law matters. *Duke City Lumber*
17 tells you that the applicant carries the burden of proof and
18 that the approval must be -- rest on substantial evidence in
19 the record, not assumptions, not general statements and not
20 staff confidence that things can be worked out later.

21 *Battershell* tells you the testimony of the residents
22 about real traffic and neighborhood conditions is evidence
23 and must be weighed especially where there is -- technical
24 record is thin. *High Ridge Hinkle* tells you that you have
25 to look at the whole record, and that staff practices cannot

1 substitute for what the ordinance actually requires, and
2 *Dolan* matters, because it means the County cannot simply
3 approve now and later assume it can enforce one private
4 applicant to pay for a major off-site or regional fixes
5 unless conditions meet the laws roughly potentiality
6 standard. When you applies these principles to the three
7 required finding here, the approval falls apart.

8 Let me start with the first finding, site adequacy.
9 The Zoning Administrator says, the staff report, that, "The
10 site is adequate in size and shape, because the property is
11 3.9 acres and provides sufficient area to accommodate the
12 site features required by ordinance." And that no variances
13 were required. That it is conclusion of the Zoning
14 Administrator.

15 But when you look at the actual proof behind the
16 conclusion, the record is missing. What Section 24 requires
17 is that same staff report -- staff described the project as
18 having as first floor footprint of approximately 43,000
19 square feet and approximately 15,000 square feet on the
20 second floor. Yet, the applicant's own written statement
21 does not give those numbers. The applicant says only that
22 the building will be approximately 50,000 square feet, and
23 that it will be two-story structure.

24 The precise 43,000 and 15,000 numbers appear in the
25 staff report, but there is no separate engineering analysis

1 in the record showing how these numbers were derived, and no
2 integrated site capacity study providing that this footprint
3 together with parking, circulation, buffers, landscaping,
4 and drainage all fit on 3.9 acres. That matters because
5 *Duke City Lumber* says the burden is on the applicant. The
6 applicant cannot simply say the site is large enough and
7 then have staff fill in the rest by assumption.

8 The applicant's own written statement on adequacy is
9 broad and general. The applicant's own written statement on
10 adequacy is broad and -- excuse me, said -- it says 3.87
11 acres is ample space and compares it to three football
12 fields. That is not substantial evidence. That is all
13 ordinance required elements, fill in the parcel. And the
14 County's own conditions show that the layout was not
15 actually resolved.

16 One condition requires the applicant to coordinate with
17 Public Works to reduce asphalt and impervious surfaces and
18 to use depressed drainage. There is an alternate parking
19 surfaces. That means the County approved first and left key
20 design issues and design questions for later. Under *High*
21 *Ridge Hinkle*, which is not enough, because the ordinance
22 requires a real adequacy finding now based on whole record,
23 not hope Public Works can make this plan work later. Our
24 supplemental evidence shows why these matter.

25 Once you add the building footprint, required parking

1 and drive aisles, Alameda corridor buffers, and drainage,
2 the site appears either fully consumed or in default. Even
3 if the Board does not accept every square foot of our
4 calculations, the legal report remains the same. The
5 applicant did not prove adequacy, and the Zoning
6 Administrator approved anyway. Under *Duke City Lumber*,
7 which is not substantial evidence on criterion 1.

8 The approval was premature and inaccurate. The second
9 finding is traffic and safety, and this is clearest
10 violation of all. Section 24 requires proof that the site
11 can be developed so that undue traffic, congestion, and
12 hazards will not be created, but there is no
13 project-specific traffic impact study in the zoning record.

14 Public Works told the Zoning Administrator that a
15 traffic review would be required at building permit, and the
16 staff report says a traffic impact study will be required
17 later and road improvements could be required. That's not
18 proof. That is deferral.

19 Here I want to make another factual clarification. The
20 Murphy Express traffic study was not placed into the record
21 by zoning administration. It was provided by me as part of
22 our supplemental materials because the County did not put a
23 project specific traffic study into the file before
24 approving the permit. Why does this matter? Because
25 *Battershell* says that resident testimony about traffic

1 conditions is evidence that must be taken seriously. And
2 here, that testimony is backed up by the Murphy study. The
3 appellant supplied that. Residents in the record dispute
4 multiple light cycles and elevated Second extension
5 congestion, long cues, and emergency access concerns,
6 especially if there is an accident on any of the arterials.
7 This is a land-locked area only accessible from Second
8 Street and Alameda.

9 The Murphy duty (sic) shows failing turning movements,
10 severe delays, and physical constraints at the Alameda and
11 Second corridor. So when Zoning Administrator says that the
12 site can be developed without done traffic congestion or
13 hazards because off-street parking and access improvements
14 are expected and Public Works will review the traffic later,
15 that is not substantial evidence of under *Duke City Lumber*.
16 It is the opposite. It is an admission that the hard
17 traffic analysis was not done at the time of approval.

18 *High Ridge Hinkle* matters here, too, because it means
19 you cannot let an informal staff practice of "we manage
20 traffic later at building permit" replace the actual
21 requirements of Section 24 to make the traffic finding now.
22 If the ordinance says the applicant must prove no undue
23 congestion or hazards before the permit is granted, then the
24 County cannot reverse the sequence and say of approves now,
25 study later.

1 Then there's -- the *Dolan* matters because the staff
2 report says, "Road improvements could be required later,"
3 but the County cannot assume that if a later traffic impact
4 analysis shows major deficiencies, it can simply push the
5 cost of the broad off-site regional fixes into the
6 applicant. The law limits that. So approving now and
7 postponing a real traffic analysis does not reduce the legal
8 risk for the County. It increases it. That is why on
9 criterion 2, the permit was approved prematurely and without
10 proof of Section 24 requirements.

11 The third finding's neighborhood impact and character
12 of the area. The Zoning Administrator says the proposed use
13 will have no adverse effect on the neighborhood and will not
14 seriously conflict with the character of the area because
15 surrounding properties, including a mix of residential,
16 commercial, industrial uses and because Second Street is
17 being developed with mixed uses, but the finding leaves out
18 one of the most vital facts of the record. The site is
19 within the rural area of the Comprehensive Plan. I have
20 that right here and so does Ms. Lopez. I could show that to
21 you if needed.

22 Our submission shows that North Alameda is grid B16.
23 The County's own map designate this corridor as a rural, and
24 more urbanized and developing urban areas are concentrated
25 south of Alameda and further toward Albuquerque. The Zone

1 Atlas, A-1, R-1, and R-2 zone base north of Alameda with
2 more intense uses appearing only, scattered pockets of
3 special use permits, not a continuous commercial zone, as is
4 along Alameda.

5 That matters, because the Albuquerque/Bernalillo County
6 Comprehensive Plan here and the North Valley Area Plan are
7 part of the policy framework of understanding what
8 "character of the area" means. Here we're not saying those
9 plans override Section 24. We're saying they help define.
10 Section 24 should be applied in this particular corridor as
11 was talked about in the previous assessment on Mountain
12 View.

13 There's no meaningful proof that the Zoning
14 Administrator's approval this planning framework was
15 actually weighed rural. This is where *High Ridge Hinkle*
16 comes in again. Looking at the whole record means looking
17 not just at isolated nearby uses but the County's own
18 map-based use pattern. Those have been submitted. The
19 rural designation of special use permit history north of
20 Alameda and the transition towards pueblo lands, a large,
21 two-story, multiuse, high volume, institutional campus with
22 a school -- they said they're taking it away -- and a
23 daycare -- they're say they're taking it away -- component
24 at the edge of location is different from routine infill and
25 a fully urbanized corridor.

1 *Duke City Lumber* matters here, again, as well because
2 the applicant did not carry the burden of proof. The
3 applicant's own statement about character is mostly
4 generalized optimism that the use will harmonize, create
5 beauty, function as transition, and work with local
6 authorities on traffic. That is not substantial evidence.
7 That is -- a high-volume, large campus of this scale will
8 have no adverse effect on rural North Valley corridor and
9 exceeds capacity of the infrastructure of today.

10 So on criterion 3, the Zoning Administrator did not
11 meaningfully apply the Albuquerque/Bernalillo County
12 planning framework, did not grapple with the rural
13 designation, and did not support the no adverse effect
14 finding with substantial evidence. That, too, was premature
15 and inaccurate.

16 I also want to correct one of the other factual points
17 in the record of my earlier draft. The Zoning Administrator
18 did not impose a condition against off-street parking. The
19 staff report says the applicant intends to provide
20 off-street parking, and the finding says improvements are
21 expected. Our issue is not that park is prohibited. The
22 issue is that parking was assumed to solve problems that
23 were never actually analyzed at the zoning stage. So when
24 you step back, the same legal deficit runs through all three
25 findings.

1 On site adequacy, the Zoning Administrator relied on
2 square footage figures not clearly provided by the applicant
3 in that form and approved without a true site capacity
4 demonstration. Under *Duke City Lumber* and *High Ridge*
5 *Hinkle*, with not substantial evidence.

6 On traffic, the Zoning Administrator approved without a
7 project specific traffic import (sic) analysis, deferred the
8 challenging work to the building permit and ignored both
9 resident testimony and the Murphy study that I submitted.
10 Yet, it had to supply it under *Battershell*, *Duke City*
11 *Lumber*, and *High Ridge Hinkle*, which is not lawful proof.

12 On character, the Zoning Administrator treat this as a
13 generic mixed use area by failing to meaningfully address
14 the rural B16 designation and the Albuquerque/Bernalillo
15 County, North Valley Planning framework. Under *High Ridge*
16 *Hinkle* and *Duke City Lumber*, which is also not substantial
17 evidence, and under *Dolan*, the County should not put itself
18 in a position where it grants right now, discovers later
19 that the corridor cannot safely absorb the use and then
20 assumes it can solve that with the conditions that may not
21 be legally --

22 CHAIRWOMAN CHAVEZ: Mr. Hauser, your time is up,
23 sir.

24 MR. HAUSER: Thank you.

25 CHAIRWOMAN CHAVEZ: Thank you.

1 MR. HAUSER: I respect actually ask that this
2 project be denied based on fact and law.

3 CHAIRWOMAN CHAVEZ: Thank you, sir.

4 Any questions?

5 We respectfully request that you hold your applause.
6 I've asked that once. I won't ask again.

7 Okay. So we have folks signed up to speak. We're
8 going to call five names, again, at a time. Please line up
9 against this wall. We will swear you in all at the same
10 time. When you get to the podium, please state your name
11 for the record.

12 VICE CHAIR GUERRERO: All right. Madam Chair, we
13 first have Jonette Mayfield followed by John D. Murray
14 followed by Sally DeRadke followed by -- I believe that's
15 Hank Nguyen, and last, Eric Baca.

16 CHAIRWOMAN CHAVEZ: So we called your name.
17 Please line up in the order that your name was called, and
18 if you're in the other room, please come on over.

19 VICE CHAIR GUERRERO: So Jonette Mayfield here?

20 MS. DeRADKE: I'm Sally.

21 VICE CHAIR GUERRERO: Sally DeRadke? Okay. So,
22 first, we had Jonette. John D. Murray next, or go ahead,
23 Mr. Murray.

24 CHAIRWOMAN CHAVEZ: Mr. Murray, you want to come
25 to the podium, please?

1 MR. MURRAY: Certainly.

2 CHAIRWOMAN CHAVEZ: Thank you. And I'm gonna
3 just swear you all in at the same time. You-all raise your
4 right hand. Swear to tell the truth?

5 SPEAKERS: I do.

6 CHAIRWOMAN CHAVEZ: Okay. Please state your name
7 for the record.

8 MR. MURRAY: John D. Murray.

9 CHAIRWOMAN CHAVEZ: Okay. You have one minute,
10 sir.

11 MR. MURRAY: My name is John D. Murray. I reside
12 at 3424 Running Bird Place, Northwest, Albuquerque, near the
13 Petroglyphs. I do not live in the Rio -- near the proposed
14 mosque.

15 I served in the peace Corps and am familiar with the
16 mosque culture. I lived for almost 12 years near the
17 current Islamic Center. I believe my relationship with the
18 Muslim community has continued for the last 50 years, and I
19 believe that this mosque would be an asset to the community.

20 This is not to say that my relationships with my Muslim
21 friends and neighbors has always been copasetic.
22 Cross-cultural and interpersonal interactions can be
23 challenged at any time. Although I do not reside in the
24 North Valley, my experiences lead me to believe that the
25 relocation of a mosque would only benefit the neighborhood.

1 Thank you.

2 CHAIRWOMAN CHAVEZ: Thank you, sir. Go ahead.
3 Next.

4 VICE CHAIR GUERRERO: Sally DeRadke.

5 MS. DeRADKE: Hi, Sally DeRadke, 5905 Pauline
6 Avenue. I live in the North Valley, and I'm also here in
7 support. I think this would be an asset to the community.
8 Community centers, recreational spaces, diversity, these are
9 all things that are protected factors against crime, against
10 homelessness. I think that this would be a lovely place and
11 a lovely addition. My partner and three children, we came
12 here because of the diversity, and my husband's a healthcare
13 provider, and we've chosen to stay, because the community
14 has been so welcoming. So we are continuing to be welcoming
15 to our neighbors, and we hope to see the -- see this built.
16 Thank you.

17 CHAIRWOMAN CHAVEZ: Thank you.

18 VICE CHAIR GUERRERO: All right. Did I get this
19 -- Hank Nguyen.

20 CHAIRWOMAN CHAVEZ: What is your name, sir?

21 MR. BACA: Eric Baca.

22 VICE CHAIR GUERRERO: Go ahead. All right.

23 Mr. Baca and then followed by --

24 CHAIRWOMAN CHAVEZ: And can we call the next five.

25 VICE CHAIR GUERRERO: Yes. So next five would be

1 Lindsey Sedillo, Sandra Rougemont, Lorraine Maestas, and
2 Marnelli Hamilton.

3 CHAIRWOMAN CHAVEZ: If we called your name, please
4 come up near the podium.

5 Sir.

6 MR. BACA: Yeah. My name's Eric Baca. I live at
7 10019 Second Street, Northwest, just north of the proposed
8 building. Third generation, two generations behind me that
9 live in Alameda. You know, recently I just drove down Rio
10 Grande, and I seen the -- remembered the old buffaloes that
11 were at the S curve over there, and now, they have two steel
12 buffaloes. Hooray. They kept -- they kept it real. They
13 kept it like I remembered.

14 Okay. Going through Corrales, taking my mom to my
15 uncle's house, that's where she's from, I would go through
16 there. I see Wagner. I see all this, they keeping it
17 preserved.

18 Okay. We come to Alameda, and we want to put something
19 that does not fit the area, you know, and you've got to
20 remember, Alameda's been there since the beginning of all
21 the old -- all the old -- like Old Town, Martinez Town,
22 Duran (sic). It's the original part of Albuquerque from the
23 beginning. You know, old highway -- old historic Route 66,
24 originally, when it went through Santa Fe, went right
25 through there. So we're actually a historical area. So

1 consider that. It's -- you want to change the landscape on
2 that.

3 CHAIRWOMAN CHAVEZ: Thank you, sir. Your time is
4 up. Thank you.

5 VICE CHAIR GUERRERO: All right. Lindsey Sedillo
6 followed by Sandra Rougemont.

7 CHAIRWOMAN CHAVEZ: So in order to keep this
8 process moving, please, if we call your name, come to the
9 side near the podium. We have a lot of folks who are signed
10 up to speak, and so we would like to keep it moving.

11 VICE CHAIR GUERRERO: Okay. Lindsey Sedillo's not
12 here. Sandra Rougemont followed by Lorraine Maestas
13 followed by Marnelli Hamilton. All right. Okay. So after
14 Marnelli Hamilton then, okay, we've got Mohammad Nakip, Omar
15 -- and I can't read the last name. It's like -- could be
16 Rael. Silva Ramos, Jessie Ehrenberg. Okay. So Marnelli
17 Hamilton. All right. Let's go to Mr. Mohammad Nakip.

18 CHAIRWOMAN CHAVEZ: Please raise your right hand.
19 Swear to tell the truth?

20 MR. NAKIP: I do.

21 CHAIRWOMAN CHAVEZ: Okay. Name for the record.

22 MR. NAKIP: I'm Mohammad Nakip, 7124 Dancing
23 Eagle, Northeast, right on Alameda and Louisiana.

24 My purpose here is to speak on the benefit that this
25 mosque brings. I joined this mosque and this community when

1 I moved to Albuquerque in 2019. As a teenager coming to a
2 new city, it gave me more than just a place to stay. It
3 gave me a community. The people here helped shape my
4 character by teaching me responsibility, humility,
5 compassion, respect for others, all of which are core
6 Islamic values, and above all, the importance of serving the
7 community around us. This has shaped the person I've become
8 and the choices I've made.

9 Today, I'm a student at UNM preparing for medical
10 school, because I want to dedicate my life to helping
11 others, something that was reinforced by the values of this
12 community and mosque, instilled in me, and many other young
13 people from this mosque are pursuing careers in medicine,
14 nursing, engineering, education, public service, all with
15 the same commitment to giving back. When people ask what
16 this mosque contributes to Albuquerque, I think the answer
17 is found in the people it helped shape. It raised
18 compassionate, young adults who care about their neighbors
19 and invest in the community and, above all, are committed to
20 something greater than themselves by making New Mexico a
21 better place and are giving back.

22 I stand here as an example of that. The building of
23 this mosque is necessary to space the growing community and
24 will only give back to Albuquerque and New Mexico in the
25 long run.

1 CHAIRWOMAN CHAVEZ: Thank you. Thank you.

2 MR. NAKIP: Thank you.

3 CHAIRWOMAN CHAVEZ: So, Mr. Hamm, can we confirm
4 that they can hear us in that other room. We just don't
5 have very many people coming forward.

6 MR. HAMM: We will do that, yes. Absolutely.

7 VICE CHAIR GUERRERO: So next we have Omar --
8 please forgive for -- I can't read the last name.

9 MR. AZIZ: I say the truth.

10 CHAIRWOMAN CHAVEZ: Okay. Sir.

11 MR. AZIZ: Okay. So I'm one of the board members
12 at Albuquerque Islamic Center. I moved to Albuquerque in
13 2018. I -- I'm a -- I was a scientist at Sandia National
14 Labs, serving this country.

15 We want to move from the space that we have now to this
16 big space for the reasons we want to serve our community,
17 and, also, we also will be improving the place where we
18 live. Since we -- 2018, we have our Islamic Center, we have
19 no issues. A lot of the things that being mentioned that
20 happens -- like anything that -- like for example, sounds,
21 things like that, we never have that. We don't have that.

22 Traffic, after removing the school away, our -- our
23 praying time is in the slot between 12:00 and 3:00 p.m., so
24 that slot can be also moved. It's only 30 minutes. Our big
25 events that we do, they -- also, they never become -- they

1 are not in the gym -- in the mosque costs. It's always --
2 if you go look -- look at Facebook, it's -- we rent big
3 places just like the Balloon Fiesta grass place. So we
4 don't have a lot of impact on the area. Thank you very
5 much.

6 CHAIRWOMAN CHAVEZ: Thank you. Sir, would you
7 please state your name for the record.

8 MR. AZIZ: Omar Aziz.

9 CHAIRWOMAN CHAVEZ: Thank you.

10 MR. HAMM: Madam Chair, Commissioners, confirmed
11 that the audio is working over there. Our staff reports
12 that some people just simply didn't want to speak.

13 CHAIRWOMAN CHAVEZ: Okay.

14 MR. HAMM: So our recommendation is just keep
15 running through the roster. Folks will come to the podium
16 to continue moving.

17 CHAIRWOMAN CHAVEZ: Perfect. Thank you.

18 VICE CHAIR GUERRERO: So next we have Sylvia Ramos
19 followed by Jesse Ehrenberg, Donna Sandoval, and then I
20 think it's Tariz Kahn.

21 CHAIRWOMAN CHAVEZ: Please -- swear to tell the
22 truth?

23 MS. RAMOS: I do.

24 CHAIRWOMAN CHAVEZ: Name for the record, please.

25 MS. RAMOS: Sylvia Ramos.

1 CHAIRWOMAN CHAVEZ: Okay. You can one minute,
2 ma'am.

3 MS. RAMOS: Although I now live in Old Town, I
4 lived for many years on -- in Alameda on Camino La Morada.
5 So I know that area very well. It is indeed a mixture of
6 rural and urban development, and I think having the Islamic
7 mosque there will elevate the area in very many ways. I
8 think we support diversity in this state, and we should
9 encourage people to -- to come together in such ways. So I
10 support this project, and I thank you for the opportunity to
11 say that.

12 CHAIRWOMAN CHAVEZ: Thank you for your time.

13 VICE CHAIR GUERRERO: Jesse Ehrenberg.

14 CHAIRWOMAN CHAVEZ: Raise your right hand --

15 MR. EHRENBURG: Jesse Ehrenberg.

16 CHAIRWOMAN CHAVEZ: -- for the record, please.

17 MR. EHRENBURG: I'm sorry.

18 CHAIRWOMAN CHAVEZ: Swear to tell the truth?

19 MR. EHRENBURG: Yes. Absolutely.

20 CHAIRWOMAN CHAVEZ: Okay. Name for the record.

21 MR. EHRENBURG: Jesse Ehrenberg, and I just want
22 to say that I support this project. I'm a resident of
23 Albuquerque, resident of New Mexico, and I support diversity
24 and equity, and that's all I have to say. Thank you very
25 much.

1 CHAIRWOMAN CHAVEZ: Thank you.

2 For the folks who are next to speak, please raise your
3 right hand. Swear to tell the truth? Okay. Come up to the
4 podium, please.

5 VICE CHAIR GUERRERO: We have Donna Sandoval
6 followed by Taris Kahn.

7 CHAIRWOMAN CHAVEZ: Name for the record.

8 MS. SANDOVAL: My name is Donna Sandoval. I'm
9 speaking on behalf of Julia Baca for the Albuquerque
10 International Balloon Fiesta.

11 Dear, Chair and Members of the Planning Commission, on
12 behalf of the Albuquerque International Balloon Fiesta, I'm
13 writing regarding the conditional use approval granted by
14 the Bernalillo County Zoning Administrator for the
15 Albuquerque Islamic Center at 9600 Second Street, Northwest.
16 Our concerns are limited to the transportation, traffic
17 management, public safety, and operational compatibility
18 impacts associates with the proposed development's location
19 within the critical transportation corridor serving the
20 Balloon Fiesta park and the annual Albuquerque International
21 Balloon Fiesta.

22 The subject property is located along the Second
23 Street, Northwest, corridor which shares as a primary access
24 route for Balloon Fiesta operations. During the annual
25 event, this corridor accommodates significant volumes of

1 sponsor, pilot, crew, volunteer, vendor, emergency, and
2 support traffic entering, existing Balloon Fiesta Park.
3 Efficient operation of this corridor is essential to public
4 safety, traffic management, and the overall success of the
5 event that attracts hundreds of thousands of visitors and
6 generates substantial economic benefit for Bernalillo County
7 and the State of New Mexico.

8 Based on the information available to IABF, it is
9 unclear whether a comprehensive traffic study conducted.

10 Thank you.

11 CHAIRWOMAN CHAVEZ: Thank you.

12 VICE CHAIR GUERRERO: Let's see. Mr. Kahn, you're
13 going to have correct -- you had a pen that was dying on you
14 here, so --

15 MR. ABDELJAWAD: No worries.

16 VICE CHAIR GUERRERO: And then we have Sarah
17 Narvaez, (sic) Beth Goldman, and Becky Gordon.

18 CHAIRWOMAN CHAVEZ: Name for the record, please.

19 MR. ABDELJAWAD: Harris Kahn couldn't be here
20 today. My name is Taha Abdeljawad. I can spell that out
21 for you if you'd like as well.

22 CHAIRWOMAN CHAVEZ: Please.

23 VICE CHAIR GUERRERO: T-a-h-a and then my last
24 name, Abdeljawad, A-b-d-e-l-j-a-w-a-d.

25 CHAIRWOMAN CHAVEZ: Thank you. You have one

1 minute, sir.

2 MR. ABDELJAWAD: Hello, everybody. My name is
3 Taha, and I'm here today in support of the proposed mosque.
4 A mosque is more than just a place of worship. It's a place
5 where families come together, children learn the values of
6 kindness and service and neighbors-built community. Like
7 churches, synagogues, and temples, it provides a space for
8 people to practice their faith peacefully and give back to
9 their community.

10 Unfortunately, most of the opposition we've seen has
11 been rooted in the misconceptions and fear, rather than
12 facts. My hope is that we choose understanding over
13 division and judge this project based on what it truly is, a
14 place of worship for families who simply want the same
15 opportunity to practice their religion and have a good space
16 as everybody else.

17 Our community's strongest when it welcomes people of
18 all faiths. I respect -- I respectfully ask you to approve
19 this project. Thank you all for your time.

20 CHAIRWOMAN CHAVEZ: Thank you.

21 VICE CHAIR GUERRERO: Sarah, (sic) is it --

22 MS. NAMASTE: I think you're looking at my name,
23 Sayrah Namaste, as it's spelled S-a-y-r-a-h.

24 CHAIRWOMAN CHAVEZ: Yeah.

25 VICE CHAIR GUERRERO: And last name?

1 CHAIRWOMAN CHAVEZ: Swear to tell the truth?

2 MS. NAMASTE: I do.

3 CHAIRWOMAN CHAVEZ: Okay. Name for the record.

4 MS. NAMASTE: Sayrah Namaste.

5 CHAIRWOMAN CHAVEZ: Okay. Thank you.

6 MS. NAMASTE: Good morning. Thank you for serving
7 on the Planning Commission. I am an Albuquerque resident, a
8 mother, and the director of a Quaker nonprofit organization.

9 I'm here this morning in support of the Albuquerque
10 Islamic Center's permit. I have several friends who worship
11 there, and I know that they need a larger space, and I
12 really appreciate the ways that they have been listening to
13 the neighbors and have been coming up with solutions and
14 talking about how to address the concerns that have been
15 raised. So I really appreciate that there.

16 I want to point out that I'm wearing green, and if you
17 look around the room, those who are wearing green are in
18 support. Of course, we have more people in the other room
19 outside in the lobby, and I wondered if we could take a
20 moment just so I could ask people who are support -- not
21 every signed up for public comments. We didn't take your
22 whole morning, but if they could stand or raise their hand
23 to show that they support the Albuquerque Islamic Center's
24 permit, there's a lot of support. So I just wanted to name
25 that.

1 And, again, I hope that -- I appreciate that you have
2 approved the past permits, and we see such a benefit
3 whenever we see places of worship as community centers.
4 That area, I've driven out there. There is a lot of
5 commercial. There's a lot of industry, and there needs to
6 be more community centers, and that's beautiful thing that
7 AIC will have.

8 CHAIRWOMAN CHAVEZ: Thank you.

9 VICE CHAIR GUERRERO: All right. Next five, Beth
10 Goldman followed by Becky Gordon followed by Barbara Del La
11 Curto (sic).

12 SPECTATOR: Beth is not here.

13 VICE CHAIR GUERRERO: Beth is not here. Okay.
14 Okay. So then Becky Gordon, Barbara Del Curto, Ed Morales,
15 and Leticia Martinez.

16 CHAIRWOMAN CHAVEZ: Raise your right hand. Swear
17 to tell the truth? Name for the record.

18 MS. GORDON: Becky Gordon.

19 CHAIRWOMAN CHAVEZ: You have one minute.

20 MS. GORDON: Thank you. I speak this morning as a
21 member of Cousins and Kin, a Jewish/Muslim affinity group
22 founded upon mutual respect and comradery and curiosity to
23 learn more about each other's faith and culture.

24 I'm a member of Nahalat Shalom, which has had a
25 longstanding relationship with the Muslim congregations in

1 our city. I have taken many Highland High School world
2 history students to visit the Salam Academy and Islamic
3 Center for their Friday prayer service, and I have taught
4 students from that community at Early College Academy.

5 So I would like to say that there need not be any fear
6 of this mosque being built in the North Valley, and I will
7 say this is not about welcoming the stranger, because they
8 are not strangers. They are a rooted, integral part of our
9 community and have been for decades.

10 CHAIRWOMAN CHAVEZ: Thank you. Thank you.

11 For the next two who are up against -- next to speak.
12 Please raise your right hand. Swear to tell the truth?

13 MS. DEL CURTO: I do.

14 CHAIRWOMAN CHAVEZ: Okay. Name for the record.

15 MS. DEL CURTO: I'm Barbara Del Curto. So, I
16 mean, I have a litany of what I believe.

17 CHAIRWOMAN CHAVEZ: You have one minute.

18 MS. DEL CURTO: Yes, I have a litany -- I know,
19 but that's why I'm going to cut it down to one, which I
20 think is very important.

21 I believe on June 3rd, the applicant in his sworn
22 testimony stated that this building needs to be built,
23 because it needs to serve some of the people in Rio Rancho.
24 When did taxpayers of Bernalillo County start paying tax --
25 you know, start paying to serve other Counties. I think

1 that's a violation. Okay? And I -- and that was a sworn
2 testimony. That is by his admission. So that's a violation
3 of -- of the zoning code. We want to pay for things that
4 benefit, by the laws, benefit the resident of that county.

5 This needs to be denied. I think there was a great
6 failure in the approval and the passing up to this point,
7 especially with the different iterations of site plans.
8 Where's our due process to have seen those and given time to
9 even create a better opposition report? Thank you.

10 CHAIRWOMAN CHAVEZ: Thank you.

11 Sir? Name for the record, please.

12 MR. MORALES: My name is Ed Morales.

13 CHAIRWOMAN CHAVEZ: You have one minute, sir.

14 MR. MORALES: Okay. First of all, I'm a
15 Christian. Jesus Christ is my Savior, and I believe in the
16 USA, and I believe that what is this mosque will start to
17 become is what's happening throughout the United States with
18 their beliefs and their ideologies that is not Christian,
19 that is not of the Lord, and that as time goes on, you can
20 image the Sharia law being applied to their way of thinking
21 of their laws and their ways of believing. And, therefore,
22 that would be a major blow to our community in our area that
23 we live, and that's pretty much the bottom line of -- of the
24 mosque, and I oppose it.

25 CHAIRWOMAN CHAVEZ: Thank you.

1 VICE CHAIR GUERRERO: Okay. Next five, Leticia
2 Martinez, Roberta Schoolcraft, Karmen -- oh, she doesn't
3 want to speak, Homer Moore, and Karmen Gutierrez Franklin.
4 So Leticia Martinez first.

5 CHAIRWOMAN CHAVEZ: All right. For folks who are
6 next to speak, please your right hand. Swear to tell the
7 truth? Okay. Come up to the podium, please. Name for the
8 record.

9 MS. SCHOOLCRAFT: Roberta Schoolcraft. so I want
10 to, you know, talk about the community. Regarding the
11 existing gas station and the marijuana dispensary, the
12 residents aren't objecting to any of those. We are
13 objecting to the construction of a 50,000 square foot
14 building in a rural community that is historically
15 maintained to be a much smaller scaled character.

16 This development would fundamentally alter the
17 character of our neighborhood and place additional strain on
18 an already challenging traffic situation. Traffic in this
19 area is regularly impacted by Alameda corridor congestion,
20 seasonal events, and the Balloon Fiesta. Adding development
21 of that size would only increase those concerns. Our
22 community is a quiet, rural, multigenerational area that has
23 been carefully preserved by families whose roots here go
24 back generations. Residents are not asking for a massive
25 commercial building, nor do we believe such a projects

1 reflects the needs and wishes of our community and
2 neighbors.

3 Additionally, I take offense that -- to the suggestion
4 that this development would somehow restore or improve our
5 integrity of our community. There is no integrity issue.
6 So I ask that this be denied.

7 CHAIRWOMAN CHAVEZ: Sir, you're next.

8 VICE CHAIR GUERRERO: I have Roberta Schoolcraft.

9 CHAIRWOMAN CHAVEZ: Name for the record, please.

10 MR. MOORE: Homer Moore, and I live in Santa Fe.
11 I'm a Christian, and the love of God is for everybody --

12 CHAIRWOMAN CHAVEZ: Sir, please address your
13 comments to the Commission. Thank you.

14 MR. MOORE: -- no matter what your race. And
15 Jesus Christ calls us to love everyone. Jesus Christ
16 commands us to even love those who persecute us and do evil
17 against us. There is persecution against Jews and
18 Christians, even from within our own family. We forgive
19 you. But we will live for Christ, and we will live for
20 Christ, because he is for life, not death. This is from
21 your Qur'an. Surah Al-Baqarah, 2:191, "Slay the believers
22 wherever you find them." Surah Al-Baqarah, 3:28, "Muslims
23 must not take the infidels as friends."

24 CHAIRWOMAN CHAVEZ: Sir, thank you. Your time is
25 up.

1 VICE CHAIR GUERRERO: Okay.

2 MR. MOORE: There -- there are ten more --

3 CHAIRWOMAN CHAVEZ: Sir.

4 MR. MOORE: -- and they all say the same thing.

5 CHAIRWOMAN CHAVEZ: Sir -- thank you.

6 VICE CHAIR GUERRERO: I want to go back to Roberta
7 Schoolcraft. Just want to make sure -- she's not here.

8 Okay.

9 MS. SCHOOLCRAFT: Yeah. I'm here.

10 VICE CHAIR GUERRERO: You are. Do you want to
11 speak.

12 MS. SCHOOLCRAFT: I did.

13 VICE CHAIR GUERRERO: Oh, you are Roberta. So
14 Leticia Martinez did not speak. All right. So then let's
15 go to Karmen Gutierrez Franklin, and then Pat Hauser's
16 already spoken. Connie Armijo Garcia, Reverend Christopher
17 Hallada, and Veronica Moya.

18 CHAIRWOMAN CHAVEZ: State your name for the
19 record, please.

20 MS. FRANKLIN: Karmen Gutierrez Franklin.

21 CHAIRWOMAN CHAVEZ: You have one minute.

22 MS. FRANKLIN: I live next door to this property
23 in North Valley. I'm speaking on behalf of eight property
24 owners who use tractors and pieces of farm equipment that
25 families rely on for their income. They live near Second

1 and Alameda, service properties all over North Valley and
2 Alameda. We have to move this equipment on the same road
3 you are now being asked to load hundreds of more trips. Our
4 tractors go five to ten miles an hour trying to merge into
5 the bumper to bumper congestion on his Alameda. Edith,
6 Second Street is almost impossible.

7 Drivers don't want to get stuck behind us. They don't
8 want to let us in. They don't want to turn. They -- it
9 turns into road rage and dangerous near misses.

10 On top of that, Alameda already carries heavy truck
11 traffic including 18 wheelers because it -- because it is
12 one of the few major east/west river crossings. Mix in
13 slow-moving farm equipment, everyday neighborhood traffic,
14 industrial traffic and even more project traffic is a real
15 safety problem, not a theory. This is our livelihood and
16 part of our agriculture character your own criteria and
17 Comprehensive Plan are supposed to protect.

18 CHAIRWOMAN CHAVEZ: Thank you.

19 MS. FRANKLIN: Thank you for your time, and please
20 uphold this appeal.

21 CHAIRWOMAN CHAVEZ: All right. For the next folks
22 who are lined up, please raise your right hands. Swear to
23 tell the truth?

24 SPEAKERS: I do.

25 CHAIRWOMAN CHAVEZ: Okay. Please come up to the

1 podium.

2 VICE CHAIR GUERRERO: Okay. We have Connie Armijo
3 Garcia.

4 MS. GARCIA: I am a member of -- I am a resident
5 of Alameda, and I live at 9821 Edith. I grew up on Second
6 Street. Our whole family lives there.

7 Our -- One of our concerns there is to keep our
8 community the same, but one of the things that we didn't --
9 it said here that they were not a lot of analysis done for
10 some of the things that Mr. Hauser said, but one of the
11 things that we were -- many people do not know and do not
12 know the answers to is whether or not the mosque will be
13 making noise or sounds that are going to be often throughout
14 the day.

15 We -- many of us have animals within our areas such as
16 horses, goats, many different things, and we were wondering
17 if -- if the decibels have been checked for that. And if
18 they will affect our animals, and the people who are living
19 there. There's no fear of them but of the people living
20 there it is to keep or community quiet.

21 VICE CHAIR GUERRERO: Ma'am, will you state your
22 name for the record.

23 MS. GARCIA: Connie Armijo Garcia.

24 CHAIRWOMAN CHAVEZ: Thank you.

25 MS. GARCIA: Thank you. Ambros Armijo. Okay.

1 Then Reverend Christopher Hallada.

2 CHAIRWOMAN CHAVEZ: Please state your name for the
3 record.

4 MR. HALLADA: I am Reverend Christopher Hallada.
5 I am Catholic priest, the pastor of Our Lady of Guadalupe
6 Parish in the North Valley and a member of the Ecumenical
7 Commission of the Archdioceses of Santa Fe.

8 And I'm here to support the mosque in the North Valley.
9 For us, as Catholics, as we celebrate the 800th anniversary
10 of St. Francis of Assisi passing, it's important for us to
11 remember the way that he encouraged peace, he encouraged
12 encounter with our Muslim brothers and sisters. And as our
13 Country celebrates its 250th anniversary where one of our
14 most sacred rights is the right to freedom of religion.
15 This is something that is important for us to cultivate.

16 And, finally, as New Mexican, look around us at the
17 colonial architecture. There are so many influences from
18 the Islamic culture, and the Moorish community. This is
19 consistent with our identity as New Mexicans, as Christians,
20 as Americans, and in my denomination as a Catholic. Thank
21 you.

22 CHAIRWOMAN CHAVEZ: Ma'am, come up to the podium.
23 Please state --

24 VICE CHAIR GUERRERO: Veronica Moya.

25 MS. MOYA: Yes.

1 CHAIRWOMAN CHAVEZ: State your name for the
2 record.

3 MS. MOYA: Veronica Moya. I'm not in support of
4 this. I have autistic grandson that we take to school. He
5 has to go to school on Eubank and Candelaria. So our
6 commute is already 30 minutes, and we've dealt with Balloon
7 Fiesta and other things, and it makes it ten times worse.

8 And a child with autism, having to change his schedule
9 is horrible for us. It's horrible. And so I don't think
10 it's good for our community only because of the traffic,
11 and, you know, it's a change, and I don't think it'll -- it
12 would be great. I mean, if anybody knows, Second Street
13 going to Alameda during Balloon Fiesta, it's impossible for
14 us to get on there, and there's no other way we can take,
15 because that's -- that's his root. He is about his -- he
16 wants to be repetitive every day.

17 CHAIRWOMAN CHAVEZ: Thank you.

18 MS. MOYA: Thank you.

19 VICE CHAIR GUERRERO: Okay. Next five, we have
20 Andres Esquivel, Jan Laird, James Clements, and David
21 Montoya. Okay. Dana Nadeau, Patrick Marquez, C. Rivera,
22 Rosalinda Ponce, and Barbara Tafoya.

23 CHAIRWOMAN CHAVEZ: For those of you who are ready
24 to speak, please raise your right hand. Swear to tell the
25 truth? Okay. Come up to the podium.

1 Name for the record, please.

2 MR. ESQUIVEL: My name is Andres Esquivel. Good
3 morning, Madam Chair, Members of the Planning Commission.
4 My name is Andres Esquivel. I am the campaigns manager for
5 the New Mexico Dream Team. The Dream Team is a state-wide
6 network committed to create powerful multigenerational
7 undocumented LG- -- undocumented LGBTUQ and mixed status
8 families toward liberation.

9 I'm here to speak in support of the proposed mosque in
10 the North Valley. All members of the community deserve a
11 place to pray and practice their faith in peace regardless
12 if they're Muslim, Buddhists, Christian, and so on. We
13 believe that everybody deserves the freedom to move, the
14 freedom to stay, the freedom to work, the freedom to
15 transform, and the freedom to thrive, and -- and -- and,
16 yeah, the hate and the backlash that this mosque has
17 received is abhorrent, disgusting, and rooted in racism and
18 hate towards -- towards the other.

19 I implore you-all to root yourself in acceptance and
20 warmth for our Muslim neighbors. Please approve the
21 building of this mosque, and thank you.

22 CHAIRWOMAN CHAVEZ: Thank you. Next.

23 MR. CLEMENTS: My name is James Clements. I was
24 accused by one of our colleagues here of being a Ku Klux
25 Christian. I wear that brand proudly. I'm here to let you

1 know that Islam is not a religious. It's geopolitical
2 ideology masquerading as a religion. I know there are some
3 people who are -- belong to Islam that are not --
4 non-violent at this time, but I'm hear to tell you that
5 Islam is not here to assimilate into our western Judeo
6 Christian society. It's not here to embrace our western
7 capitalist free enterprise system. Ala is not the God of
8 Abraham, Isaac, and Jacob. God is not the -- Ala is not the
9 God of the Christian Bible. Ala is not the I-M that Moses
10 encountered in the burning bush on Mount Sinai. Ala is the
11 principality of Satan, an angel, a fallen angel.

12 The Apostle Paul tells in his letter to Ephesians --

13 CHAIRWOMAN CHAVEZ: Thank you, sir. Your time is
14 up.

15 Please state your name for the record.

16 MR. MARQUEZ: Patrick Marquez, and I swear to tell
17 the truth, the whole truth, nothing but the truth, but -- so
18 help me God.

19 But anyway, I'm here in representation of the traffic.
20 I am one victim that was stuck between the railroad
21 crossings on Alameda on 9/11. So I Was stuck in between
22 there, and I did submit the paperwork to you guys. You have
23 the -- my document in reference of what occurred and me
24 filing the state -- filing a claim with the State of New
25 Mexico, and me being stuck in between the railroad crossings

1 on the tracks on Alameda going northbound, and this happened
2 on 9/11, last year on 2025.

3 So as far as the traffic incidents, I was stuck in
4 between the railroad crossings. The railroad crossing was
5 scraping along my top of my roof of my car. It cleared.
6 Once I cleared it, it swung, and it hit the back of my car.
7 Next thing I looked and there was a railroad crossing and
8 the Railrunner crossed right by there.

9 Between 4:07 and 4:11, watch out for the Railrunner.
10 You will get run over. No video. They stipulated that
11 there was video. There was no video on the railroad tracks.
12 Plus, there was video on the train for a near miss.

13 CHAIRWOMAN CHAVEZ: Thank you, sir. Your time is
14 up.

15 MR. MARQUEZ: Documents were submitted. Please
16 review them. I deny this. God is king.

17 MS. PONCE: I'm Rosalinda Ponce, and I want to
18 tell the truth. Anyway, my concern is the traffic. Traffic
19 when it is so backed up on Alameda and Second Street, people
20 go around from Second. They go down through Camino del
21 Bosque. They come through Guadalupe Trail. We can't get
22 out of our own yards, and this is what I wanted to speak
23 about.

24 CHAIRWOMAN CHAVEZ: Thank you. For the next three
25 who are signed up, please raise your right hand. Swear to

1 tell the truth? Okay. Come up to the podium, please.

2 Name for the record.

3 MS. TAFOYA: Barbara Tafoya. I live on Guadalupe
4 and Alameda. A lot of traffic on Alameda, especially Second
5 Street. People block the intersection when the light
6 changes. No one can get through. In addition to Balloon
7 Fiesta, there's Wine festival there. There's almost -- you
8 know, all summer long, all winter. It's Celtic Fest.
9 There's no many things going on at Balloon Fiesta park that
10 that just for -- adds further to the congestion.

11 And we can't even go where we need to go. We have to
12 time everything and figure out which way the traffic is
13 going and when we can leave and if we can get back, and so
14 the traffic on Alameda, being an east/west corridor, is a
15 nightmare already, and then when Paseo or Montano has an
16 accident or I-40, everything comes through Alameda. Also,
17 the big trucks that are not allowed on Paseo come through
18 Alameda. So I ask that you do not pass this. You do not
19 pass --

20 CHAIRWOMAN CHAVEZ: Your time is up, ma'am. Thank
21 you.

22 MS. TAFOYA: -- that you do not allow the mosque.

23 CHAIRWOMAN CHAVEZ: Thank you. Your time is up,
24 ma'am.

25 MS. TAFOYA: Thank you.

1 CHAIRWOMAN CHAVEZ: Sir, name for the record.

2 MR. NADEAU: Dana Nadeau. New Mexico state law
3 requires a 300-foot buffer zone separating churches from
4 cannabis dispensaries and liquor licensed establishments.
5 Because an operational dispensary sits immediately adjacent
6 to the property and a liquor licensed gas station operates
7 within 300 feet, approving a new church at this location
8 creates a severe zoning incompatibility.

9 Also, Alameda serves as a critical already bottlenecked
10 transit corridor across the Rio Grande. A 2020 traffic
11 study for the nearby Murphy Express gas station already
12 highlighted severe traffic -- traffic strains. Introducing
13 a mosque into this exact corridor without conducting an
14 updated comprehensive traffic impact study poses significant
15 risk to the public safety and commuter flow. I believe the
16 County Commission should pause the project until a new
17 traffic study is completed and a formal legal review of the
18 buffer zone ordinance is conducted.

19 CHAIRWOMAN CHAVEZ: Thank you, sir.

20 MR. NADEAU: Thank you.

21 CHAIRWOMAN CHAVEZ: Thank you.

22 Name for the record, please.

23 MS. BELLA: Sarah Bella. All right. Good
24 morning. My name is Sarah, and I live in Bernalillo County,
25 and I'm a member of OLE. I'm here today because when one

1 community is targeted, we all need to show up. I may not be
2 Muslim, but I know what it's feels like -- I know what it
3 feels like when people say you don't belong. I know what it
4 looks like when discrimination hides behind neutral-sounding
5 language, and I know that inaction in moments like this is
6 complicity.

7 Our organization stands with the Albuquerque Islamic
8 Center. We stand against Islamophobia, and we stand for
9 Bernalillo County where every community can thrive. Reject
10 this appeal, and stand with us, please.

11 CHAIRWOMAN CHAVEZ: Thank you.

12 VICE CHAIR GUERRERO: Okay. Next five, Carolyn
13 Good, Talha Mohamed, Bryon Vegas, Suzette Presti, and
14 Armando Romero, III.

15 CHAIRWOMAN CHAVEZ: Raise your right hand, please.
16 Swear to tell the truth?

17 MS. GOOD: Carolyn Good.

18 CHAIRWOMAN CHAVEZ: Name for the record.

19 MS. GOOD: Carolyn Good.

20 CHAIRWOMAN CHAVEZ: Okay.

21 MS. GOOD: I moved here from New England and was
22 so excited about the -- this whole area, which is so
23 amazingly full of all kinds of cultures, and I know as a --
24 about Abraham, and Abraham three -- had cultures, Jews and
25 Christians and Muslims, and they're all here, and they're

1 all really committed to the missions of this area. I know
2 of all of the wonderful things that all of these have done,
3 and I'm very proud to be here, and I am very excited about
4 this new Islamic center, and it's really another addition to
5 our culture.

6 CHAIRWOMAN CHAVEZ: Thank you. Okay. Come on up.
7 Raise your right hand. Swear to tell the truth? Okay. The
8 name for the record.

9 MS. PRESTI: Suzette Presti.

10 CHAIRWOMAN CHAVEZ: You have one minute, ma'am.

11 MS. PRESTI: Thank you, Madam Chair. Due to the
12 adverse impact on traffic and safety and the rural, legal
13 designation of the area and the environmental impact, the
14 location's just not appropriate for the size and scope of
15 the project, and that's according to the existing zoning and
16 planning rules. For anyone who doesn't know, the North
17 Valley's not City. You'll find neighbors with chickens,
18 horses, crops, open fields, and little houses that have been
19 there for generations like the one that's currently on that
20 lot.

21 The Comprehensive Plan states that the North Valley
22 rural character is to be preserved regardless of the type of
23 project that's being proposed, and to be clear, the proposed
24 two-story complex is not just a church. It's a megachurch,
25 and it's 400 additional cars. And for anyone who knows,

1 that is less than 150 feet from the intersection where it's
2 already backed up every day.

3 CHAIRWOMAN CHAVEZ: Okay. Thank you.

4 MS. PRESTI: Thank you so much.

5 VICE CHAIR GUERRERO: I'll just read the names
6 again. So we have Talha Mohamed, Bryon Vegas, then Armando
7 Romero followed by Lec (sic) and Belinda Sanchez, and then
8 Allen Crosby.

9 CHAIRWOMAN CHAVEZ: Please raise your right hand.
10 Swear to tell the truth.

11 MR. ROMERO: I do.

12 CHAIRWOMAN CHAVEZ: Name for the record, please.

13 MR. ROMERO: Armando S. Romero, III. I'm
14 president of Congregation Nahalat Shalom on 3606 Rio Grande
15 Boulevard, Northwest. Our Jewish Community chose the North
16 Valley for our location more than 25 years ago to use for a
17 house of worship, preschool, educational programming for
18 youth, and programs for our adults and families. Like the
19 Albuquerque Islamic Center, we're experienced in navigating
20 traffic, security, use of the building, and working closely
21 with neighbors, and stewarding a safe community.

22 While we have been able to serve our faith community,
23 we've also be successful in welcoming neighboring residents
24 to learn about faith and culture, and we applaud the
25 decision for the AIC to bring their experience to Second and

1 Alameda, and I hope, Commissioners, that we choose, in any
2 language, to say baruchim ha'ba'im lagarim, (sic) buen
3 venidos, vecinos, welcome neighbors. The Hebrew word for
4 stranger is also neighbor. Thank you.

5 CHAIRWOMAN CHAVEZ: Thank you.

6 VICE CHAIR GUERRERO: It was -- on those names, it
7 was Lee and Belinda Sanchez, I believe, and then Allen
8 Crosby.

9 CHAIRWOMAN CHAVEZ: Come on up. For those who are
10 speaking next, please raise your right hand. Swear to tell
11 the truth?

12 SPEAKERS: I'll tell the truth.

13 CHAIRWOMAN CHAVEZ: Okay. Please state your name
14 for the record.

15 MS. SANCHEZ: My name is Belinda Sanchez. I am a
16 resident of Alameda, and what I'd like to see is -- I am
17 standing in opposition to this proposal, and it's more so
18 for the valid reasons that Mr. Hauser presented. I think
19 everybody can be in agreement with that.

20 However, I would like to add on to that. We all wonder
21 who are you, bringing this into our community? Let me tell
22 you who we are. We are a community of a close-knit people.
23 If nobody knows, we have a Asociudad de Alameda that takes
24 care of our people, that takes care of our elders, that
25 takes care of our students, our kids, and what we want to do

1 is we want to protect and preserve our society, our
2 heritage, and what we have worked so hard in this land.
3 We're not afraid of you. It is a matter of who we are. We
4 don't know who you are, but we know who we are, and this is
5 what we stand for. We stand for Christ, for our community,
6 and who we are in the people for our agriculture and
7 everything else in this Valley to do with everything,
8 environment, agricultural, every other simple thing, but
9 what it comes down to is just exactly that, who we are. We
10 a community -- are a community --

11 CHAIRWOMAN CHAVEZ: Thank you.

12 MS. SANCHEZ: -- who stands together.

13 CHAIRWOMAN CHAVEZ: Come up to the podium, sir.
14 Name for the record.

15 MR. CROSBY: Allen Crosby.

16 CHAIRWOMAN CHAVEZ: Okay. You have one minute,
17 sir.

18 MR. CROSBY: First off, I believe it is impossible
19 to get a permit for an invisible building. I've never heard
20 of such a thing, but I do come in the name of the one true
21 God, Jesus Christ who is seated at the right hand of the
22 Father. Christians will only tell you of Jesus. Mus- -- as
23 the gentleman said, Muslims will force you to believe in
24 their god when they take power. Christ is righteousness.
25 Muslims are commanded to kill and maim the infidel. Muslims

1 allow for marrying of nine year old children to grown men.
2 Muslims allow for public beating of women when they come in
3 power. They claim a religion of peace, but it is of
4 conquering.

5 Greg Abbott just received \$14 million to place 50
6 mosques in Texas, and I assume some- -- someone here is
7 getting paid under the table. Where's Nick Shirley when we
8 need him? If you want to see Christians killed, vote yes
9 for the mosque. If you want woman raped, vote yes for the
10 mosque. If you want future children married at the age of
11 nine to grown men, vote yes for the mosque, but if you want
12 prosperity, bet on Christ. If you want righteousness, bet
13 on Christ.

14 CHAIRWOMAN CHAVEZ: Thank you, sir. Your time is
15 up.

16 MR. CROSBY: If you want understanding, wisdom,
17 life everlasting --

18 CHAIRWOMAN CHAVEZ: Sir --

19 MR. CROSBY: -- fullness of power, vote on Christ.

20 CHAIRWOMAN CHAVEZ: -- your time is up. Thank
21 you.

22 VICE CHAIR GUERRERO: Okay. Hamza Khamrich, Yow
23 Feng, Maura Jams (sic), Kristin Cummings, and Miryam Miller.

24 CHAIRWOMAN CHAVEZ: If we called your name, please
25 move to this side of the wall, please, next to the podium.

1 Come on up, ma'am.

2 MS. JANS: Is it possible to yield my time to
3 someone else?

4 CHAIRWOMAN CHAVEZ: No.

5 MS. JANS: Okay. Then I'll speak.

6 CHAIRWOMAN CHAVEZ: Okay. So, again, if we've
7 called your name, please come to the wall nearest the podium
8 to be sworn in.

9 And, ma'am, if you'll move to the podium. Raise your
10 right hand. Swear to tell the truth?

11 MS. CUMMINGS: I do.

12 CHAIRWOMAN CHAVEZ: Okay. Name for the record,
13 please.

14 MS. CUMMINGS: Kristen Cummings. I am here in
15 speaking in defense of a place of worship for a faith I do
16 not adhere to. Freedom of religion is a human right, and it
17 is an American value. Indeed, it is one of the foundational
18 principals from the original colonies predating the
19 Declaration of Independence by over 100 years.

20 Eleven years after what would be become New York
21 enshrined religious freedom in their charter, a new governor
22 declared a state of religion so that he could persecute the
23 Quakers. The following year, a group of 30 colonists signed
24 a petition to the governor calling for an end of this
25 persecution though none of them Quakers.

1 In addition to Christian denominations, they explicitly
2 called for religious freedom for, quote, "Jews, Turks, and
3 Egyptians," as they are considered sons of Adam.

4 If 369 years after some of the first American settlers
5 endured imprisonment to enshrine the religious freedoms of
6 faith they did not practice and three days from the 250
7 anniversary of this nation's founding we would find cause to
8 obstruct the religious practice of our neighbors, I can
9 think of nothing more unAmerican.

10 CHAIRWOMAN CHAVEZ: Thank you. Come on up to
11 podium, please. State your name for the record.

12 MS. JANS: My name is Maura Jans.

13 CHAIRWOMAN CHAVEZ: Okay. You have one minute,
14 ma'am.

15 MS. JANS: Thank you. I was originally going to
16 yield my time to -- to someone else, but since you said I
17 can't, I will speak in support of Mr. Hauser and his
18 objection to this building, this campus. I frequently
19 travel up and down Alameda, going east/west. I agree with
20 all the people that say you can't add more traffic on that
21 street. It's -- it's just a safety issue, and -- but the
22 other thing is I think we all need to study this religion a
23 little more, because -- especially the people who are
24 lesbian, gay, and whatever. I think you -- please study
25 what Islam does to the people like that. It's

1 heartbreaking. So thank you.

2 CHAIRWOMAN CHAVEZ: Thank you. Okay.

3 VICE CHAIR GUERRERO: All right. Next five,
4 Miryam Miller, Ruda Peterson, Holly Alameda, Mary Walker
5 Herrera, and Geraldo Cionelo.

6 CHAIRWOMAN CHAVEZ: We have some folks coming up.
7 Okay. Please raise your right hand. Swear to tell the
8 truth? Come on up.

9 MS. PETERSON: Yes. I'm Ruth Peterson. I just
10 write really sloppy.

11 CHAIRWOMAN CHAVEZ: Okay. Go ahead. You have one
12 minute, ma'am.

13 MS. PETERSON: Okay. Just for the heck of it,
14 since it was interjected, I grew up a Quaker, and I was
15 married in a Quaker church.

16 Good day, Commission. I use Alameda Boulevard almost
17 daily. It's already a nightmare, especially at rush hours.
18 A proposed 50,000 square foot mosque at Second and Alameda
19 on less than four acres will worsen gridlock. We already
20 have a public elementary school and Catholic church that fit
21 the rural Hispanic character of the North Valley. This
22 massive project is out of scale, out of character, and
23 conflicts with the area's planned low density goals.

24 Legitimate concerns about traffic, scale, compatibility
25 are not Islamophobia, and I resent being called Islamophobe.

1 Approving first and doing the traffic study afterwards is
2 backwards. I urge you to deny the conditional use permit.
3 Please protect our infrastructure and rural New Mexican
4 neighborhoods. Thank you.

5 CHAIRWOMAN CHAVEZ: Thank you.

6 Okay. Come on up to the podium, please. For those who
7 are up against -- please raise your right hand. Swear to
8 tell the truth?

9 MS. HERRERA: Yes.

10 CHAIRWOMAN CHAVEZ: Name for the record.

11 MS. HERRERA: Mary Walker Herrera.

12 CHAIRWOMAN CHAVEZ: Thank you. You have one
13 minute, ma'am.

14 MS. HERRERA: Thank you. Thank you, Madam Chair,
15 Members of the County Planning Commission, for the
16 opportunity to speak today. A Comprehensive Plan identifies
17 a long-term vision for future land use and the built
18 environment. A Comprehensive Plan informs and guides
19 zoning, which is a regulatory tool to implement the vision.
20 This region will have the highest quality of life, and the
21 greatest range of diverse vibrant places if it grows as a
22 community of strong centers connected by corridors.

23 This centers and corridors approach to growth requires
24 that the City and County have strong policies that direct
25 development primarily within existing centers preserving the

1 character of rural areas and single-family neighborhoods.
2 This is from the Albuquerque/Bernalillo County Comprehensive
3 Plan, 2024, and I bring this up for reflection, and I thank
4 you for letting me share.

5 CHAIRWOMAN CHAVEZ: Thank you.

6 Sir, name for the record, please.

7 MR. CIONELO: I'm Dr. Geraldo Cionelo. Good
8 Morning, Madam Chair and Members of Planning Commission. I
9 enjoy historic cultural treasures in North Valley areas
10 since 1980. I am very concerned of the community impact due
11 to already increased traffic congestion and incompatibility
12 with our rural heritage, protecting our agriculture
13 heritage. Please vote no to the proposed 45,000 square foot
14 mosque and community center.

15 And why is that? Old Town, Los Duranes, Los
16 Candelarias, Los Griegos, La Alameda, Los Ranchos, and
17 Corrales are the historical heart of the Middle Rio Grande
18 Valley, which originated as Spanish land grant for century's
19 old agriculture community built along side existing pueblo
20 lands protecting them from invasion and erasure speaks
21 directly to the modern struggle against urban sprawl,
22 gentrification and the laws of traditional acequia system.
23 They are critical to preserving both New Mexico's
24 multilayered heritage and delicate echo system of the Rio
25 Grande bosque. Thank you.

1 CHAIRWOMAN CHAVEZ: Thank you.

2 VICE CHAIR GUERRERO: Can you ask him to repeat
3 his name for the record.

4 CHAIRWOMAN CHAVEZ: Sir, can you repeat your name
5 for the record.

6 MR. CIONELO: Dr. Geraldo Cionelo.

7 CHAIRWOMAN CHAVEZ: Thank you.

8 VICE CHAIR GUERRERO: Okay. Next five, Patricia
9 Stenck, (sic) Albert Montoya, Christine Butler, Samia Assed,
10 and Kenneth Sanchez.

11 CHAIRWOMAN CHAVEZ: Okay. Please raise your right
12 hand. Swear to tell the truth? Okay. Please step to the
13 podium and state your name for the record.

14 MS. STENCK: Patricia Baca Stenck. I regularly
15 visit family who live off Alameda near this site. At the
16 lights on Second and Alameda and Fourth and Alameda, it
17 often takes me three full cycles just to get through, and a
18 25-minute trip from I-25 to the Town of Alameda routine
19 takes me about 50 minutes. This kind of delay creates a
20 real safety risk for emergency responders, commuters, and
21 pedestrians who are stuck in the same width.

22 This corridor is already under strain, and adding this
23 large institutional use will only increase congestion and
24 the chances that emergency vehicles cannot reach people in
25 time of need. This directly supports the appeal's point

1 that there was no solid basis to find no undue traffic
2 congestion or hazard before this permit was approved. Thank
3 you.

4 CHAIRWOMAN CHAVEZ: Thank you.

5 Come on up. Please state your name for the record.

6 MS. BUTLER: Christine Butler.

7 CHAIRWOMAN CHAVEZ: Thank you. You have one
8 minute, ma'am.

9 MS. BUTLER: As resident of Albuquerque, I am
10 opposed to the construction of the mosque for most the
11 reasons that -- and all of the reasons, actually, that
12 people been saying all this morning, primarily to traffic
13 congestion, the emergency vehicles not being able to get
14 through -- so that's going to impact them -- noise
15 increasing, and the detriment to the character of this rural
16 agricultural area.

17 I travel from the East side to the West side through
18 the week, various times, and I always end up in traffic, and
19 it doesn't matter what time of day I'm there, and so I am
20 respectful of Pat Hauser's -- what he had said, and I didn't
21 realize the impact with all the different -- the laws or the
22 information that's already on the books with zoning, and so
23 that's needs to addressed. If that is already in place
24 right now, then it seems like that the information the
25 applicant's giving is not sufficient yet.

1 CHAIRWOMAN CHAVEZ: Thank you.

2 MS. ASSED: Hello, Madam Chair, Members of the
3 Planning Board -- Commission.

4 CHAIRWOMAN CHAVEZ: Please state your name for the
5 record.

6 MS. ASSED: My name is Samia Assed. I'm a long
7 time citizen of Albuquerque. I raised my kids in
8 Albuquerque; have seven grandkids. I'm a human rights
9 activist. I just want to say I'm part the Muslim community
10 in Albuquerque, and I think this mosque is a necessary
11 community center. It's a necessary prayer space for a very
12 small minority community in Albuquerque. We are larger in
13 numbers but in desperate need of a growth potential.

14 I just want to say one thing, Muslim Americans have a
15 right, a Constitution right to have -- to congregate and
16 create the worship places, places of worship, just like
17 mosques and churches and synagogues. I do believe that the
18 Muslim community will be an open space for the Alameda
19 community. We will be partners and good neighbors and be
20 welcoming of all community members.

21 And one more thing, I do believe and feel sympathy
22 towards the traffic issue, and --

23 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.

24 MS. ASSED: -- I will say -- and I'm so sorry. I
25 think it's -- I just want to extend my hand. You every want

1 to have --

2 CHAIRWOMAN CHAVEZ: Ma'am, your time is up. Thank
3 you. Your time is up.

4 MS. ASSED: Thank you.

5 CHAIRWOMAN CHAVEZ: Okay. Sir, please state your
6 name for the record, and you have one minute.

7 MR. SANCHEZ: I'm Ken Sanchez, the farmer. Let's
8 see. This corridor is already unsafe for the people who
9 actually live and work here, which I am. I live there. I
10 work there. I farm. I have a tractor. It complies with
11 safety. It has flashers. I use the gasoline facility. I
12 fuel up my tractor there at Alameda, north of Second there,
13 just north, the corner.

14 Anyway, this corridor's already unsafe for people who
15 actually live and work there. Residents are still moving
16 tractors along Alameda and Second to farm nearby land, and
17 those vehicles travel slowly. I can get up to about 25, by
18 the way, but you'll be behind me with flashers. They --
19 they do travel slow, but we have a mission. We're
20 cultivating. We're harvesting hay. We're agriculture, it
21 is, and I don't know how many people understand that.
22 Anyway --

23 CHAIRWOMAN CHAVEZ: Thank you, sir.

24 MR. SANCHEZ: Thank you.

25 chairwoman CHAVEZ: Your time is up. Okay.

1 VICE CHAIR GUERRERO: All right. Next five, Karen
2 Meyers, Joe Sackett, Keana Alaniz, Elizabeth Ziers, and
3 Kristi Koppel.

4 CHAIRWOMAN CHAVEZ: Okay. Just read the next
5 five.

6 VICE CHAIR GUERRERO: Natividad Garcia, Eric
7 Sieman, Mary Vallejos, Stephanie Samale and Rashida McCain
8 Hall.

9 CHAIRWOMAN CHAVEZ: Call some more names.

10 VICE CHAIR GUERRERO: Yeah. All right. Then we
11 Josie Alderete, Coleman Walker, Kathy Carrillo, Justin
12 Rogers, and Valerie Garcia.

13 CHAIRWOMAN CHAVEZ: If we've called your name,
14 please move to this wall nearest the podium. All right.
15 Ma'am. And if you're lined up, please raise your hand,
16 right hand. Swear to tell the truth?

17 SPEAKERS: Yes.

18 CHAIRWOMAN CHAVEZ: Please step up to the podium.
19 Name for the record.

20 MS. GALLEGOS: Yes. My name is Mary Jo Gallegos,
21 and I strongly oppose this mosque project. Islam is not
22 merely a religious doctrine but a comprehensive
23 socioeconomic and political system that seeks to impose
24 Sharia law in our communities and our states. Sharia's
25 foundational premise is anti-American and anti-equality.

1 It's subjugates women and brutally punishes
2 transgressors, particularly homosexuals and apostates.
3 Women are considered second class citizens. Few of their
4 laws, Sharia never abolished slavery, including sexual
5 slavery. A master cannot be punished for killing a slave.
6 Sharia dictates stoning, beheading, and amputation of limbs,
7 flogging, even for crimes of sin as -- as adultery.

8 Homosexuality is punishable by death, and as we heard
9 earlier, there's no age limit for girls. That's pedophilia,
10 and it's a horrific crime against our children.

11 You know, we're celebrating our 250th birthday as
12 Americans.

13 CHAIRWOMAN CHAVEZ: Thank you, ma'am.

14 MS. GALLEGOS: Our freedom and liberties --

15 CHAIRWOMAN CHAVEZ: Thank you.

16 MS. GALLEGOS: -- this goes against it all.

17 CHAIRWOMAN CHAVEZ: Thank you. Can you please
18 tell -- we have -- your name.

19 MS. GALLEGOS: Mary Jo Gallegos.

20 CHAIRWOMAN CHAVEZ: Mary Jo Gallegos. Did you
21 sign up on this?

22 MS. GALLEGOS: Yes.

23 CHAIRWOMAN CHAVEZ: Okay. Come on. Move forward,
24 folks. Who's -- raise your right hand if we haven't already
25 sworn you in, please. Swear to tell the truth?

1 Okay. Step up to the podium. Name for the record.

2 MS. CARRILLO: My name is Cathy Carrillo, and I'm
3 speaking for the residents who live north of Alameda where
4 Alameda is our only outlet to the rest of the City.

5 This appeal is not about religion. It's about the land
6 use, roadway, safety, and emergency access. For our
7 neighborhood, every emergency, heart attack, stroke, serious
8 injury, house fire, depends on one thing, that the
9 ambulance, fire trucks, and deputies can move along Alameda.
10 When the road is blocked or congested, those minutes can
11 mean the difference between life and tragedy. I know this
12 personally.

13 On December 15th, 2025, my special needs daughter was
14 aspirating when I picked her up from school at La Cueva. I
15 called the ambulance and asked them to meet me at my home
16 near Alameda and Rio Grande. This was about 3:30, and
17 thankfully the traffic was light. If there had been a
18 crash, a backup on Alameda, I could have lost my daughter
19 that day.

20 CHAIRWOMAN CHAVEZ: Thank you.

21 MS. CARRILLO: So I'm here -- that you would
22 oppose that.

23 CHAIRWOMAN CHAVEZ: Thank you.

24 MS. CARRILLO: Thank you.

25 CHAIRWOMAN CHAVEZ: Come up. Step up. Name for

1 the record, please.

2 MS. ALDERETE: Josie Alderete.

3 CHAIRWOMAN CHAVEZ: Okay. You have one minute.

4 MS. ALDERETE: On June 3rd, this item was deferred
5 because more time was required to prepare. Somehow the news
6 stations and -- the local and national, and Mr. Tahat
7 Mohamed, the religious leader, managed to turn it into an
8 ugly ball of Islamophobia. Once again, it seems rhetoric is
9 driving the argument. In this case, the Muslims crying
10 Islamophobia to get their way and to drive capitulation.

11 It's not about that. It's about the building of a
12 50,000 square foot mosque, and it's already effecting the
13 three main arteries. I'm sorry. I just --

14 CHAIRWOMAN CHAVEZ: That's okay.

15 MS. ALDERETE: It's -- it's going to become the
16 crown jewel of the Muslim community, and that's just going
17 to bring more and more traffic to the area. Their numbers
18 don't reflect everything that's there. It's going -- it's
19 not including the visitors, the administrative staff.
20 Parents coming and going, communities.

21 CHAIRWOMAN CHAVEZ: Thank you, ma'am. Your time
22 is up.

23 Please state your name for the record.

24 MS. KOPPEL: Kristi Koppel, and I am with Saint
25 Paul Lutheran church here in town, one of the oldest

1 Lutheran churches in the state. I'm proud that we have
2 several of our members here supporting as well that -- in my
3 experience, as we've joined with our Jewish and Muslim
4 neighbors for interfaith services, gotten to know my
5 neighbors, and I guess I invite us to get to know your
6 neighbor before we condemn everybody by what might be in the
7 headline news. So I know we share tenets of loving God,
8 loving neighbor, and feeding and caring for our neighbors.
9 So I speak in support of community to be able to worship
10 just like I am able to with my community. Thank you.

11 CHAIRWOMAN CHAVEZ: Thank you.

12 Sir, name for the record, please.

13 MR. PAUL: I'm Justin Rogers.

14 CHAIRWOMAN CHAVEZ: Thanks. You have one minute.

15 MR. PAUL: I'm the president of the Asian American
16 Association of New Mexico, and we are in support of the
17 Islamic Center having a new community space on the site they
18 selected.

19 I'm Japanese American. If you know any American
20 history, we know that we know what it's like to be told by
21 neighbors we're unwelcome, but another thing that maybe
22 people know less about is that the first zoning and land-use
23 laws in the United States were in California specifically to
24 exclude Chinese immigrants from operating the laundries and
25 living in certain places. I wish those attitudes were

1 things of the past, but many comments on news stories and
2 petitions and even in Chambers today have shown me they are
3 not.

4 I also grew up attending the tristate Buddhists temple
5 in Denver, and it hurts my heart to imagine the opposition
6 that there were then when it was proposed and constructed
7 before it became a center of the community for nearly a
8 hundred years now. I think a mosque community center can be
9 a benefit to any neighborhood they want to be in, and I to
10 have -- affirm that Bernalillo County is a welcoming place
11 for all. Thank you.

12 CHAIRWOMAN CHAVEZ: Thank you.

13 Ma'am, state your name for the record, please.

14 MS. GARCIA: Valerie Garcia. Good morning,
15 Bernalillo County Planning Commission. My name is Valerie
16 Garcia, and I'm concerned citizen supporting Mr. Hauser's
17 appeal. A-1 zoning is designed for rural, agricultural, low
18 density setting; for example, one single-family house per
19 lot, prioritizing and maintaining a network of open spaces,
20 water protection, compatible rural uses for heritage
21 preservation in this case, the North Valley. This is
22 intended to keep the development sparse and compatible with
23 agricultural and open space values, the standard set by
24 Bernalillo County.

25 Approval for a 50,000 square foot structure to

1 accommodate Albuquerque Islamic Center international rapid
2 growth of its attendees will exceed their current 2,000 plus
3 members is not low density. It is a massive urban
4 development.

5 The public opposing this project looks to government
6 accountability that the documented standards of the
7 Bernalillo County, City of Albuquerque Comprehensive Plan --

8 CHAIRWOMAN CHAVEZ: Thank you. Your time is up,
9 ma'am.

10 MS. GARCIA: -- are properly upheld. Thank you.

11 CHAIRWOMAN CHAVEZ: Name for the record, please.

12 MS. ANAYA: Pauline Anaya.

13 CHAIRWOMAN CHAVEZ: Thank you.

14 MS. ANAYA: Good morning. The applicant today was
15 given an opportunity to describe what he or they were
16 intending, and, again, did not support or show supportive
17 materials that were needed for zoning. What this is about
18 is about zoning, and we're trying to protect our
19 communities. It's not about anything else, but people like
20 to present other areas and information that do not pertain
21 to what is being asked.

22 Mr. Hauser outlined all aspects of what was needed in
23 order to approve the zoning requirements and also include a
24 cultural and heritage preservation that needs to be
25 addressed. So it's being framed as being racist or bigoted

1 is kind of confusing to me. I know that my property backs
2 up to the Homeland street off of Saint Frances, and to be
3 told that all I needed to do was just to look at a high wall
4 around a two-story building, that that would be not an
5 issue. So that would not be in line with --

6 CHAIRWOMAN CHAVEZ: Thank you, ma'am. Your time
7 is up.

8 MS. ANAYA: -- what our practices are and our
9 present zoning is about.

10 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.
11 Okay. So we're going to call a few more names before
12 we start (inaudible).

13 VICE CHAIR GUERRERO: Okay. Patricia Lopez, Seth
14 Finch, Pauline Anaya, Eva Gonzales, Diana Clark, and Steve
15 Carlson.

16 CHAIRWOMAN CHAVEZ: Please move to this wall
17 closest to the podium.

18 Okay. Sir, please state your name for the record.

19 MR. WALKER: Coleman Walker.

20 CHAIRWOMAN CHAVEZ: Thank you. You have one
21 minute.

22 MR. WALKER: So I was born here in Albuquerque. I
23 lived here my whole life, and going to the Islamic Center of
24 New Mexico and Albuquerque Islamic Center, you will not find
25 a more welcoming group of people for everyone.

1 I appreciate any genuine concern with traffic and all
2 of these things, and the hands go up in support when people
3 bring that up, but the hands also go up in support when
4 people come up other and they say the most vile things. So
5 I don't think that it is all coming from a good place, and I
6 know that our community, wanting to help the broader
7 Albuquerque Islamic Center, the Albuquerque community will
8 do everything that we can to make sure our neighbors are
9 safe and happy and well-accommodated. That's it.

10 CHAIRWOMAN CHAVEZ: Thank you. Okay. For those
11 next in line to speak, please raise your right hand. Swear
12 to tell the truth?

13 Come on up to the podium, sir. You have one minute.

14 MR. FINCH: Hi. My name is Seth Finch. I'm one
15 of the co-pastors at Covenant Presbyterian Church in the
16 Northeast Heights. We're a block away from the current
17 Albuquerque Islamic Center.

18 And I come to speak in favor of the Islamic Center,
19 because we've had nothing but could relationships with them
20 for all the time that they've been there. You know, in my
21 tradition, Jesus teaches us what a good neighbor is using
22 the story of the Good Samaritan, and two people who were of
23 the same religion passed by somebody in need, but it's the
24 person who showed compassion that was the good neighbor.

25 And that's what we've experienced from the Islamic

1 community in our neighborhood. We have women from that
2 community who help take care of our kids on Sunday mornings.
3 We've done feeding programs with them over the years, and
4 there's not a Ramadan where we haven't been invited to come
5 have meals with them, and I'll tell you what, if you're
6 really nice, maybe, mom Paja (sic) will cook for you,
7 because, man, you haven't lived until that's happened.

8 And so I just implore the folks in the North Valley to
9 take advantage of having a wonderful new neighbor.

10 CHAIRWOMAN CHAVEZ: Thank you, sir.

11 Ma'am, please state your name for the record.

12 MS. CLARK: Yes. My name is Diana Clark, and I
13 live in Rio Rancho, and I want to be in sink with the
14 Alameda community. What I think is not because -- I don't
15 know why everyone has this wrong idea that everybody is
16 upset about the mosque. We're not. We're upset about the
17 traffic. It only effects -- doesn't only effect Alameda and
18 Second. Every single street in the North Valley is going to
19 be effected by traffic. Anybody trying to get to the West
20 Side is going to use the residential streets to miss the
21 traffic. So that's what I complain about, and that's what I
22 wish that you would consider, the Alameda residents, and you
23 consider the North Valley residents, what the impact is
24 going to be. Thank you.

25 CHAIRWOMAN CHAVEZ: Thank you. Okay. Who's next

1 to sign -- did you design up to speak, sir?

2 SPECTATOR: We came -- we came early, and I asked
3 the young man where I had to sign to speak, and he told me
4 on that sheet to sign, and there was only a few people ahead
5 of us, my wife and I. She signed after, but we've never
6 been called.

7 CHAIRWOMAN CHAVEZ: So, we have -- there's still a
8 lot more folks to be called. I'm sure, if you signed up, we
9 will get to you.

10 SPECTATOR: I thought you said that was the end.

11 CHAIRWOMAN CHAVEZ: No, no. No, we have pages
12 left to go.

13 VICE CHAIR GUERRERO: We -- we got through four of
14 ten.

15 CHAIRWOMAN CHAVEZ: Yeah.

16 VICE CHAIR GUERRERO: To give you an idea. All
17 right. Let me call these names again. Okay. So ended with
18 Steve Carlson. Now, we have Ryan Tate and Zach Correa, I
19 think, Alex Stevenson, Ronnie Apodaca, Rosie Apodaca, and
20 Larry Sonntag.

21 CHAIRWOMAN CHAVEZ: All right. We have -- we have
22 some folks. Please raise your right hand if you're lined up
23 to speak. Swear to tell the truth?

24 Okay. Please step up to the podium and state your name
25 for the record.

1 MR. APODACA: My name is Ronnie Apodaca. I have
2 some pictures here, because everybody's talking about the
3 traffic, congestion, and all that. I got pictures here
4 showing actually what you guys can see it, because -- go on
5 there. I've got a few other pictures there on -- one of the
6 -- where they're going to build the establishment on Second
7 north of Alameda. The lane end -- goes into one lane, also.
8 So I don't know how they're going to get to parking for that
9 area there.

10 And then we, also, we got a picture of the dispensary.
11 There's still going to be a school there. You know, you got
12 kids going to school. They're going to ask, "What's this
13 about? What's a dispensary?" So that's another issue
14 there. Then also, the views. Well, we already used to
15 seeing the Sandias. The two-story building is going to
16 block the Sandia view and also the balloons, and uh, fire
17 department, police department, there have to be -- you know,
18 get through all that right there. Well, basic, me and wife
19 were there yesterday, and there was a man passed out on the
20 road, so --

21 CHAIRWOMAN CHAVEZ: Thank you, sir. Thank you.
22 Your time is up.

23 Please state your name for the record.

24 MS. APODACA: Rosie Apodaca.

25 CHAIRWOMAN CHAVEZ: Thank you.

1 MS. APODACA: Well, I just want to say I was born
2 and raised right there in Alameda. My parents are both 95.
3 The thing about the traffic is when my parents get ill, they
4 have appointments. To get out of Guadalupe Trail it's hard
5 going down Alameda, and that's what worries me. I have, you
6 know, four sisters, two brothers, and we all try to help
7 out, especially our parents at 95, and seeing this traffic,
8 it's really, really awful, but the community in Alameda, we
9 all stick together. It's nice, quite community, and I -- I
10 just want to say I've been there all my life, and I just
11 want to thank you for letting us all speak and talk about
12 how bad and serious it can be, because a fireman and
13 policeman sometimes can't even get to my parents' house, and
14 I'm a crybaby, so knowing that my parents need that help, we
15 need to stop this.

16 CHAIRWOMAN CHAVEZ: Thank you. Please state your
17 name for the record.

18 MR. STEVENSON: My name is Alex Stevenson. I am
19 an Albuquerque resident for 15 years. I'm here to speak in
20 opposition to the appeal and in support of the Islamic
21 Center. I read the appeal when I first learned about this
22 matter a month and a half ago. I noticed it was poorly
23 written, riddled with spelling, grammar, and factual errors
24 not indicated -- not indicative of someone with a -- with
25 experience in civil engineering.

1 I was surprised that the document of this quality would
2 be entertained by the Commission, but I also did not fall
3 off the cabbage truck yesterday. I know what the real
4 reason for this appeal is, and it's been -- in talking with
5 people a month -- a month ago at the meeting, reading the
6 on-line comments, and now hearing these comments today is
7 very clear that is this cultural war issue. The traffic
8 concerns the people are addressing are simply a smoke screen
9 for it.

10 Commissioners, I want to address -- I want to address
11 you all with dignity and truth, and I think that we all
12 understand, as you are all educated people, you understand
13 the reality of how this country is and I encourage you --

14 CHAIRWOMAN CHAVEZ: Thank you, sir.

15 MR. STEVENSON: -- to decide based on that.

16 CHAIRWOMAN CHAVEZ: Your time is up.

17 I'm going to ask the audience, again, to please refrain
18 from those outburst. They won't be tolerated.

19 Go ahead.

20 MR. TATE: I state my name as Reverend Dr. Ryan
21 Tate.

22 CHAIRWOMAN CHAVEZ: Thank you.

23 MR. TATE: Good morning, Madam Chair and
24 Committee. And thank you for this opportunity to speak. As
25 I previously stated, my name is Reverend Dr. Tate, Chaplin

1 and youth minister at First Congregational United Church of
2 Christ and head pastor at First Spiritual Church of Rio
3 Grande.

4 In 1978, the American Indian Religious Freedom Act was
5 enacted, finally protecting the rights of our indigenous
6 siblings to observe medicine and tradition in the way their
7 ancestors did. On May 28th, this years, Code Noir, a legal
8 mandate established in the colony and State of Louisiana in
9 1685 banning African religion was finally repealed.

10 Religion as a sociological phenomena is inextricably linked
11 with culture and is, thus, an unfortunate subject of racism
12 and bigotry.

13 Islamophobia runs rampant, and while anyone can take
14 the Shahada, while anyone can be Muslim, Islamophobia is
15 fueled by a thick anti brown sentiment veiled under pearl
16 clutching ignorance and religious grandstanding.

17 CHAIRWOMAN CHAVEZ: Thank you.

18 MR. SONNTAG: My name is Larry Sonntag, Madam
19 Chair and Commissioners. I'm here representing Better
20 Together New Mexico, thousands of Albuquerque residents,
21 Bernalillo County residents, and New Mexicans who are
22 willing to stand up for one the cultural and historical
23 jewels of our states. The North Valley deserves growth and
24 respect for the neighborhood character, infrastructure
25 limits, and the quiet rural heritage residents have worked

1 to preserve.

2 You've heard passionate pleas from those that live next
3 to where this development is planned, and we urge you to
4 protect the North Valley's rural and agricultural identity
5 by rejecting this development. It's not in scale with the
6 surrounding neighborhoods. Require clear answers on
7 infrastructure and compatibility including emergency access,
8 drainage, hours of operation, and long-term neighborhood
9 impacts.

10 We have 1,500 signatures, mostly from Albuquerque and
11 this area, although there are some from New Mexico.

12 CHAIRWOMAN CHAVEZ: Thank you.

13 MR. SONNTAG: You have a copy of this, and I will
14 leave you a copy.

15 CHAIRWOMAN CHAVEZ: Thank you. We are going to
16 take a 15-minute break. We will be back shortly.

17 (Note: Hearing in recess at 1:16 p.m.

18 and reconvened at 1:40 p.m.)

19 CHAIRWOMAN CHAVEZ: All right. You ready, sir.
20 So we're going to proceed with the process. We're going to
21 calling names. Please come up to this wall. We will ask
22 you to state your name for the record, to be sworn in.
23 Okay.

24 VICE CHAIR GUERRERO: Okay. All right. So next
25 five, Megan Yociss, Serena Saavedra, Manuel Lucero, Linda

1 Lucero, and Mary Jo Gallegos.

2 CHAIRWOMAN CHAVEZ: Raise your right hand. Swear
3 to tell the truth? Name and -- for the record.

4 MS. YOCISS: Megan Yociss. So I'm just here to
5 comment in support of the Islamic community center in the
6 North Valley. I want to thank you-all for letting everyone
7 comment. I know there's a not of people. So I am
8 sympathetic to people's concerns about traffic, but as some
9 other people have said, freedom of religion is an American
10 right, and I think we can actually expand religion --
11 religious freedom and also kind of mitigate some of the
12 traffic issues in the same way, which is we could improve
13 public transit so that people can make it to church who
14 don't have cars or don't reliable transportation, and that
15 would also improve the traffic very much. Thank you.

16 CHAIRWOMAN CHAVEZ: Thank you.

17 All right. Sir, come on up.

18 MR. LUCERO: Which one?

19 CHAIRWOMAN CHAVEZ: You.

20 MR. LUCERO: Thank you.

21 CHAIRWOMAN CHAVEZ: Please raise your right hand.
22 Swear to tell the truth? You can raise your right hand as
23 well. Swear to tell the truth?

24 MR. LUCERO: Yes. Thank you.

25 CHAIRWOMAN CHAVEZ: Okay. Name for the record.

1 MR. LUCERO: Manuel Lucero.

2 CHAIRWOMAN CHAVEZ: Mr. Lucero, you have one
3 minute.

4 MR. LUCERO: Thank you. I was born in Martinez
5 Town. I was raised in Los Ranchos, and since I've been
6 married, almost 58 years, we've lived Alameda. So it's a --
7 that community is a small community, and it's -- most of the
8 people have a large -- large areas of living. You know,
9 they have an acre, half an acre, and so forth. So the
10 community in -- that's Alameda is -- I know I heard the
11 gentleman with the red hat said that it was a facade about
12 the traffic jams. It's not.

13 I have three to four appointments at the VA Hospital
14 almost every week, and I have to get up there by 8:30 in the
15 morning, and it's almost impossible, and my son works in Los
16 Lunas, as he trains supervisors for Wal-Mart, and he has to
17 pick up his daughter sometimes at our home on -- 10038
18 Second, which is Sanchez Road. He picks her up. He has to
19 wait there 'til about 6:00 o'clock in the afternoon before
20 they can go home across -- so they can go across the river
21 to where they live on the West Side. So it's not a facade.
22 It's dangerous. It's -- what's going to happen is the whole
23 dema- -- dema- -- what's it --

24 CHAIRWOMAN CHAVEZ: Thank you, sir.

25 MR. LUCERO: That thing scared the heck out of me.

1 CHAIRWOMAN CHAVEZ: Thank you.

2 MR. LUCERO: But the whole thing --

3 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.

4 MR. LUCERO: Well, I used to be in mind fields, so
5 when you hear something like that, you duck. Anyway --

6 CHAIRWOMAN CHAVEZ: Your time is up.

7 MR. LUCERO: Anyways, the whole thing, the demo --
8 the things are going to be changing in the North Valley.
9 There's not going to be --

10 CHAIRWOMAN CHAVEZ: Thank you.

11 Come on up to the podium.

12 MS. SAAVEDRA: Hello.

13 CHAIRWOMAN CHAVEZ: Name for the record, please.

14 MS. SAAVEDRA: Serena Saavedra. I want to say
15 good morning and thank you for this opportunity. I'm here
16 to, I guess, tell you that I'm not for this. And my
17 concerns are about whether the project of this size is
18 appropriate for this particular location and whether the
19 surrounding infrastructure can support it. The North Valley
20 has a unique borough and an agricultural identity that many
21 families have worked hard to preserve for generations.

22 As growth continues, I believe new developments should
23 be carefully evaluated to ensure they're compatible with
24 existing land and the character of the area and community.
25 I respectfully ask the Commission to carefully consider

1 these concerns and determine whether this proposal is truly
2 right for the North Valley community. Thank you for your
3 time and consideration, and I also would like to say that as
4 citizens, we do have a right to our beliefs and religion,
5 but we also have a right to our own beliefs and going
6 against that and protecting our values. So thank you.

7 CHAIRWOMAN CHAVEZ: Thank you.

8 Okay. Who's next? You got more?

9 VICE CHAIR GUERRERO: Oh, I'm sorry. All right.
10 Still getting used to this job. Okay. So Linda Lucero,
11 Joyce Lesperance, Loretta Perez, Marjorie Buck, and Hannah
12 Scanlon.

13 CHAIRWOMAN CHAVEZ: Are any of those folks here?
14 Continue to read some more names.

15 VICE CHAIR GUERRERO: All right. Mohammed
16 Rasheed, Josette Tarin, Cerah Vela, Peter Schoenburg.

17 CHAIRWOMAN CHAVEZ: Okay. We have more. Read
18 some more.

19 VICE CHAIR GUERRERO: Moving right along. Okay.
20 Daren Crespín, Sigrid Olson, Erica Lea Simka, Chris Myers,
21 and Sara Carlen.

22 CHAIRWOMAN CHAVEZ: Okay. Sir, please raise your
23 right hand. Swear to tell the truth. Step up to the podium
24 and give us your name, please.

25 MR. RASHEED: My name is Mohammed Rasheed, and I

1 want to start by sharing with the mosque has taught me. It
2 has taught me to be kind to my neighbors, to keep close ties
3 with friends, to give charity, to care for orphans, and
4 always standing up for the truth.

5 To the mosque, I've only become a better person, and I
6 believe any place of worship that pushes people to become
7 better, whether it's a mosque, a church, or a synagogue, is
8 something good for our whole community. This mosque has
9 given me a safe space to grow up in Albuquerque. It has
10 kept me away from bad decisions and bad crowds. For me, the
11 mosque is more than just a place of worship. It helped save
12 me, and today we ask that this neighborhood does not bury
13 our dreams but instead allow us to keep building something
14 that benefits and betters our people and community. Thank
15 you.

16 CHAIRWOMAN CHAVEZ: Thank you.

17 Next. Raise your right hand. Swear to tell the truth?

18 MS. SIMKA: I affirm.

19 CHAIRWOMAN CHAVEZ: And your name for the record.

20 MS. SIMKA: Reverend Erica Lea Simka.

21 CHAIRWOMAN CHAVEZ: Thank you. You have one
22 minute.

23 MS. SIMKA: I'm a pastor and a parent. I'm on
24 staff for the New Mexico Conference of Churches, and my
25 organization for over 60 years has built partnerships across

1 Christian religious difference. Our constituency includes
2 Presbyterians, Lutherans, Disciples of Christ, United Church
3 of Christ, Mennonite, Episcopalian, United Methodist,
4 Catholics, and a partridge in a pear tree.

5 We believe communities are strongest when there are
6 opportunities for free and peaceful expressions of diverse
7 spiritualities, and when there are neighborly, cordial
8 working relationships. I have found personally and
9 professionally the Muslim Community in Albuquerque to be
10 beyond cordial and neighborly, beyond considerate. In fact,
11 they have been generously hospitable and model neighbors,
12 especially through caring for the poor and remaining in
13 dialogue with faith leaders like myself, especially during
14 Ramadan, but year round as well.

15 I'm confident the proposed site for the new AIC
16 building will bring important community support --

17 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.

18 VICE CHAIR GUERRERO: All right. I had Chris
19 Myers, Sara Carlen, Stephen Vann, June Parsons, and Michael
20 Apodaca.

21 CHAIRWOMAN CHAVEZ: Okay. Call some more.

22 VICE CHAIR GUERRERO: Okay. Esther Romero, Yvonne
23 Martinez, Gwen Poe, Cyndi Bemis.

24 CHAIRWOMAN CHAVEZ: Sir, come up to the podium.
25 Please raise your right hand. Swear to tell the truth?

1 MR. VANN: I do.

2 CHAIRWOMAN CHAVEZ: Name for the record.

3 MR. VANN: My name is Stephen Vann. I'm a
4 historian, nationally certified emergency nurse, and a Jew.
5 In all three of these roles, I've seen this happen before.

6 Today you've heard from many people regarding their
7 concerns about legitimate material conditions like traffic,
8 noise, and small business success. The reason that you have
9 heard these concerns is because the defacto leaders of the
10 opposition have coached these speakers explicitly not to
11 speak regarding their true objections.

12 In 1933, it was my people facing these tactics. The
13 target may have changed but the tactics are the same. The
14 turning of the apparatus of state against minority people
15 under the disguise of legitimate legal concerns, this is a
16 classic hallmark of fascism, and we say never again. Will
17 you be of the tools of fascism today? Thank you.

18 CHAIRWOMAN CHAVEZ: Ma'am, step up to the podium,
19 please. Raise your right hand. Swear to tell the truth?

20 MS. MARTINEZ: I do.

21 CHAIRWOMAN CHAVEZ: Name for the record.

22 MS. MARTINEZ: My name is Yvonne Martinez, and I
23 live in the North Valley. I live just north of Alameda on
24 Guadalupe Trail, and this is about the traffic, guys. It's
25 about the area and what we're going through over there. I

1 don't know that you live up there or not, but I live there,
2 and I have to go through this every single day, traffic
3 coming down from Rio Rancho, traffic going up. Emergency
4 vehicles can't even get by. They have to moved cars so that
5 they can get by. This is just going to be added traffic.
6 Are we to go tear off Second -- tear up Second Street to --
7 to widen that one? I mean, Fourth Street was already cut
8 off with one lane ear and then two lanes and then another
9 one lane now. Second Street is one lane in a certain area.
10 Come on. We're dying here.

11 I don't care about your religion. I don't care what
12 you practice. We're talking about the North Valley, that
13 area, the traffic. That's what we're talking about here.

14 CHAIRWOMAN CHAVEZ: Thank you.

15 MS. MARTINEZ: Sure.

16 CHAIRWOMAN CHAVEZ: Come on up. Raise your right
17 hand. Swear to tell the truth?

18 MS. PARSONS: I do.

19 CHAIRWOMAN CHAVEZ: Name?

20 MS. PARSONS: June Parsons.

21 CHAIRWOMAN CHAVEZ: Thank you. You have one
22 minute.

23 MS. PARSONS: Your Honors, thank you for the --
24 listening to our fellow Americans. As a New Testament
25 Christian, grateful for the freedom to worship in my

1 Methodist church and a strong proponent of the US
2 Constitution with it's First Amendment protections of
3 freedom of religion for all Americans.

4 I stand to speak respectfully in support of this
5 multi-cultural community project by my fellow Americans as
6 Muslim believers, believers in God, believers in the Virgin
7 Mary, believers in the Virgin birth, believers in Jesus and
8 his teachings. That is 2.5 billion Christians on this
9 planet. Believe in Jesus and his teachings. Two billion
10 Muslims believe in Jesus and his teachings. I stand to
11 testify on the new covenant --

12 CHAIRWOMAN CHAVEZ: Thank you, ma'am. Your time
13 is up.

14 MS. PARSONS: Thank you.

15 VICE CHAIR GUERRERO: All right. Damon Kester,
16 McClelland -- I can't read the first name.

17 CHAIRWOMAN CHAVEZ: Nakaena.

18 VICE CHAIR GUERRERO: Nakaena. Natalie Reyes,
19 Jerome Chavez, and L. or C. Winalt, Winart. Okay. Keep --
20 Rosalind Cooper, Reverend Vincent Chavez, Rosemary
21 Blanchard.

22 CHAIRWOMAN CHAVEZ: Come on up to the podium,
23 please. Please raise your right hand. Swear to tell the
24 truth, all of you? There you go. Thank you.

25 Name for the record.

1 MS. COOPER: Rosalind Cooper. I think I'm out of
2 order. Is that okay?

3 CHAIRWOMAN CHAVEZ: That's okay.

4 MS. COOPER: Not out of the order that way.

5 CHAIRWOMAN CHAVEZ: Right. Good.

6 MS. COOPER: I'm here -- it's hard -- you cannot
7 take emotions out of this, but I am a native Albuquerquean,
8 native New Mexican. I have grown up in the north --
9 Northeast Heights, but I love the North Valley, and I'm here
10 to support my neighbors and my friends in the North Valley,
11 and I walk down there, and I go to Jericho and all the
12 different, you know -- and go up to the Bacheci. So I love
13 the area, and I hate to see it -- the view of it and then
14 the ambiance of the rural, the agricultural neighborhood,
15 and so perhaps our neighbors can find a more appropriate, a
16 bigger spot where they won't effect traffic even more than
17 it -- it's already a big problem. So I'm in support of what
18 Mr. Hauser had said, and I agree with my neighbors.

19 CHAIRWOMAN CHAVEZ: Thank you.

20 MS. COOPER: Thank you.

21 CHAIRWOMAN CHAVEZ: Name for the record.

22 MR. CHAVEZ: Jerome Chavez.

23 CHAIRWOMAN CHAVEZ: Mr. Chavez, you have one
24 minute.

25 MR. CHAVEZ: Thank you. I -- I come here speaking

1 as -- my family was the previous occupants of that land, and
2 I am in support of this mosque. My grandfather, David
3 Chavez, came back from World War II after -- after surviving
4 the Bataan death march, raised his family on that land and
5 irrigated it through the acequias, which coincidentally is
6 part of Islamic tradition.

7 And despite everything he went through, he always
8 welcomed people and always wanted to build community, and I
9 support this mosque because unlike all the other businesses
10 there, this will help build community, and all the people
11 here using zoning to support bigotry and Christian fascism,
12 you do not speak for Alameda. You do not speak for my
13 family, and I -- and I support this mosque through -- build
14 community for generations to come. Thank you.

15 CHAIRWOMAN CHAVEZ: Thank you.

16 Name -- name for the record, please.

17 MR. V. CHAVEZ: Father Vincent Chavez, Saint
18 Terese Catholic parish and Catholic school the North Valley.
19 I would hope that this issue is not about racism, which is a
20 grievous sin against God's love. Noble Islam is a religion
21 of Abraham as is Christianity and Judaism. Jesus is a
22 prophet of Islam. Muslims set up Nativity sets of the
23 infant Jesus, Mary and Joseph at Christmas.

24 I would love a mosque next to me, and the oldest mosque
25 in New Mexico is at Abiquiu. The architecture that -- of

1 that is stunning. You should look at the architecture for
2 your plan. Let us not be influenced by ignorance and
3 racism. We have freedom of religion in these United States,
4 and Nativity Church's bells and Noble Islam's call to prayer
5 are the worship sounds of humanity. Thank you,
6 Commissioners.

7 CHAIRWOMAN CHAVEZ: Thank you.

8 Sir, come on up. Name for the record.

9 MR. WINANT: My name is Chuck Winant. I live
10 between Second and Fourth just south of Alameda. Every year
11 as the Balloon Festival comes into town, me and my wife get
12 out 'cause of the traffic. Having -- having said that --
13 having said that, I would welcome that mosque down the
14 street, and it falls upon the failures of the zoning and
15 highway department previously for letting stuff get so
16 congested up there, but to use it as an excuse me against
17 Muslims, screw that. I was a Christian soldier once, never
18 again.

19 CHAIRWOMAN CHAVEZ: Thank you, sir.

20 Ma'am, raise your right hand, please. Swear to tell
21 the truth?

22 MS. BLANCHARD: I so affirm. Quakers don't swear.

23 CHAIRWOMAN CHAVEZ: Okay.

24 MS. BLANCHARD: There's freedom of religion in the
25 country, and we get to do that.

1 CHAIRWOMAN CHAVEZ: Name for the record.

2 MS. BLANCHARD: Name for the record is Rosemary
3 Blanchard, and I live in the North Valley. And as I -- you
4 can tell from my affirmation, I'm a practicing Quaker with
5 Albuquerque Friends Meeting, and I welcome the Islamic
6 Center as good neighbor in the North Valley where I live.

7 The proposed Islamic Center will be a gift to the
8 quality of life in our North Valley community. So much has
9 been said, especially at this hearing, and in the visible
10 responses of so many attendees at the meeting that make it
11 clear that religious prejudices, Islamophobia, and fear of
12 the other are so intermixed with the objections to this
13 center that I can't see how this appeal could be granted
14 without the County government, my government rewarding hate
15 and validating the worse kind of prejudice. We are better
16 than this or at least we can be, and I hope you will be,
17 too.

18 CHAIRWOMAN CHAVEZ: Thank you. Okay.

19 VICE CHAIR GUERRERO: All right. Richard
20 Gutierrez, Mary Steele, Catherine Telles, I wants to say,
21 Angela Herrera, Abraham Ruiz. Okay. Charles Bates, Sandra
22 Lovato, Paul McGinnis, Jonathan Juarez and Raife Juarez.
23 Keep going. Barbara Seaton, Anwar Al-Aghbary, Ruben and
24 Mary Nunez, Marcie May, Marian Bock. All right.
25 Christopher Paul Hedinjon (sic) not speaking. Okay. Thank

1 you. Iris Flechsenhaar, Dennis Bolling, Joshua James
2 Lawrence.

3 CHAIRWOMAN CHAVEZ: Okay. All right. Thank you.
4 Please raise your right hand. Swear to tell the truth?

5 Okay. Come up to the podium, and please state your
6 name for the record.

7 MS. TELLES: My name is Catherine Telles, and I'm
8 here -- I agree with Mr. Hauser on everything they said
9 about the traffic, and so I'm not going to reiterate about
10 anything about that, but I do take offense to Mr. Tahat
11 saying that he's here to make the North Valley better.

12 My grand -- my great grandsons will be the sixth
13 generations of people that have lived and moved out of the
14 North Valley -- well, they haven't moved out, because
15 they're only babies -- but have lived in the area, and for
16 him to insinuate that it needs to be better by a mosque in
17 that area makes no sense. It -- it will create a lot more
18 congestion. And as far as him being concerned about the
19 insects and the dust and things he was concerned about is
20 obvious that he has never lived in the North Valley or any
21 valley, because there's insects and dust when you have a
22 rural area. Thank you very much.

23 CHAIRWOMAN CHAVEZ: Thank you.

24 Please state your name for the record.

25 MS. FLECHSENHAAR: Iris Flechsenhaar.

1 CHAIRWOMAN CHAVEZ: Thank you.

2 MS. FLECHSENHAAR: Hello. I'm a North Valley land
3 steward. Madam Chair, Planning Commission, thank you so
4 much for letting me speak today in support of Mr. Hauser's
5 appeal. June 13th, 2024, Bernalillo adopts the updated
6 Comprehensive Plan. Madam Chair, Ms. Barbara Baca
7 expressed, "It is extremely important that the newly adopted
8 Comprehensive Plan has strong policies that address climate
9 change and require that we consider water availability in
10 our land use and planning decision making."

11 Bernco's mission is to be an effective steward of
12 County resources. Please thorough reexamine and seriously
13 consider a great impact as approval of high density, massive
14 urban developments have -- in precious open spaces and AIs
15 -- and A-1 zones. We have a clear guideline specifically
16 created for preserving invaluable and irreplaceable natural
17 resources, especially concerning our water, open space,
18 drainage, and green water storm systems.

19 CHAIRWOMAN CHAVEZ: Thank you.

20 MS. FLECHSENHAAR: Thank you. God bless you
21 moving forward.

22 CHAIRWOMAN CHAVEZ: Please state your name for the
23 record.

24 MS. MAY: Marcie May. I'm speaking in opposition
25 to this -- to this Islam mosque being put in there. A-1 is

1 for ranching, farming, livestock keeping, sale of on-site
2 products, permissive. Whereas, C-1 is prohibited --
3 agricultural use is prohibited. Why would we have a group
4 come in to take -- or to get that land when that's
5 specifically not what it's -- what they are wanting to do?
6 And when he did the elevation site, he only did it from
7 Second Street, not from Fourth Street, which you're going to
8 be able to see the whole mosque behind those buildings, and
9 I do take offense to people who are calling us Islamophobes
10 when clearly if you don't agree with Islam or you don't want
11 to become Muslim, that you're sentenced to death. If your a
12 women, you're subjugated. You can be a child rapist.
13 That's just wrong, and, you know, people have the right to
14 decide what they're going to talk about up here --

15 CHAIRWOMAN CHAVEZ: Thank you, ma'am. Your time
16 is up.

17 MS. MAY: Not what you want them to. Thank you.

18 CHAIRWOMAN CHAVEZ: Sir, please state your name
19 for the record.

20 MR. BOLLING: Good afternoon. I'm Dennis Bolling,
21 and I'm speaking in support of the appeal. I think Pat
22 Hauser has said everything that needed to be said. Things
23 weren't done that should have been done, done in the
24 beginning. So I think there's only one way to -- to figure
25 this out, and that is to give it more time to get the plan

1 in as it should be. Thank you.

2 CHAIRWOMAN CHAVEZ: Thank you.

3 VICE CHAIR GUERRERO: Okay. We have Jose and
4 Delia Lopez, Grace Dukes, Tori Smith, Pete Padilla, Judith
5 Padilla, Geneva Harstine.

6 CHAIRWOMAN CHAVEZ: Keep going.

7 VICE CHAIR GUERRERO: Lourdes Kirby. I think that
8 might be it.

9 CHAIRWOMAN CHAVEZ: Hold on just a second. We
10 will offer an opportunity for those that maybe didn't make
11 it on the list or if we missed it. Just give us a minute.
12 Okay?

13 All right. Come on up, please. Raise your right hand.
14 Name and address -- name for the record.

15 MS. DUKES: My name is Grace Dukes. I affirm that
16 I will tell the truth. My name is Grace Dukes, and I'm a
17 Bernalillo County resident here in solidarity with my
18 neighbors asking you to deny this appeal.

19 House of worship applied to built. Your zoning
20 Administrator approved it and recommended denying the
21 appeal. Then the process got hijacked. AIC got threats.
22 Neighbors were followed to their cars. Nobody follows their
23 neighbors to their cars over drainage. I'm a transwoman who
24 came here as a refugee fleeing a state that decided people
25 like me shouldn't exist in public. When I watch a mob run

1 my Muslim neighbors out of a government meeting, I know
2 exactly what I'm looking at, because it's the same machine
3 just targeted at a different person.

4 What you decide today tells every future mob whether
5 their strategy pays off, because that's what it is. You
6 take a mob that's loud enough, you aim it at your neighbors,
7 make them unsafe, and see if the government blinks.

8 This was never about the building. It was about who
9 gets to belong in the County. You have a moral duty here to
10 deny this appeal. Show that you will not be the architect
11 of fascism --

12 CHAIRWOMAN CHAVEZ: Thank you.

13 MS. DUKES: -- in Bernalillo County.

14 CHAIRWOMAN CHAVEZ: Next please. Raise your right
15 hand. Swear to tell the truth?

16 MS. HARSTINE: I do.

17 CHAIRWOMAN CHAVEZ: Name for the record.

18 MS. HARSTINE: Geneva Harstine.

19 CHAIRWOMAN CHAVEZ: Okay. You have one minute.

20 MS. HARSTINE: Thank you. In the seven years that
21 I have lived near Albuquerque Islamic Center, I have not
22 found traffic around their services to be disruptive to my
23 daily commute, nor have I found -- had anything about
24 positive interactions with their congregation. We all need
25 community, places to hand out without pressure to spend

1 money, opportunities for children to play sports and learn
2 and accessible spaces where our elders can maintain social
3 connections.

4 Our Muslim relatives deserve this as much as anyone,
5 and I would very much like to see the geometric beauty of
6 the Islamic architecture grace the City that I grew up in.
7 Look at the Doman's rock (sic) or the Moorish fountains that
8 are on the very much rural and agricultural grounds of Los
9 Poblanos in our own North Valley. Intergenerational bonds
10 and diverse neighbors help us see outside our boxes. If the
11 city has room for hundreds of churches, including huge
12 campuses like Calvary and Sagebrush, we can absolutely hold
13 space for the Albuquerque Islamic Center while pursuing
14 robust transit systems. Thank you.

15 CHAIRWOMAN CHAVEZ: Thank you. Okay. Is there
16 anybody out there who did not -- who wants to speak that we
17 did not call your name --

18 VICE CHAIR GUERRERO: Or signed up.

19 CHAIRWOMAN CHAVEZ: -- or signed up? Okay.
20 Please move along that wall. Okay. Please raise your right
21 hand. Swear to tell the truth?

22 Okay. Come up to the podium. Name for the record, and
23 we will need you to spell it out for us.

24 MR. ELDENARRI: Yeah. My name is Ibrahim
25 Eldenarri, first name.

1 CHAIRWOMAN CHAVEZ: Excuse me. They're going to
2 have you sign up over there.

3 MR. ELDENARRI: Okay.

4 CHAIRWOMAN CHAVEZ: Keep going.

5 MR. ELDENARRI: Yeah. So I just what to say I
6 understand the traffic concerns that a lot of people have,
7 and we have also have a lot of Muslims that live in that
8 area. Of course, a lot of us went to La Cueva for school.
9 It's right in that area. So you guys wouldn't be the only
10 ones affected or concerned about the traffic, because we do
11 have people that live there.

12 But most importantly I want to say that our prayers are
13 at five different times of the day, one of them being 4:40
14 a.m. No one's really awake at that time, and our busiest
15 day of prayer is Friday. Friday's when the mosque will be
16 the busiest, and that prayer's at lunch, at around 1:15 to
17 1:30, and that is not going to be a time that interferes
18 with a lot of traffic. Our other time of the prayer be 4:00
19 p.m, 7:00 p.m. or 8:00 p.m., and 10:00 p.m. So those are
20 all times where the mosque isn't really busy besides Friday
21 around lunch.

22 And all those other times are not interfering with the
23 time people get off work and the times that people are going
24 to be out of school. So I understand the traffic concern,
25 but the mosque will not be a huge issue, and I am in favor

1 of the mosque building and against the appeal.

2 CHAIRWOMAN CHAVEZ: Thank you.

3 MR. ELDENARRI: Thank you.

4 CHAIRWOMAN CHAVEZ: Name for the record, please.

5 MS. TOWNES: Reverend Dr. Sarah Townes. I serve a
6 Christian church in District IV, but I came primarily to
7 speak as a neighbor. My personal residence is just down the
8 street from the Albuquerque Islamic Center on Menaul, and I
9 pass by nearly every day, including on Fridays during prayer
10 time. I've never experienced from them any traffic or noise
11 issues or any kind of disruption. They are very quiet and
12 respectful neighbors, and the members that I've met
13 personally have been kind and generous to me.

14 Places of worship are not inconsistent with rural
15 character, and this group has already shown their
16 willingness to listen and work with the neighbors. There
17 are a lot of A-1 zoning uses that would create a lot more
18 noise and traffic and disruption than this house of worship.
19 So based on my own lived experience, the Albuquerque Islamic
20 Center is the kind of neighbor anyone would want to have.
21 So I encourage you to uphold the Zoning Administrator's
22 approval and deny the appeal. Thank you.

23 CHAIRWOMAN CHAVEZ: Thank you.

24 Sir, name for the record.

25 MR. CAMPBELL: David Campbell, attorney at law,

1 and I practiced land use and zoning law in Albuquerque for
2 the last 40 years, And so I'm here to -- I have no client
3 here. I'm here to give you something very rare, free legal
4 advice.

5 I want to make sure that the Commission knows that
6 federal law touches on this and is very specific about
7 situation just like this. There was an act passed 26 years
8 ago called the Religious Land Use and Institutionalized
9 Persons Act of 2000. It -- RLUIPA is what it's acronym is,
10 and RLUIPA bars government from discriminating on the basis
11 of religion or religious affiliation. You have to look at
12 the land use. If you would allow a meeting hall, a charter
13 school, an auditorium, a restaurant, classrooms, then you
14 must allow anything even if it has religious denomination or
15 religious aspects to it.

16 It would be have a violation of federal law to consider
17 this as a religious entity, and I --

18 CHAIRWOMAN CHAVEZ: Thank you, sir.

19 MR. CAMPBELL: -- want to provide that for you.
20 Thank you.

21 COMMISSIONER NELSON: I have something to say. I
22 appreciate very much you're giving us your legal information
23 that we didn't have, but I will tell you that I know that
24 we, Commissioners, do not take into account some of the
25 unfortunate speech about religion that we got from some of

1 the people. It is -- you're hundred percent right. This is
2 only about the zoning.

3 MR. CAMPBELL: And that's consistent with federal
4 law. Thank you.

5 COMMISSIONER NELSON: Well, that's good. We don't
6 want to break the law.

7 CHAIRWOMAN CHAVEZ: Come up to the podium, sir.
8 Name for the record.

9 MR. TRUJILLO: My name is Ted Trujillo. I'm
10 assistant pastor of one of the local churches here and a
11 long-life resident here in Albuquerque. All I want to say
12 is just ask you to take heed to what Pat Hauser already
13 stated in his procedure, and I would say that you go with
14 his recommendation. Thank you.

15 CHAIRWOMAN CHAVEZ: Thank you.
16 Sir, will you sign up. Thank you. Name for the
17 record.

18 MS. CHRISTOPHERSON: Hi. My name is Dr. Lisa
19 Christopherson. I'm a special education teacher, behavior
20 specialist and the founder and executive director of New
21 Mexico Stronger Together, LLC.

22 We stand today representing our board and myself, and
23 we support the permit of the Albuquerque Islamic Center to
24 expand, because they followed the legal process for the
25 permitting process, and they have worked with the neighbors,

1 and they've made meaningful concessions with mutual
2 agreements.

3 I live 12 miles roughly from the ever expanding Legacy
4 Church that is on Central Avenue and 98th Street. Talk
5 about traffic problems because of a place of worship. I
6 graduated from high school in Corrales before the expansion
7 in Rio Rancho, before the Montano bridge, before the Paseo
8 Del Norte. I understand about Alameda, 'cause that was the
9 only way we could get across into Albuquerque from Corrales,
10 so talk about traffic changes since the '80s, progress. I
11 have never protested. I have never written a complaint
12 about all of the six minutes I have to wait every single
13 Sunday trying to go down Central Avenue, because I support
14 my community. The more prayer we have, the better. So
15 traffic does need to be addressed on Alameda --

16 CHAIRWOMAN CHAVEZ: Thank you.

17 MS. CHRISTOPHERSON: -- and it would need to
18 anyways.

19 CHAIRWOMAN CHAVEZ: Thank you.

20 Please state your name for the record.

21 MR. PRIOR: Yes. My name is Adam Prior. I live
22 in Rio Rancho. I have my GB-98. I'm a general and
23 residential contractor. I'm also running for State
24 Representative 44, which is across the street from where the
25 mosque is wanting to be built. So I'm representing all the

1 people that are in favor of Pat, opposing the mosque, but
2 I'm not opposing it in regards to a religious thing at all.
3 I'm in full support of our First Amendment.

4 It is with traffic and the congestion. I know there is
5 on the books for Fourth and Alameda a Hindu Church as well
6 as that's going to increase the congestion as well. So
7 people that are afraid of congestion, it's just going to get
8 worse. So we need to look at the traffic survey. We need
9 to have a traffic survey, and it needs to get approved for
10 that. Thank you.

11 CHAIRWOMAN CHAVEZ: Thank you.

12 Please state your name for the record. Come on up to
13 the podium. Please state your name for the record.

14 MS. HERICK: My name is Adea Rose Bennett Herick,
15 and I'd like to tell you-all a story.

16 CHAIRWOMAN CHAVEZ: You have one minute to tell
17 that story.

18 MS. HERICK: Long -- long ago, there was a
19 beautiful land that was being subjugated by dictators and
20 demanders. They denied the people their freedom of
21 religious. They denied them their prayer instruments, and
22 they, basically, kind of tortured them with these clamorous
23 bells every morning, and so then that was the set up through
24 the first American revolution. It happened here in New
25 Mexico, and it's called the Pueblo Revolt. And I think that

1 that is an invaluable lesson about the importance of freedom
2 of religion here, because not only was -- not only was the
3 -- not only were the pueblos given their freedom of
4 religious, but also --

5 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.

6 Come on up. Please state your name for the record.

7 MS. CHUDNOFF: My name is Aisha Chudnoff, and I
8 just wanted to say, I am your neighbor. I grew up in
9 Abiquiu, New Mexico in the Muslim community. My father was
10 the Commissioner of the ditch along side the mayordomo. I
11 have been part of this community my entire life, and our
12 ideals of how we worship and what we expect from ourselves
13 and our families and our community is the same as every
14 Christian in this room.

15 And in that same line, we need a community center for
16 our children to keep them off the streets, to give them
17 better guidance, and we worship the same God, and we ask the
18 same things and the same morals. I see a lot of fear in
19 this community, and fear comes from ignorance of knowing the
20 truth. I've heard a lot of comments about my religion that
21 have no basis and come from that ignorance, and so I'd like
22 to outreach my hand and say that every single one of you is
23 always welcome --

24 CHAIRWOMAN CHAVEZ: Thank you, ma'am.

25 MS. CHUDNOFF: -- to come find answers.

1 CHAIRWOMAN CHAVEZ: Your time is up. Thank you.

2 Okay. So we are now moving -- we have some folks on
3 line signed up to speak. We -- no, I don't think so --
4 signed up to speak. We're going to ask for the folks on
5 line, because we don't have everybody's name -- we just have
6 phone numbers, so if you are signed up to speak for your one
7 minute, we have -- we have some -- please raise your hand.

8 VICE CHAIR GUERRERO: Well, this I can read.
9 Okay. Diane Sporago.

10 CHAIRWOMAN CHAVEZ: Followed by...

11 VICE CHAIR GUERRERO: Followed by Josie Alderete.
12 Then Joe Bryant, Hunter B. Genevieve Mitchell has already
13 spoken. Melinda Smith, I think, has spoken. Patricia
14 Sterck, I think, has spoken. Renee Baughman has. Angela
15 Gorrell.

16 CHAIRWOMAN CHAVEZ: Okay. So we have Diane? is
17 that -- is that who's first.

18 VICE CHAIR GUERRERO: Diane Sporago.

19 MS. SPORAGO: Yes. Can you hear me?

20 CHAIRWOMAN CHAVEZ: We can. You have one minute.

21 MS. SPORAGO: Okay. Thank you. I was going to
22 read my statement, but instead I will just speak from my
23 heart. I really wonder if the people who are objecting
24 would be objecting if this was a Christian church? Some of
25 the comments hurt me, because the main allegations about a

1 religion that were not valid, that are based on some really
2 inappropriate comments that are going around. Right now,
3 I'm more concerned with white Christian nationalists than I
4 am with Muslims and what they're forcing me and especially
5 women to do. So it really isn't an issue, as some people
6 say as to what Muslims are going to try to make us do.

7 As far as the traffic goes, I can see where traffic can
8 be a concern, but would it be as great a concern if it was a
9 church?

10 CHAIRWOMAN CHAVEZ: Thank you.

11 MS. SPARAGO: What if it was anything else?

12 CHAIRWOMAN CHAVEZ: Thank you, ma'am. Time is up.

13 VICE CHAIR GUERRERO: So Josie Alderete. Okay.
14 Joe Bryant.

15 CHAIRWOMAN CHAVEZ: Ms. Alderete, are you on line?

16 MS. ALDERETE: Yes, but I already spoke. I was
17 there in person.

18 CHAIRWOMAN CHAVEZ: Okay.

19 VICE CHAIR GUERRERO: All right. So --

20 MS. ALDERETE: Thank you.

21 CHAIRWOMAN CHAVEZ: Uh-huh.

22 VICE CHAIR GUERRERO: And we have Joe Bryant. No?
23 Hunter B. Okay. Angela Gorrell. Okay. Joan Marentes. It
24 looks like she spoke. Okay. David Trujillo spoke. Mary
25 Herrera spoke. Christine -- Clinton Rowley and then Shirley

1 Hughes.

2 CHAIRWOMAN CHAVEZ: Ms. Hughes? Shirley Hughes on
3 line? Ms. Hughes, if you'll unmute your mic. Ms. Hughes,
4 you are still muted. Okay. So there are seven attendees --
5 or six attendees who have their hands raised. Are those
6 folks who are signed up to speak? Who want to speak? So
7 who is --

8 COMMISSIONER GUERRERO: V. Chavez.

9 MS. CHAVEZ: Yes, I'm here.

10 CHAIRWOMAN CHAVEZ: Okay. Well, you have one
11 minute.

12 Ms. CHAVEZ: Thank you. Madam Chair and Board
13 Members, I am Victoria Chavez. I've live in the town of
14 Alameda, not just in the North Valley, but in the heart of
15 the far North Valley, not the City of Albuquerque, for 58
16 years. I support religious diversity and serve as a
17 Catholic eucharistic minister in Alameda.

18 There is a clear division in groups and agendas for
19 those supporting this. This appeal is on record about a
20 high volume, conditional use in a failing corridor, not
21 about Islam or faith. Other faiths are welcomed here. We
22 have an appropriate Raymond G. Sanchez Community Center and
23 a strong community that serve as the population of the Town
24 of Alameda. Please do not lump those of us who live here
25 and face daily safety and traffic issues with anyone

1 opposing or in support of this project because of religion.

2 I ask you to deny this permit and request a moratorium
3 on new high volume conditional use permits and direct the
4 study of the entire corridor, Paseo to Roy and along
5 Alameda, 528, from Coors --

6 CHAIRWOMAN CHAVEZ: Thank you, ma'am.

7 MS. CHAVEZ: -- to I-25.

8 CHAIRWOMAN CHAVEZ: Your time is up. Who do we
9 next? Kip Bobroff.

10 MR. BOBROFF: Good afternoon. My name's Kip
11 Bobroff. I'm an elder with La Mesa Presbyterian church.
12 I've lived in the Valley for 50 of 60 -- my 63 years. I
13 live just down the street from the proposed mosque. I urge
14 you to approve their application, reject this appeal.

15 It's quite interesting that the large Catholic church,
16 Orthodox church not far, the multiple churches in the area
17 don't seem to create traffic problems. This one won't add
18 significantly. If you look at the total traffic, it's not
19 that much. We should support this effort. It's entirely
20 consistent with the character, and rural people need a place
21 to worship as they wish as well. I urge you to reject the
22 appeal. Thank you.

23 CHAIRWOMAN CHAVEZ: Okay. Who's next? Rebecca
24 Martinez. Ms. Martinez. Ms. Martinez, you are on mute.

25 Okay. Who else has their hand up? Deana Aggad.

1 MS. AGGAD: Hi. Yes. Good morning. Can you hear
2 me?

3 CHAIRWOMAN CHAVEZ: Yes, we can. Please proceed.

4 MS. AGGAD: All right. Good morning. My name is
5 Deana Aggad, and I was born in Albuquerque. My parents
6 immigrated from Palestine, and even though that Albuquerque
7 has always been my home, people often laugh when I say my
8 parents moved from one desert to another but somehow they
9 made it work.

10 My father owned and operated a local business in
11 Albuquerque for more than 20 years. His market and
12 restaurant have thrived, because people from every
13 background in Albuquerque have walked through those doors.
14 They didn't -- they didn't care where we came from. They
15 cared about the relationships they built with us. That's
16 Albuquerque I know, a city where people from different
17 cultures, faiths, and backgrounds support one another.
18 That's why this project is so important to me.

19 A mosque is so much more than a place of worship. It's
20 a place where children learn kindness and respect, young
21 people find positive mentors, and families build
22 communities.

23 Before I finish, I'd like to extend a sincere
24 invitation to everyone in the room and on line, whether you
25 support the project, oppose it, or simply have questions,

1 come out and visit one of our mosques, meet us, ask
2 questions, share a cup of coffee with us.

3 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.

4 MS. AGGAD: Thank you.

5 CHAIRWOMAN CHAVEZ: Let's see. Who's next? Is it
6 Wally?

7 VICE CHAIR GUERRERO: Yeah, I think so. Joanne.

8 CHAIRWOMAN CHAVEZ: Oh, there you go. Waleed
9 Joyan? Joyan, excuse me. There you go.

10 MR. JOYAN: Hello, Commission. Can you hear me?

11 CHAIRWOMAN CHAVEZ: Yes, we can hear you.

12 MR. JOYAN: Greetings -- greetings from -- from
13 Thailand. I'm currently on a mission, US mission, and it's
14 3:30 a.m. here, and I've been listening, you know, since the
15 time that this started, and I do not -- going to -- I'm not
16 going to repeat myself, but I respectfully ask that your
17 decision be made -- be based on the facts, applicable zoning
18 requirements and equal treatment under the law, not on fear
19 or misconceptions.

20 Religious freedom means that every faith deserves the
21 same opportunity to establish a place of worship when it
22 meets the same legal requirements. Please and please give
23 this application same fair consideration in any church or
24 any house of worship would receive.

25 CHAIRWOMAN CHAVEZ: Thank you.

1 Peter Robertson. Peter?

2 MR. ROBERTSON: Yes, this is Peter Robertson. My
3 apologies. I just wanted to echo all those people who are
4 in opposition to grant of the permit for all the reasons
5 that it's a -- to this point it's a safety issue and a
6 standard of living issue. It's not a religious issue.
7 Thank you.

8 CHAIRWOMAN CHAVEZ: Okay. Let's see. Rebecca
9 Martinez.

10 MS. MARTINEZ: Yes. Can you hear me?

11 CHAIRWOMAN CHAVEZ: We can hear you. You have one
12 minute.

13 MS. MARTINEZ: I'm Rebecca Martinez. I've been in
14 the residence for 62 years, fourth year generation in
15 Alameda. I agree with all that. It is not a religious
16 thing. I just wanted to bring up -- I hadn't heard -- a
17 meeting yesterday from the County on the Fourth Street diet
18 project, which is to -- its intention is to move traffic
19 from Fourth Street to Alameda and Second. So that's another
20 issue that we will have with traffic and especially our
21 safety, that we all live there. It will be harder to get
22 out, but that project will be starting soon.

23 But, again, it's intention was to move traffic from
24 Fourth Street to Second and Alameda, and I have not heard
25 that addressed, but that is another concern for traffic for

1 us in that area, and thank you for your time.

2 CHAIRWOMAN CHAVEZ: Thank you, Ms. Martinez. We
3 do have our traffic folks here that will ask to address that
4 when they come up to speak. Thank you.

5 Okay. Tarief.

6 MR. ELSHAFIEY: Can you hear me now?

7 CHAIRWOMAN CHAVEZ: We can hear you.

8 MR. ELSHAFIEY: Yeah, I am Tarief Elshafiey,
9 professor of electrical engineering at UNM for 13 years, and
10 I am thoroughly supporting the diversity of faith along
11 Albuquerque, and you can check with our neighbors from
12 (inaudible) two mosques and at least we are spreading, and
13 99 percent of my students are Christian or different faith,
14 and I totally in love with them and they trust my -- they --
15 my judgment for their personal issues, and they are coming
16 to my office.

17 And I hope that the support of the -- the County and
18 the support for a new faith place that will spread the faith
19 and the good morals around the City. And the issue of the
20 traffic definitely is not concentrated in that place. Also,
21 it is over -- everywhere in Albuquerque. Now, it's
22 spreading and more population are going along to the --

23 CHAIRWOMAN CHAVEZ: Thank you. Your time is up.

24 MR. ELSHAFIEY: Thank you.

25 CHAIRWOMAN CHAVEZ: Okay. Cindilou.

1 MS. KENNA: Good afternoon. My name is Cynthia
2 Kenna. I -- approving the project with incomplete zoning
3 information can be a legal land- -- legal landmine. When
4 the Board signs off without the required data, then the
5 court may strike it down and freeze construction and force
6 the process -- the process to start over. Worse, it can be
7 sued from both directions, a court claiming that the Board
8 ignored the law and advocates claiming damages when their
9 approval collapses.

10 And if it's a religious facility, federal protections
11 like RLUIPA makes sloppy procedure look like discrimination.
12 Incomplete information isn't a minor oversight. It's a
13 direct path to litigation, financial liability, and public
14 embarrassment. I oppose -- I approve of the appeal, and I
15 would tread cautiously. Thank you.

16 CHAIRWOMAN CHAVEZ: Thank you. That looks like --
17 is that everyone on line? Yay. Okay. We did it. Thank
18 you all. It's a lot. Appreciate you guys. Appreciate the
19 patience and the understanding, and we're going to move to
20 close. Right? We have two minutes for closing for both the
21 staff close and the appellant, so we'll let the appellant --
22 applicant?

23 MR. HAMM: Madam Chair, we would recommend
24 applicant, appellant, and then staff.

25 CHAIRWOMAN CHAVEZ: Got it. Long day.

1 Applicant. Oh, did we lose him? There we go. Sir,
2 you have two minutes --

3 MR. TAHAT: Okay.

4 CHAIRWOMAN CHAVEZ: -- to close.

5 MR. TAHAT: On behalf of Albuquerque Islamic
6 Center, I think everybody hear what's going on. Maybe the
7 main concern is the traffic. I would -- I would respond
8 just for the professional things. The other things, I don't
9 care about those things.

10 So by engineering point of view, the traffic will not
11 be generated at the same time of the peak traffic hour for
12 Alameda or Second Street. The Albuquerque Islamic Center is
13 offering now -- now, at this moment, this Friday, they alter
14 their time just to avoid the traffic on Menaul, and they
15 will do that on Second Street.

16 The other things, maybe I hear from the appellant that
17 there is no dimension, it's not adequate, and nobody study
18 that. I'm sorry to hear that. It's stamped by a licensed
19 architecture engineer. His name's Scott Anderson, and it's
20 review and designed by me. I'm also licensed engineer. I
21 have Ph.D. in civil engineering. I work for the state and
22 the federal government, and I work for my own right now.

23 I'm a developer/builder, licensed contractor, also. So
24 I'm -- I'm really sorry to hear what the appellant said. So
25 I know that the committee will filter out all of the

1 nonsense or non-fact things, but my -- my speech is for
2 those who's looking for a solution. Like what I started
3 with, I will end with. For the people who look for a
4 solution, there is study for drainage. There is study for
5 the traffic. There is concern about all of these things,
6 and those under control. There is no bad effect on the
7 neighborhood. So everything is positive for the
8 neighborhood. Everything going to be designed. Everything
9 is being reviewed. Everything going to be stamped by
10 license engineer --

11 CHAIRWOMAN CHAVEZ: Thank you.

12 MR. TAHAT: -- reviewed by the city, and --

13 CHAIRWOMAN CHAVEZ: Thank you, sir. Your time --
14 your time is up. Does the Commissioners have -- do the
15 Commissioners have any questions?

16 COMMISSIONER NELSON: No, not of the applicant.

17 CHAIRWOMAN CHAVEZ: Okay. Just -- I do have one
18 question just in terms of the Balloon Fiesta time. So what
19 I think I just heard you say is you could adjust. Could you
20 adjust during the Balloon Fiesta time as well?

21 MR. TAHAT: Correct. Yes.

22 CHAIRWOMAN CHAVEZ: Thank you.

23 Any other questions? All right. Thank you.

24 So now we go to the appellant. Sorry. Keeping order
25 is -- Mr. Hauser, you have two minutes.

1 MR. HAUSER: Could I get the two minutes started
2 after I get this projector working?

3 CHAIRWOMAN CHAVEZ: Sure.

4 MR. HAUSER: Thank you very much. I'm a licensed
5 pilot, so I'd like to get this situation back on course.
6 We've gone way off course on trying to focus on the things
7 we need to focus on.

8 Things I'd like focus on is what the conditional use
9 request requires. Section 24 requires the applicant to
10 prove three things before this permit was approved; that
11 site is adequate in size and shape and it can be developed
12 without undo traffic congestion or hazards, and that it will
13 have no adverse effect on the neighborhood or seriously
14 conflict with the character of the area.

15 On the record, those burdens were not met and have not
16 been met. We've talked conjecture and we talked solving
17 problems, but they haven't been done.

18 Onsite adequacy, the staff report describes a 58,000
19 square feet, an issue with that for sure. On traffic and
20 hazards, there is no project traffic study that's been done.
21 I submitted the Murphy traffic study. Nothing else has been
22 done since that was done. It's kind of sad that we don't
23 know what's going on in that corridor, and we're getting
24 ready to approve something else. You just heard more --
25 Fourth Street's going to be pushing traffic to Second.

1 There's another appeal -- there's another request being made
2 next week for another center just at -- down from Alameda
3 and Second Street. In a corridor where a single crash or
4 lane closure can lock up systems and delay emergency
5 response, the applicant has not proved that the high volume
6 use will change. I talked to Terry Brown, the traffic
7 engineer that did the Murphy study. He said a 43,000 cubic
8 foot -- I'm sorry -- square foot Muslim is going to generate
9 a minimum of 410 occurrences in the morning and 1,300 in the
10 afternoon. That's from the traffic engineer that did the
11 Murphy study.

12 As -- again, I said I'm a licensed pilot. I don't fly
13 airplanes if my airplane does not meet qualification. This
14 appeal has failed in these two categories alone, along with
15 the others that we've talked about. Thank you very much.

16 CHAIRWOMAN CHAVEZ: Thank you.

17 MR. HAUSER: This needs to be --

18 CHAIRWOMAN CHAVEZ: Any questions --

19 MR. HAUSER: -- rejected.

20 CHAIRWOMAN CHAVEZ: -- for the appellant? No.
21 Okay. Thank you.

22 MR. HAUSER: If It doesn't meet the checklist, it
23 don't fly.

24 CHAIRWOMAN CHAVEZ: Ms. Gould.

25 MS. GOULD: Apologize for that. I can close. I

1 understand you also wanted to hear from our traffic
2 engineering people.

3 CHAIRWOMAN CHAVEZ: Let's hear from traffic first
4 and then -- thank you.

5 All right. Name for the record.

6 MS. LUNA: Chair Chavez, Members of the
7 Commission, my name is Julie Luna. I review traffic for new
8 development, and with me today, I have our traffic engineer.

9 MS. JOHNSON: Travis Johnson. I run the traffic
10 operation section for Bernalillo County, so we're operations
11 and maintenance side.

12 CHAIRWOMAN CHAVEZ: So can you talk a little bit
13 first to respond to the question about pushing traffic to
14 Second and Alameda?

15 MS. LUNA: Yes, I can.

16 CHAIRWOMAN CHAVEZ: What's that about?

17 MS. LUNA: So Fourth Street, we do have upcoming
18 project on Fourth Street between Ortega north to Alameda
19 Boulevard. Ortega is a four-lane road. We are -- so
20 there's two lanes in each -- there are two lanes in each
21 direction. So on Fourth Street -- I'm talking about Fourth
22 Street.

23 MR. JOHNSON: Yeah.

24 MS. LUNA: I'm talking about Fourth Street.

25 MR. JOHNSON: Yeah.

1 MS. LUNA: Fourth Street between Ortega and
2 Alameda has two lanes that are east bound -- two lanes that
3 are north bound and two lanes that are east -- southbound,
4 and they are directional lanes. So what we are doing is
5 we're -- we're going to have one lane in each direction and
6 a center turn lane. The center turn lane allows for left
7 turns without vehicles having to cue up behind the car
8 that's waiting for traffic to clear. It is a significant
9 improvement to safety, and it is also a modest reduction in
10 capacity.

11 So before we -- before we started with this project, we
12 did do a traffic study to see that Fourth Street could
13 accommodate the current levels of traffic with this
14 reconfiguration of lanes. I -- I hope that answers your
15 question.

16 COMMISSIONER NELSON: Okay. Here's my question.

17 MS. LUNA: Yes.

18 COMMISSIONER NELSON: All those people live --
19 well, not all, necessarily, good number of them -- live on
20 or around Alameda and are very concerned about the placement
21 of this church in that the traffic will make the traffic
22 that they have worse. Now, the interesting part to me is
23 they -- they consider that the traffic that they already
24 have to be horrible. Am I wrong? Okay. Easily stalled,
25 and, of course, at Balloon Fiesta time, you know, the whole

1 world goes (demonstrates) on the streets, but so -- so my
2 first question is, is it true that the traffic in that area
3 is really bad? And secondly, would the addition of -- I
4 don't believe there has been a traffic study done for this
5 particular submission. And would you explain to everybody
6 what the usual process is for traffic studies.

7 MS. LUNA: Yes, I do.

8 MR. JOHNSON: Okay.

9 MS. LUNA: So -- so let me first start that there
10 is a regional traffic challenge issue, and it has to do with
11 the limited number of river crossings as well as something
12 called job-to-housing balance. West of the river, for every
13 two homes there's one job. East of the river, for every two
14 homes there are three jobs. So Alameda Boulevard, as well
15 as the other river crossings, experiences high levels of
16 congestion eastbound in the a.m. peak commuter period and
17 high levels of congestion westbound in the p.m. peak period
18 congestion.

19 Alameda Boulevard -- Alameda Boulevard absolutely does
20 have a congestion issue, and it is a regional problem. And
21 I want to -- I want to acknowledge that anyone who lives
22 near rio -- a river crossing, anyone that commutes from the
23 West Side to the East Side experiences this issue.

24 Your second question, in terms of a traffic impact
25 assessment or a traffic impact study -- we do use these

1 terms interchangeably. Bernalillo County Public Works
2 requires a traffic study for this development, and we
3 require it upon building permit. I know Mr. Hauser wanted
4 that to come earlier. We would not allow the building
5 permit to be issued without a completed traffic impact
6 assessment. And then let me just explain a little bit
7 further. A TIA or traffic impact assessment is a very high
8 level of review. It requires the applicant to hire a
9 licensed traffic engineer with experience completing these
10 studies, and it -- it evaluates the current situation. It
11 models the additional levels of traffic, and then it -- it
12 also requires that the applicant, based on any impacts that
13 the additional traffic may have, to mitigate that, and that
14 mitigation typically is in the form of -- it's typically in
15 the form of constructed improvements. It may also be in the
16 form of traffic control or, as the applicant stated,
17 adjusting hours of operation.

18 It is a collaborative process, and I just want to add,
19 this is -- not only is it a -- in location that experiences
20 congestion, it's also jurisdiction -- it's also complex in
21 terms of jurisdiction. Alameda Boulevard to the west is
22 under NMDOT; to the east, is under City of Albuquerque. So
23 the agencies that will review this traffic study are
24 Bernalillo County, NMDOT, and City of Albuquerque. The
25 applicant will, once again, be required to mitigate those --

1 those impacts prior to building permit or -- or along with
2 the building permit.

3 COMMISSIONER NELSON: Okay. But they won't be
4 allowed to build until everything is approved in your -- in
5 your area as well as other building related areas?

6 MS. LUNA: We will -- so, we will not issue a
7 building permit until the traffic study is approved and the
8 applicant has agreed to those -- those mitigations. Just to
9 say like building a building and doing construction can be
10 complex. We wouldn't allow the building to open until all
11 the mitigated constructed improvements, et cetera, were
12 completed.

13 COMMISSIONER NELSON: Thank you. You always
14 explain things so nicely.

15 MS. LUNA: Thank you very much.

16 MR. JOHNSON: I don't know why I'm here.

17 CHAIRWOMAN CHAVEZ: Are there any other questions?
18 Commissioner?

19 COMMISSIONER WITHERS: Thank you, Madam Chair.
20 Thank you, Ms. Luna. As part of the application for the
21 conditional use approval, was there any information about
22 the potential for increased visitors per day or anything
23 like that?

24 MS. LUNA: Thank you for your question. Chair
25 Chavez, Commissioner Withers, so, again, a -- a good portion

1 of the traffic impact assessment is to really nail down how
2 many trips will be generated by the site, and this one has
3 been particularly complex. They have hours of worship where
4 they have visitors to worship. They had -- at one point
5 were interested in a school as well as a day-care. So based
6 on whatever conditional use approval they'll have, that is
7 what we will come to an understanding as to what -- how
8 many visitors they will have, and I also want to add that we
9 do use national data. There is something called the
10 Institute of Traffic Engineers Trip Generation Manual that
11 we use as -- as essentially the gold standard to determine
12 the number of trips to the site. Thank you.

13 CHAIRWOMAN CHAVEZ: Any other --

14 MS. LUNA: I'm sorry. I hope that answered your
15 question.

16 COMMISSIONER WITHERS: I believe so, but I want to
17 just ask a clarifying question just for the benefit of the
18 people in the room about how this whole process works. It
19 seems paradoxical to me that we're tasked with determining
20 the appropriateness of the use and whether this project can
21 be developed without causing undue traffic congestion and
22 then hearing from people in the community that there already
23 is undue process traffic congestion, and what I hear you
24 saying is that part of that is, you know, there's a river
25 and there's -- you know, a lot of people live on one side of

1 it, and there's limited number of bridges, and there's
2 things here that seem beyond the scope of what we're dealing
3 with, but I want to come back to how -- how are we supposed
4 to evaluate the impact on traffic of this development if we
5 don't have any idea of what sort of additional traffic it's
6 going to cause? And so I'm asking is there any -- any
7 information at this point that we can use to evaluate that
8 and make this decision?

9 MS. LUNA: Yes. Very good. So internally we have
10 Public Works, and then we have our Planning and Development
11 Services, and at Public Works we are responsible for public
12 rights of way and Planning, Development Services for land
13 use and zoning. And Mr. Hauser had brought up that he felt
14 strongly that the traffic impact assessment should occur at
15 this stage as opposed to building permit. I -- I do want to
16 defer to Nicholas Hamm. I -- I'll just tell you that Public
17 Works, our teeth in the matter is at building permit, and --
18 and I -- I try to be very respectful of my colleagues in
19 Planning, Development Services as to where I can make --
20 where -- where our -- where our requirements align.

21 CHAIRWOMAN CHAVEZ: Thank you. Mr. Hamm.

22 MR. HAMM: Madam Chair, Commissioner Withers, I
23 think it's a great question. It's also a very hard one to
24 answer. The discretion of the County and the
25 decision-making Body as the Board of Adjustment is to, as

1 has been stated a few times, to determine if there is undue
2 traffic hazards or congestion created by the application.
3 Understanding, of course, now through public testimony and
4 testimony from our colleagues at Public Works, that there is
5 perhaps background traffic congestion as just part of the
6 development pattern that exists now.

7 The Board of Adjustment has discretion to adjust the
8 conditions of approval, meaning there could be limits
9 applied on the approval if it is to be granted, to further
10 mitigate traffic impacts. As Ms. Luna and her colleagues
11 have stated, the building permit process that the County
12 administers, it has an inherent process associated with it
13 around traffic quantification and then provision of
14 necessary infrastructure to offset that impact.

15 It's -- there's -- there's some subjectivity built in
16 here, though, because we don't at this point in time have --
17 have the traffic impact analysis. What we can do is apply
18 mitigating conditions, if it pleases the Commission and
19 you-all see fit to move this forward, to apply conditions
20 that are either proposed by staff or of your own
21 construction that would further mitigate traffic concerns,
22 and if the Commission would like to do that, we have some
23 conditions that we could propose. We'd also be happy to
24 help you craft those today as well.

25 CHAIRWOMAN CHAVEZ: Yeah. So we have a question.

1 Go ahead.

2 VICE CHAIR GUERRERO: Yeah, Madam Chair.

3 Ms. Luna, so Mr. Hauser has referred to this Murphy
4 study. Does that provide any insights at all that could be
5 useful here or --

6 MS. LUNA: The Murphy study -- so the answer is --

7 MR. HAUSER: Yes.

8 MS. LUNA: I -- I hear Mr. Hauser saying --

9 CHAIRWOMAN CHAVEZ: Mr. Hauser --

10 Ms. Luna: -- there, yes.

11 CHAIRWOMAN CHAVEZ: Mr. Hauser -- time out,
12 Ms. Luna.

13 Will you please take a seat.

14 MR. HAUSER: I should be able to question her.

15 CHAIRWOMAN CHAVEZ: Will you please take a seat.
16 Thank you.

17 MS. LUNA: The -- the -- okay. I'm going to tell
18 you, the answer is we consider the studies valid for three
19 years, and -- and I do -- I -- it is helpful for us when
20 there have been multiple studies along the corridor,
21 absolutely. It is helpful to give you insights as to how
22 the traffic study was completed, but we do need to have --
23 it does need to have its very own traffic study for this
24 location.

25 CHAIRWOMAN CHAVEZ: Thank you. So, yes, Mr. Hamm,

1 I have a question, I think, for you probably. So at our
2 discretion we can say we need that traffic study or analysis
3 now, right, prior to --

4 COMMISSIONER NELSON: Can't we make --

5 CHAIRWOMAN CHAVEZ: A condition.

6 Commissioner nelson: -- it a condition? That's
7 right, a condition.

8 CHAIRWOMAN CHAVEZ: Right. Right. I want to ask,
9 right, so this application, how has it been applied or had
10 -- how does it look equitable or going forward if we require
11 that as a condition of approval for other projects that
12 either will come before or come after? Does that set a
13 precedence?

14 MR. HAMM: Madam Chair, Commissioners, it is in
15 your authority to ask for additional information as you see
16 fit in your decision-making process. I would offer caution
17 around imposing a requirement on an application,
18 specifically for a religious institution, that was in --
19 would be additional or different than other decisions that
20 the County has made in the land-use realm for other
21 religious institutions in the area, and there are a number
22 of them. Ms. Gould can speak to some of this in her
23 closing, but the County does have some approvals in this
24 vicinity for religious institutions, and to my knowledge, we
25 -- and we can look into this a little deeper, we would --

1 the County would not have required them to provide a traffic
2 impact analysis before the building permit process.

3 CHAIRWOMAN CHAVEZ: Thank you.

4 COMMISSIONER NELSON: No, but can we add a
5 condition of approval that subject -- subject to a
6 successful TIA?

7 MR. HAMM: Madam Chair, Commissioner Nelson, you
8 can absolutely require as a condition of approval with the
9 building permit, and then you could -- I would argue, you
10 could even go further to say that construction of the
11 facility would require construction of the infrastructure as
12 required by County Public Works.

13 CHAIRWOMAN CHAVEZ: That's already in the process
14 when they go to building permit.

15 MR. HAMM: Madam Chair, that's correct.

16 COMMISSIONER NELSON: That's -- that's the whole
17 point.

18 CHAIRWOMAN CHAVEZ: Right. So it's already --
19 thank you for making -- but it's already in there, right? I
20 mean, that process is already built in?

21 MR. HAMM: Madam Chair, that -- that is true of
22 any construction permit in the county.

23 CHAIRWOMAN CHAVEZ: Right. So we could, if we
24 were -- and I just want to make sure that I'm very clear
25 about this. So if we were to, say, require as a condition

1 that they do a TIA right now or traffic study or whatever
2 we're calling it, right, then that could place an undue
3 burden on the applicant at this juncture when they would be
4 required, if approved, to do it -- they would be required to
5 do it at the building permit stage?

6 MR. HAMM: Madam Chair, yes.

7 CHAIRWOMAN CHAVEZ: Okay. Thank you.

8 COMMISSIONER NELSON: And they would be required
9 to -- what was it you said, Julie -- basically, fix anything
10 that wasn't okay with you?

11 MS. LUNA: They will be required to mitigate the
12 traffic impacts due to the trips coming, going to their
13 site.

14 COMMISSIONER NELSON: Right.

15 MS. LUNA: Now, that isn't mitigating the regional
16 issues, but it is mitigating the additional traffic that
17 will be generated by their site.

18 COMMISSIONER NELSON: Right.

19 CHAIRWOMAN CHAVEZ: Thank you.

20 COMMISSIONER NELSON: That -- that would not be
21 fair to have them -- that would be, oh --

22 CHAIRWOMAN CHAVEZ: I have another question for
23 staff. So there was also a comment made by one of the
24 members of the community about the cannabis shop, and the
25 cannabis shop is already existing, right? So if it were in

1 the reverse, it wouldn't be allowed; is that correct?

2 MR. HAMM: Madam Chair, that's absolutely correct.

3 CHAIRWOMAN CHAVEZ: Okay.

4 MR. HAMM: The state separation provision is for
5 protection of existing religious or educational institutions
6 when controlled substance retailers move towards them. The
7 inverse is not true. If a -- if a religious institution or
8 an educational institution wishes to locate next to an
9 existing facility that engages in those activities, the
10 state law doesn't prohibit that, and actually, we would --
11 we, as staff, would like to incorporate findings of facts
12 that capture that, that the facility that retails cannabis
13 and alcohol, if I'm remembering correctly, exists, and
14 they're moving towards it.

15 CHAIRWOMAN CHAVEZ: Okay. Thank you. I just
16 wanted to address that for the member of the public who
17 thought it was reversed.

18 So any other questions?

19 COMMISSIONER WITHERS: Yes, Madam Chair.

20 CHAIRWOMAN CHAVEZ: Okay.

21 COMMISSIONER WITHERS: There was another comment
22 that was brought up about the amplifies -- amplified noise,
23 and I think that I heard that in several comments, that
24 there's concern of the impacts on potential calls to prayer
25 or other amplified noise on the surrounding community. Can

1 you clarify whether there are any conditions on this
2 approval that would prevent amplified noise?

3 MS. GOULD: Certainly. Madam Chair, Commissioner
4 Withers, so there was a condition, condition no. 3, that
5 prohibit amplified sound for exactly that reason, that --
6 that because of the proximity to residential going towards
7 the north, that -- that that just doesn't seem appropriate.

8 COMMISSIONER WITHERS: And that is in addition to
9 the sound ordinance already in place?

10 MS. GOULD: Right, and the County -- the County
11 does have a noise ordinance in place.

12 COMMISSIONER WITHERS: Is there any concern that
13 that would be interpreted as discriminating against
14 somebody's religious freedoms?

15 MS. GOULD: So it's a -- Madam Chair, Commissioner
16 Withers, that's a great question. So we -- we talked a
17 little -- we had a speaker talk a little bit about rel- --
18 and what my understanding -- and like, counsel, please leap
19 in -- but the idea is that you cannot treat a church
20 separately than you would treat a similar use in a similar
21 situation. So if we had somebody coming in for a
22 conditional use for some other kind of facility with that
23 proximity to residential, we could also say, "We don't want
24 amplified sound. We're concerned about your lighting."
25 Those are all sort of conditions we could put on any other

1 project and have.

2 COMMISSIONER WITHERS: Thank you.

3 MR. HAMM: Madam Chair, Commissioner Withers if --
4 if I might also add, if there is concern about that, we may
5 be able to mitigate some of that by posing a question to the
6 applicant, and if they are agreeing to the limitation, it
7 could remove some of the concern around that question that
8 has been raised about potential discrimination.

9 COMMISSIONER WITHERS: I got the impression from
10 the applicant that they would be amenable to those sorts of
11 concessions, and so I'm not particularly concerned about it.
12 I do want to ensure that we are being mindful about placing
13 restrictions on religious institutions while also respecting
14 the interests of the community in making sure that we're not
15 allowing disturbance to, you know, negatively impact other
16 people's private property rights, which I think is what
17 we're meant to do here is make sure that this development is
18 not negatively impacting the community.

19 And I'd like to just say, for my own part, that I am
20 very disgusted by the insinuations that we should block this
21 development based on the fact that people don't like the
22 religion that's being practice there, and that in no way,
23 shape, or form will that factor into my thinking. I'd also
24 like to say for the folks that would like to dismiss the
25 concerns of the community, insinuate that us looking out for

1 the people in this community, that we're somehow fascists or
2 discriminating against those religion, just because we're
3 paying attention to the concerns the people have about the
4 traffic impacts. That's all simply unwarranted.

5 CHAIRWOMAN CHAVEZ: Okay. Thank you.

6 VICE CHAIR GUERRERO: Madam Chair, so -- very well
7 said. Thank you. The -- so going back to staff, the --
8 Mr. Hauser's three points about, basically, that this -- not
9 specific enough information. We already talked about
10 traffic. The square footage figures and the rural B16
11 designation, do we feel there's enough specificity for us to
12 be able to make a decision or -- or is there more that we
13 can ask for?

14 MS. GOULD: Madam Chair, Commissioner Leon
15 Guerrero, can you -- I was -- my -- the battery on my
16 computer just died, so I am now -- everything is on the
17 flash drive. So it took me a minute to shuffle up here.
18 Can you -- can you ask your question again, please?

19 VICE CHAIR GUERRERO: Yeah. So the --
20 Mr. Hauser's appeal is based on three areas, three findings,
21 that there's not enough specificity --

22 MS. GOULD: Sure.

23 VICE CHAIR GUERRERO: -- in the application. So I
24 just want to get your take on is there enough information
25 for us to be able to make an informed decision, or is there

1 more that we can be asking for in terms of like the square
2 footage, in terms of rural B16 designation.

3 MS. GOULD: Right. So -- so, Madam Chair,
4 Commissioner Leon Guerrero, I think -- and I maybe wasn't
5 sufficiently clear about this, but what I had hoped is that
6 the applicant would walk us through their updated site plan,
7 because what -- what we usually get at the conditional use
8 level is pretty conceptual. We get parking. We get a
9 layout, and so we know things like setbacks. We know things
10 like the amounts of parking. Height in the A-1 zone is
11 limited to 26 feet. So that's 26 feet for a residential
12 building. It would be 26 feet if they were building a large
13 barn or some other kind of facility.

14 So those things -- there are a lot of things that are
15 built in, and as we talked about the building permit
16 process, that's when traffic happens. That's when fire
17 review happens. That's when a full grading and drainage
18 plan would happen. So I think the -- the question here is
19 -- for you-all is, do you want more information on this kind
20 of updated plan? Do you want the applicant to walk you
21 through it a little bit. Do you want time to look at it?
22 This is, again, very much you-all have broad discretion
23 here.

24 MR. HAMM: Madam Chair, Commissioners, if I might
25 offer, I do think that the exercise of asking the applicant

1 to -- now that the school and the day-care uses are off of
2 the programming table, so to speak, that the square footage
3 or the floor area of the facility that is intended to be
4 constructed with that understanding of the program that's to
5 be used on the site, I think that the County, the Planning
6 Commission, the public would benefit from some clarity from
7 the applicant on that point.

8 VICE CHAIR GUERRERO: Do we ask that now?

9 COMMISSIONER NELSON: That would also certainly
10 effect the traffic, since there would not be a school.

11 MS. LOPEZ: Right.

12 COMMISSIONER TRUJILLO: Madam Chair, sorry, I
13 actually agree to that as well, because I don't think
14 there's enough information for me to make a decision.

15 CHAIRWOMAN CHAVEZ: Hi. Oh, there you are. So I
16 was, "Who is that?" So thank you. It's Commissioner
17 Trujillo. Thank you. And I'm sorry. Could you make your
18 comment -- say your comment again.

19 COMMISSIONER TRUJILLO: I was just thinking that I
20 do need a little bit more time as well to -- to see what
21 those exact specification are going to be before I would
22 make a decision.

23 CHAIRWOMAN CHAVEZ: All right. So the question
24 becomes -- I think Mr. -- Commissioner Guerrero asked it,
25 right, do we ask that now? Do we wait? What is -- what is

1 the recommendation?

2 MR. HAMM: Madam Chair, we're here. I would say
3 let's -- let's ask -- my recommendation would be, ask the
4 applicant. Give them an opportunity to clarify that. If
5 that provides you-all the information you feel is necessary,
6 you can take an action. If you don't, staff's prepared --
7 we just discussed amongst ourselves, our agenda is such that
8 if this needed to be deferred to next agenda, we could
9 accommodate that.

10 MS. LOPEZ: Continued.

11 MR. HAMM: Excuse me, continued. Apologies.

12 CHAIRWOMAN CHAVEZ: Thank you.

13 COMMISSIONER NELSON: Continued. Right.

14 MR. HAMM: To the next agenda to allow adequate
15 time for us to provide that information to you-all and to
16 make sure that the public is informed of that as well.

17 CHAIRWOMAN CHAVEZ: I would agree. We are here
18 now. It's been a long day. Let's -- if the applicant is
19 prepared to do that, that would be great.

20 COMMISSIONER NELSON: Well you need to talk to
21 him.

22 CHAIRWOMAN CHAVEZ: Well, is he -- I don't know --
23 yes. Hello. Are you prepared to go through that with this
24 Commission now?

25 MR. TAHAT: Yeah, sure. So, Chairman, set back on

1 the south side --

2 MS. GOULD: It's -- it's in a -- I'm sorry to
3 interrupt, Madam Chair, but do we -- earlier it seemed like
4 Mr. Tahat was having a hard time sharing his screen. Do --
5 do we need to pull up what we have on the screen or --

6 CHAIRWOMAN CHAVEZ: Yes.

7 MS. GOULD: Okay.

8 CHAIRWOMAN CHAVEZ: Please. That would be
9 helpful.

10 MR. TAHAT: The plan name, "Site Plan."

11 CHAIRWOMAN CHAVEZ: And this is the updated site
12 plan without the school?

13 MS. LOPEZ: Madam Chair, that's correct. This is
14 the site plan received by staff yesterday in the afternoon.

15 CHAIRWOMAN CHAVEZ: Okay. Thank you.

16 MS. LOPEZ: That's the latest.

17 MS. GOULD: This -- and if this -- if this isn't
18 the final that was wanted with the application, just let me
19 know what he wants.

20 MR. TAHAT: I think it is the plan, but if you can
21 -- so as is, we can see the south side and -- which is the
22 bottom, and the requirement on this side setback is zero,
23 'cause it adjacent to -- to commercial. But what I provided
24 in here, six feet as landscaping, and then sidewalk which --
25 and the street and then sidewalk. So sidewalk is six feet.

1 The street is 12, and the -- the landscaping is six. So
2 total of 24 feet rather than zero.

3 So the other side, the north side -- the north side its
4 requires six feet, and I provided six feet. This is the
5 landscaping, and then 26 feet, which is -- without the
6 school, it's not required, but I still have it there, and I
7 will keep it like that to provide more buffer to -- to the
8 residential. It's 26 feet. I made it exactly like this at
9 the time of the school, because it need to be -- the fire
10 ingress from two direction.

11 So the front is accessible, and the north now is
12 accessible. With that, we're going to add the east side,
13 which is the right side, is accessible for the fire purpose.
14 So we have enough for the fire. So, again, those shouldn't
15 be at this level. This is -- should be just conceptual, but
16 I have been pushed to do more, because of opposition.

17 Now, ingress and the entry, you notice there is two
18 access, and if you zoom in, you can see how wide is each
19 one. So each entry is 22. There's 22, 23, and there's 13
20 feet, like a gate or something there. So we may just add or
21 review whatever we want to provide the -- the smooth access
22 or the fire access. So everything is okay with the specific
23 issue. Everything with the minimum -- we are exceeding any
24 minimum requirement. The minimum requirement is covered
25 already, but we gonna cover more to provide more safety,

1 more easy to the traffic, more ease, and to make it more
2 comfortable for the user, and for the neighborhood.

3 So now, I don't want speak about the front and the
4 back, because it's like very obvious. It's like a way --
5 like more than everything. So is there any other questions
6 that I can answer right now?

7 MS. GOULD: Can I -- Madam Chair, if we can show
8 the second floor as well.

9 CHAIRWOMAN CHAVEZ: Okay. You can show the second
10 floor, and then I want to check in with Commissioner
11 Trujillo.

12 MR. TAHAT: This is the second floor. So now that
13 big room with -- like a circle in the middle -- not the
14 basketball. Yeah, this room. This is like -- the ceiling
15 is double ceiling. So it's -- the ceiling is high. So this
16 is the praying area. This is the main area for the prayer.
17 This is not addition of -- to the second floor. This is
18 just double ceiling, so we don't count that twice with --
19 with the area, the heated area.

20 So the other one, it's the basketball. That's clear,
21 and it's double ceiling, because it -- it cannot be nine
22 feet, so -- because of the nature of the game.

23 The entry, which is the other square -- yeah, this one.
24 This entry, this is -- also, there is a corridor or a
25 hallway around that square, and in the middle it's open to

1 the floor. So this is double ceiling also with a walkway
2 here. So this is the project, and -- and you can see we
3 eliminated all the school and classes related to the school.
4 There is no daycare. There is no elementary, middle, or
5 high school. All of those are area -- now, this is open.
6 It could be a balcony. It could be observation, whatever
7 can be used for or just an open space as a roof.

8 The other thing are just bathroom, toilets, control
9 room, IT, offices, one, two, three offices, and the -- the
10 stairs, so there is nothing much to the second floor. So we
11 can speak a little bit about those two rooms to the left of
12 the basketball. One of them is just a gallery. It -- that
13 plays with a big glass. Some people gonna sit down there,
14 watch the game, or maybe for celebration or for whatever
15 reason, and the other one will have camera and security, and
16 there is the stair next to it. So there's nothing much in
17 the second floor. All the main activity are on the first
18 floor. So anything else that I can speak about?

19 COMMISSIONER WITHERS: Madam Chair, may I pose
20 some questions?

21 CHAIRWOMAN CHAVEZ: Okay. Let me ask,
22 Commissioner Trujillo, do you have any questions?

23 COMMISSIONER TRUJILLO: Not right now. That was
24 -- that was pretty good right there.

25 CHAIRWOMAN CHAVEZ: Okay. Thank you.

1 COMMISSIONER TRUJILLO: Thank you.

2 COMMISSIONER WITHERS: Mr. Tahat, thank you for
3 your presentation and for your application, and I want to
4 express my -- my support for what you're trying to do, and
5 I'm going to ask these questions, because our job isn't just
6 to blanketly support things but to scrutinize these
7 applications.

8 We're tasked with determining whether or not this can
9 be developed in a way that doesn't cause undue traffic, and
10 then we're told that we won't get to find out whether or not
11 this will cause undue traffic until after we approve it. So
12 I'm wondering if you can give us an idea on the scope of how
13 many people you think on any given day might be coming and
14 going? Are we talking about a hundred cars? Two hundred
15 cars? Five hundred cars?

16 MR. TAHAT: No, no. No way. So any given day --
17 and there is three mosque. One of them is the Albuquerque
18 Islamic Center on the current location. You can go at any
19 time without any warning and just pass in front of the
20 mosque there. There is no cars. Ghost town. It's like any
21 other church in the town. Just during the service, there is
22 cars. It's not like industrial or office room where the
23 people should show up at 8:00 and leave at 4:00 or 5:00. So
24 this is a church. Like any other church, there is just one
25 day, so -- to have the service, and there is other service

1 during the day. There is five times to pray, but I honestly
2 tell you, here and in the Middle East, nobody go there in
3 the Fajr Salah, so -- which is literally at the dome.
4 Nobody go at 12:00 any other day, even on the current
5 mosque.

6 There was one of the speaker. They say, "I pass by
7 there, and I see what's going on," on Menaul, and anybody
8 can do that. Their address is on the application. You can
9 go there and see. So there is no traffic. There is no
10 traffic and any single day, except Friday. On Friday,
11 there's two things. One, we will speak about the maximum
12 capacity, and we going to speak about the expectation of how
13 many prayer going to go there. So to expect the number of
14 those prayers, I have to start with what I have right now.
15 They have 90, 100 prayer in Jumu'ah, which is Friday service
16 at noon. And they do it at two times. So maybe 100, 100 or
17 180 total. The cars is like 89. They cannot park more than
18 that in that location. So in the same scenario, I will
19 expect that number every -- every Jumu'ah, which is a Friday
20 service at noon out of any peak hour of -- of the cars in
21 our city anywhere. So it's not a peak time.

22 I can go Second -- I use that street when I go to the
23 West Side, and there is no problem. I'm not saying there's
24 no problem, but it's less traffic after 9:00 until let's say
25 2:00. So there is very light traffic there in compare of

1 the capacity for those street and what they're serving. So
2 every street, even I-25, it serve something. It's connects
3 the city at high speed, and that that street is connecting
4 the City. It's connecting two parts of the City. In the
5 same manner, it has to serve -- it has to serve the traffic,
6 so we cannot say there is a problem because of the
7 development of I-25. So we are seeing now expansion in the
8 bridges and the street going on Montgomery and other exits
9 and the bridges over the street, because this is somebody
10 fault, but this is the natural expansion and the growth of
11 the City, and this is why we are here, because we want to
12 solve. What the people call problem, we call input like
13 what I started with. I'm repeating myself. So as engineer,
14 I know with -- with the growth, with the development, with
15 expansion of the City, there's more traffic. There is more
16 water demand. There is more energy demand, and there's more
17 of everything, a little bit of everything.

18 So, and we are here to solve -- to solve these things.
19 Yes, there is some cars going to be there. The maximum, it
20 will be on Friday, but how much? I expect 63. Cap -- this
21 is by code, 63. When we design for any kind of church, we
22 say one parking lot for four player. However, that's not
23 the truth on Menaul. They -- they have more cars for each
24 prayer. So if I go by the existing, I don't expect more
25 than 150 or 140, and with their flexibility to split the

1 service onto two times, two separate times, then 100, 120.
2 That's the realistic number.

3 Are we gonna expand and reach their maximum capacity of
4 600 prayer? Yes. What the code required for those 600,
5 158. What do they provide, 235? Why do they have that
6 buffer? Just to keep everything inside.

7 I did quantification for current location on Menaul.
8 Nobody asked me to do that, not the City, not anybody, and
9 they control their entry and exist to smooth out and ease
10 their own traffic without any requirement from the City,
11 from Albuquerque City, from Bernalillo County, from anybody.
12 It's their requirement. They want their traffic to be easy.
13 They want their prayer to go in and out. It's limited time,
14 and Friday is not a day off like Sunday. So most of them
15 are employed. Most of them have their own job. So they
16 have to go in and out very fast. They don't want the
17 traffic. They don't want a jam. They don't want problem.
18 So they want to go in and out. And they don't have a full
19 day to do that like --

20 COMMISSIONER WITHERS: Thank you, Mr. Tahat. I
21 think -- I think I got the answer to my question. Just to
22 make sure, you're anticipating about 150 visitors on the
23 busiest day, and the plan for the max capacity might be up
24 to 600 visitors at a time, which can -- will vary the number
25 of cars based on how many visitors per car. Could be

1 anywhere from starting off with 60 cars moving up to 300
2 cars but, likely, is going to be under the 200 car ratio,
3 and you have accommodating -- you know, parking for that all
4 sorted out with a little bit of extra. Is -- is that pretty
5 correct?

6 MR. TAHAT: Correct.

7 CHAIRWOMAN CHAVEZ: Thank you. Okay. I guess
8 we're ready.

9 MS. GOULD: Okay. So, Madam Chair, Commissioners,
10 I don't -- I don't know if there's anything -- oh, sorry.
11 Oh, go ahead.

12 CHAIRWOMAN CHAVEZ: I'm sorry. One more.

13 MS. GOULD: No, please.

14 VICE CHAIR GUERRERO: My question was for staff,
15 if they have any additional conditions that they want to
16 propose or --

17 MS. GOULD: So I guess the --

18 COMMISSIONER CHAVEZ: Before you --

19 MS. GOULD: Yeah, before, or maybe are you there
20 yet, I guess is my question.

21 CHAIRWOMAN CHAVEZ: So you need to close, right?

22 MS. GOULD: So -- and so a lot of the things that
23 -- so, Madam Chair and Commissioners --

24 MR. HAMM: Ms. Gould. I'm sorry.

25 MS. GOULD: Go ahead.

1 MR. HAMM: Madam Chair, Commissioners, a
2 suggestion. In Mr. Tahat's presentation, I think what we
3 would still benefit from on clarity is the square footage,
4 because the staff would as -- to Commissioner Leon
5 Guerrero's question, if we do get to modifying conditions,
6 we do want to quantify the square footage of the facility.

7 CHAIRWOMAN CHAVEZ: Okay. So, Mr. Tahat, are you
8 there?

9 MR. TAHAT: Yes, I'm here. So the square footage
10 for the first floor going to be 43,000 square feet, and the
11 second floor going to be between 15- to 17,000 square feet.

12 COMMISSIONER SILVA: I have a question. Are you
13 closing the other church? Hello.

14 CHAIRWOMAN CHAVEZ: Mr. Tahat.

15 MR. TAHAT: Yes, I'm here.

16 COMMISSIONER SILVA: Are you going to be closing
17 the other synagogue they have running now?

18 COMMISSIONER NELSON: Mosque.

19 MR. TAHAT: Closing that?

20 COMMISSIONER SILVA: Mosque. I'm sorry. Church,
21 whatever.

22 MR. TAHAT: Maybe -- maybe we can ask that for the
23 owner of the project, which is -- I think there is the Imam
24 Talha and Omar Aziz with the audience if it's appropriate to
25 ask them that question.

1 CHAIRWOMAN CHAVEZ: Oh, please. He's the owner.

2 SPEAKER: You want me to go -- okay. So regarding
3 current Masjid, most likely we will not keep the Masjid
4 anymore. I don't know, like there's plan to sell it or
5 something like that. This is the reason why we're moving to
6 the new place, because we wanted like more space for our
7 community members, and I live by Alameda and Wyoming and by
8 La Cueva. So I kind of going to the west through this area,
9 and this is one of the things, the decisions that we made to
10 buy this area, because most of the time, especially during
11 12:00 -- the Friday prayers is empty, always empty.

12 We work pretty -- pretty good with trying to make sure
13 that our praying time -- because the nice thing about the
14 praying time, can be moved. So we try to move it as -- as
15 much as possible for our community member to be like easy to
16 go in and out and also for our neighbors, and that's why we
17 never having a problem with the Menaul, but in case -- in
18 case like what you want to do, most likely I don't think we
19 going to keep the old location.

20 CHAIRWOMAN CHAVEZ: Thank you.

21 COMMISSIONER SILVA: Thank you for the answer.

22 CHAIRWOMAN CHAVEZ: All right. Any other
23 questions? We're going to get to you. I promise. Thank
24 you.

25 VICE CHAIR GUERRERO: No, for Mr. Tahat, so --

1 CHAIRWOMAN CHAVEZ: Okay.

2 VICE CHAIR GUERRERO: Madam Chair, just -- so just
3 to clarify, it's 43,000 square feet, first floor, but the
4 15,000 is stacked on top. So it's not really an expansion
5 of the area. It is 43,000 square feet total, and then
6 you've got some office space that's stacked on top of that;
7 is that correct?

8 MR. TAHAT: Correct.

9 VICE CHAIR GUERRERO: Okay.

10 CHAIRWOMAN CHAVEZ: Okay.

11 MS. GOULD: Okay. Madam Chair, Commissioners, I
12 think most of what I was going to point out, I think, has --
13 we've talked about the building permit process. We talked
14 about separation distance. We talked about height. There
15 is -- finding no. 11 does say that this is within the rural
16 area of the Comprehensive Plan. There -- there was a
17 previous approval in 2024 for a similar facility.

18 Ms. Lopez: Can we show the findings?

19 MS. GOULD: We can. So we can -- and I'm sorry,
20 clarify on that. Do you want the findings for -- do you --
21 tell -- because I didn't think we were there yet.

22 MR. HAMM: Madam Chair, there are a few sets of
23 findings and conditions that we can show you, the findings
24 and conditions that are from the Zoning Administrator's
25 determination, findings for denial, findings for approval

1 that are modified. So it -- we may benefit from direction
2 from you-all about which set of findings you would like to
3 go over at this juncture.

4 CHAIRWOMAN CHAVEZ: Commissioner Guerrero?
5 Ms. Nelson.

6 COMMISSIONER NELSON: Yes. Oh, you want a -- you
7 want a motion?

8 CHAIRWOMAN CHAVEZ: No.

9 COMMISSIONER NELSON: Okay.

10 CHAIRWOMAN CHAVEZ: Okay. So we're tired.

11 VICE CHAIR GUERRERO: Question's which set of
12 findings we want to hear.

13 CHAIRWOMAN CHAVEZ: Right.

14 MS. GOULD: Or are you --

15 VICE CHAIR GUERRERO: Approval or for denial.

16 CHAIRWOMAN CHAVEZ: So you're ready. You're good
17 with the conditions that were submitted?

18 COMMISSIONER NELSON: Yeah.

19 CHAIRWOMAN CHAVEZ: So I vote we look at -- so
20 could we look at the -- for starters, the conditions of --
21 for -- modified conditions for approval. Let's start there.

22 MR. HAMM: Yes.

23 MS. LOPEZ: That would be without the school.

24 MR. HAMM: Ms. Gould will pull those up.

25 MS. LOPEZ: And to clarify, we prepared these to

1 not include the school based on hearing from the applicant
2 yesterday afternoon, no school, just the church.

3 MS. GOULD: So these would be -- Madam Chair,
4 Commissioners, these would be, if you choose to go in this
5 direction, these would be findings for approval, and let me
6 scroll -- okay. So again, the request for sort of what it
7 is. Because this came up a lot, how our zoning code defines
8 church, and then -- yes, and I just want to get -- I thought
9 I had turned review off, and I don't want it to be showing
10 mark up. There we go.

11 Okay. So I know. We love technology. So this is a
12 request for conditional use to allow a church and incidental
13 facilities. The applicant seeks approval to construct a
14 mosque, parking area, landscaping and fencing. The
15 Comprehensive Zoning ordinance of Bernalillo County defines
16 church as a building for public or private worship or a body
17 or organization of religious believers. This definition
18 applies to any religious institution.

19 The site for the proposed use is adequate in size and
20 shape to accommodate the property as the property is 3.9
21 acres in area, can accommodate the site features required by
22 ordinances, and no variance is required for the request.
23 The site provides ingress and egress for vehicle access, but
24 the development may require traffic improvements through
25 conditions of approval. Off-street parking and access

1 improvements by the applicant are expected to occur as well
2 as an approval from Bernalillo County Public Works through
3 the County's building permit process.

4 The area has a mix of uses, and the proposed use will
5 add to that mix. The properties to the south are developed
6 with an automotive service center, retail uses, and a plant
7 nursery. Second Street, Northwest, is developed with a
8 mixture of uses. The size of the proposed building is
9 proportional to the site but could require modifications to
10 more fully integrate with the area. This is addressed
11 through conditions of approval.

12 As enumerated in the -- and I am so sorry, but as
13 enumerated in the conditional use within the Zoning
14 Ordinance, this type of activity is expected to occur with
15 this zone but requires review to determine that the use is
16 compatible with the surrounding area.

17 The applicant intends to provide off site --
18 off-street parking, landscaping, buffer landscaping, and
19 fencing in compliance with the requirements of the
20 Comprehensive Zoning Code of Bernalillo County as shown on
21 the site plan. There will be a six-foot tall wall along the
22 north side adjacent to the residential use. There'll be
23 landscaping along Second Street and along the perimeter of
24 the site to add a buffer next to the residential areas.

25 Several members of the public spoke at the hearing to

1 testify on the request. In their justification, the
2 applicant stated that the use was compatible with
3 surrounding areas, stated a commitment to improving,
4 maintain the property, and that the use provides a buffer
5 between the residential development to the north and the
6 more commercial uses to the south. The applicant also
7 stated that the main -- the times of the main Friday service
8 could be moved to accommodate traffic patterns, and there
9 were comments from the public in support of the request.

10 Multiple public comments were received in opposition to
11 the request, stating that the use would generate a large
12 amount of traffic, and it would be a burden on an already
13 busy traffic system. Public comments were -- multiple
14 public comments were received in opposition to the request
15 stating that the building's not compatible with the
16 surrounding area.

17 Staff from Public Works stated that a traffic impact
18 study would be required at the building permit phase of the
19 project. Road improvements to offset any impacts from the
20 project could be required. The main church service occurs
21 on Friday afternoon out of peak traffic hour. Second Street
22 and Alameda Boulevard are New Mexico Department of
23 Transportation facilities. Conditions of approval are
24 necessary to ensure the orderly development of the site as
25 well as for the protection of public health, safety and

1 general welfare in conformity with intended purpose of the
2 Zoning Ordinance.

3 The site is within the rural area of the Comprehensive
4 Plan. Approval is limited to the requested church use and
5 does not waive any other requirement or imply any other
6 approval with applicable Bernalillo County ordinances or
7 regulations.

8 And so then we would be begin conditions, and again, as
9 the Board of Adjustment, you have broad authority to adjust.
10 So this is an approval of a church and incidental uses. The
11 school is not allowed on the subject site. The applicant
12 shall require all necessary construction and trade permits
13 for the proposed modifications to the subject site,
14 including but not limited to County commercial building
15 permit. Additions to the site beyond this building's square
16 footage shall require consideration of a new conditional use
17 permit application.

18 And so then here's where we go to the size of the
19 building shall be limited to a maximum of X gross square
20 feet and a footprint of X square feet in order to address
21 concerns about the amount of traffic generated by this use
22 and to improve compatibility with the surrounding area. And
23 then the conditions that were already in there, the
24 applicant shall coordinate with the Public Works department
25 to reduce the amount of asphalt and impervious surface on

1 the site such as only paving drive aisles and accessible
2 parking spaces and leaving depressed drainage areas for
3 landscaping and using gravel or other pervious materials for
4 parking spaces. No amplified sound or loud speakers are
5 allowed outside the proposed building. The building shall
6 meet all setbacks, separation height and area requirements
7 of the A-1 zone as indicated in Section 7 of the
8 Comprehensive Zoning Ordinance of Bernalillo County. Height
9 is limited to 26 feet without exception.

10 Parking shall be required as provided in Section 21 of
11 Comprehensive Zoning Ordinance of Bernalillo County.
12 Parking areas can utilize permeable surfaces as approved by
13 County Public Works and County Fire. Landscaping shall be
14 required -- shall be provided as required in Section 19 of
15 the Comprehensive Plan Zoning Ordinance of Bernalillo
16 County. Landscaping shall also meet the requirements of the
17 County's water conservation ordinance, and shall be
18 maintained and replaced as required by the Comprehensive
19 Zoning Ordinance of Bernalillo County.

20 A traffic study will be required -- will be required at
21 the building permit phase of the project. Road improvements
22 may be required to offset any impacts. Future development
23 must meet requirements for New Mexico Department of
24 Transportation facilities. A solid wall or fence at least
25 six feet in height shall be installed along the perimeter of

1 the property that butts current or single-family dwellings
2 -- sorry -- current or future. Lighting shall meet the
3 requirements of County's light pollution ordinance and the
4 State of New Mexico's night sky protection. Signage shall
5 be limited to requirements of the County's 0-1 zone.
6 Grading and drainage plan shall be submitted within the
7 required building permit and shall meet all requirements of
8 Bernalillo County Public Works. All uses on the sites shall
9 comply with County's Noise Ordinance.

10 And, again, that -- that last thing, sort of that last
11 list of items are things that would have been required
12 anyway. Those are all County and State requirements, but
13 they are listed here for clarity.

14 CHAIRWOMAN CHAVEZ: Thank you.

15 MS. GOULD: You're welcome.

16 CHAIRWOMAN CHAVEZ: Questions?

17 COMMISSIONER NELSON: Oh, we have to decide what
18 to put on no. 3, condition 3.

19 MR. HAMM: Madam Chair, Commissioners, in
20 conferring with our Public Works colleague, we also would
21 benefit from a modification to finding 12. It is a mixed
22 jurisdiction. There are mixed jurisdiction corridors. They
23 are not just NMDOT, finding, not condition.

24 CHAIRWOMAN CHAVEZ: Sorry. I'm --

25 MR. HAMM: Find 12. There we go.

1 MS. GOULD: So Second Street and Alameda Boulevard
2 are New Mexico Department of Transportation facilities as
3 well as City of Albuquerque. Yeah.

4 MS. LUNA: Sorry. It's so complex. So Second
5 Street is Bernalillo County. Alameda Boulevard is City of
6 Albuquerque and NMDOT.

7 MS. GOULD: Julie, can tell me that again, please.
8 And Alameda Boulevard is a --

9 MS. LUNA: New Mexico Department of Transportation
10 facility as well as City of Albuquerque.

11 CHAIRWOMAN CHAVEZ: Okay. Thank you. Okay. So
12 -- and then moving on to condition -- can you scroll up a
13 little bit, please.

14 COMMISSIONER NELSON: "As well as," throw in
15 another "as" there.

16 MS. GOULD: Madam Chair, Commission Nelson, Second
17 Street -- tell me where you wanted that correction.

18 COMMISSIONER NELSON: Well, I was -- I would just
19 add -- it's Department of Transportation as well as City of
20 Albuquerque.

21 MS. GOULD: Ah, I see. I'm missing an "as."
22 Thank you.

23 COMMISSIONER NELSON: No biggie.

24 CHAIRWOMAN CHAVEZ: Thank you.

25 MS. GOULD: Okay.

1 CHAIRWOMAN CHAVEZ: Thank you, Ms. Luna, for that
2 clarification. So condition no. 3, this is where we're at.
3 So Mr. Hamm.

4 MR. HAMM: Madam Chair, Commissioners, we have a
5 suggestion for three for the first quantified number to be
6 floor area, because that's a defined term in the County
7 Zoning Code to include square footage across all floors of a
8 building, and then the second, we would suggest footprint of
9 build- -- or building footprint, and that would be the size
10 of the rectangle, if you will, as the amount that -- the
11 area that it covers.

12 MS. GOULD: And, Mr. Hamm, just to clarify, a
13 maximum of however many gross square feet of floor area, and
14 a footprint of.

15 COMMISSIONER NELSON: Okay. I'm not sure I got
16 the right number of square feet from our applicant.

17 VICE CHAIR GUERRERO: I think, Madam Chair, we're
18 looking at 40 -- 58,000 gross square feet; is that right?
19 The 43 plus 15 and a building footprint of 43; is that --

20 CHAIRWOMAN CHAVEZ: Is that accurate?

21 COMMISSIONER NELSON: He said 15 to 17, didn't he?
22 So if it's going to be maximum, maybe we should -- we should
23 add 43 and 17.

24 VICE CHAIR GUERRERO: It's not going to change the
25 building footprint.

1 COMMISSIONER NELSON: Did he not say that?

2 MS. GOULD: So I -- if I can. So, Madam Chair and
3 Commissioners, I think what we were trying to get at is the
4 gross square footage is the total square footage within the
5 building. So it's -- it would be first and second floor
6 together.

7 COMMISSIONER NELSON: Right.

8 MS. GOULD: And then the footprint is, you know,
9 if we trace a line around the building. So if the bottom
10 floor is 4,300 (sic) square feet, that's going to be our
11 building permit, but the total square footage within that
12 building is going to be the -- the gross -- the -- adding
13 the first and the second together if --

14 COMMISSIONER NELSON: Right.

15 MS. GOULD: So at this point it is -- it is up to
16 the Commission to say, is this -- is this what you want? Do
17 you want anything modified?

18 COMMISSIONER WITHERS: Ask a question, Madam
19 Chair?

20 CHAIRWOMAN CHAVEZ: Sure.

21 COMMISSIONER WITHERS: There's other places in
22 Zoning Code where they have standards for the ratio to
23 building footprints to open space. Do we have applicable
24 standards in place to govern this decision?

25 MS. GOULD: Madam Chair, Commissioner Withers, we

1 don't have any specific floor area ratios or specific open
2 space ratios for -- for this project, but, again, it is
3 within the purview of the Commission to ask for alterations
4 or amendments.

5 COMMISSIONER NELSON: Okay. So, Michael, you got
6 43,000, right? Okay. So he said 15 to 17. So if we're
7 going to say maximum, I say we give him the 17, so that
8 would be 60.

9 MS. GOULD: Yeah. I think that would be exactly
10 -- that would -- so --

11 COMMISSIONER NELSON: And then if he builds his
12 15, that's okay, because it's not larger.

13 MS. GOULD: Right. This -- this would be maximum
14 allowed.

15 COMMISSIONER NELSON: Right.

16 MS. GOULD: Which means that if they -- if that
17 doesn't work out, if for whatever reason, they can always go
18 lower. They can't go bigger without coming back.

19 COMMISSIONER NELSON: Right. And then so the --
20 so that's the bottom floor of the rectangle, right?

21 MS. GOULD: So the -- the building footprint would
22 be the 43,000, and then -- and then the gross square footage
23 would be the 60,000.

24 COMMISSIONER NELSON: Oh, yeah. Right. Yeah.
25 The 43. Okay.

1 CHAIRWOMAN CHAVEZ: Math at the end of the day.

2 Commissioner nelson: Excuse me. I need my
3 computer. Okay.

4 CHAIRWOMAN CHAVEZ: All right. Ms. Gould, do you
5 have anything else to add?

6 MS. GOULD: Madam Chair, Commissioners, not at
7 this time. I -- I don't know if you want information from
8 anybody else or -- okay.

9 CHAIRWOMAN CHAVEZ: I think we're good.

10 COMMISSIONER WITHERS: Madam Chair, I have another
11 question. Do I understand that you also prepared conditions
12 of denial?

13 MS. GOULD: Madam Chair, Commission Withers, that
14 is correct.

15 COMMISSIONER WITHERS: I think it'd only be fair
16 that we review those.

17 COMMISSIONER NELSON: Well, it all depends. Let's
18 see how it turns out.

19 COMMISSIONER WITHERS: Forgive me if I'm new here.
20 I just wanted to make sure we're being fair to the community
21 members and state the reasons why we would say no.

22 CHAIRWOMAN CHAVEZ: So tell -- yes.

23 MS. GOULD: So, Madam Chair, Commissioners, these
24 read as follows. And, again, the Commission has the full
25 authority to edit or modify.

1 CHAIRWOMAN CHAVEZ: So I think that we -- I think
2 Commissioner Nelson is ready to make a motion based on these
3 conditions for approval. Commissioner Nelson, am I --

4 COMMISSIONER NELSON: Yes.

5 CHAIRWOMAN CHAVEZ: To deny the --

6 COMMISSIONER NELSON: Yes, I would -- I would make
7 the --

8 CHAIRWOMAN CHAVEZ: So hold on. Just for a matter
9 of process, right?

10 COMMISSIONER NELSON: Holding on.

11 CHAIRWOMAN CHAVEZ: So if we get that motion and
12 we get a second, then the Commission can vote, and if it's a
13 no, whatever direction it goes, then we would be able to
14 present the conditions for denial if that's the way it goes.
15 Is that an accurate statement?

16 MR. HAMM: Madam Chair, it's at your-all's
17 discretion. If in part of your deliberation you did want to
18 review findings for denial, you could do that. The staff
19 would not prevent any type of discussion around that. We
20 would actually help facilitate that if you all wanted to do
21 that.

22 CHAIRWOMAN CHAVEZ: Okay. So what do you -- so,
23 Commissioner Withers, would like to see them, I'm thinking.

24 COMMISSIONER WITHERS: Madam Chair, if the rest of
25 the Board is amenable, I think it would be in the

1 community's best interest.

2 CHAIRWOMAN CHAVEZ: And others? Okay. Let's see
3 them.

4 MS. GOULD: And, again, I apologize for the
5 fat-fingered nature of my keyboard skills here. All right.
6 So findings for denial would read, "This is a request for
7 conditional use to allow a church and incidental facilities.
8 The applicant is seeking approval to construct a mosque,
9 park areas, landscaping areas, and fencing. The property is
10 3.9 acres in size, and the project's for a religious
11 building which also contains" -- and we would need to alter
12 these, unless I haven't done that -- with a first floor
13 footprint of approximately 4,300 -- thousand square feet and
14 approximately 15,000 square feet of space on the second
15 floor.

16 The site provide ingress and egress for vehicular
17 access. The development of the site may cause undue traffic
18 congestion or hazards due to the number of vehicles that may
19 access the site. The area has a mix of uses, and the
20 proposed use will add traffic to the already burdened
21 intersection of Second Street and Alameda Boulevard.

22 The size of the proposed building is larger than some
23 of the surrounding buildings and conflicts -- may conflict
24 with the area character. As enumerated in the conditional
25 use within the Zoning Ordinance, this type of activity is

1 expected to occur from this zone but requires review to
2 determine that the use is compatible with the surrounding
3 area.

4 The size of the proposed use and traffic intensity make
5 it more intense than what would be expected in the A-1 zone.
6 Multiple public comments were received in opposition to the
7 request stating that the use would generate a large amount
8 traffic, and that it would burden an already busy system.
9 Multiple comments were received in opposition to the request
10 stating that the building was not compatible with the
11 surrounding area. The site is within the rural area of the
12 Comprehensive Plan.

13 COMMISSIONER NELSON: I think you need to modify
14 -- go up a little bit -- 5, the size of the proposed use and
15 traffic intensity stated -- makes it more intense. We have
16 no school anymore.

17 MS. GOULD: Oh, Okay. Madam Chair, Commissioner
18 Nelson, can you give me that direction again, please?

19 COMMISSIONER NELSON: Well, it's just that the
20 last sentence in no. 5, I believe, refers to when there was
21 the activity of the school.

22 MS. GOULD: Sure. Okay. So, again, all of the --
23 I mean, these can all be edited or amended as you -- as you
24 see fit.

25 CHAIRWOMAN CHAVEZ: So is -- is no. 5 in relation,

1 that sentence, to the --

2 MS. GOULD: I believe that when these were
3 originally crafted, we were still thinking about the school.

4 CHAIRWOMAN CHAVEZ: Okay. So I agree. It needs
5 to be modified.

6 MS. GOULD: So I can --

7 COMMISSIONER NELSON: You can just, yeah, take
8 that out and leave that with the re -- determine that the
9 use is compatible.

10 MS. GOULD: Okay.

11 MR. HAMM: And, Madam Chair, Commissioners,
12 remember these would be findings for denial if you all chose
13 to go that direction.

14 COMMISSIONER NELSON: Oh, yes. I know.

15 CHAIRWOMAN CHAVEZ: Okay.

16 MS. GOULD: Okay. And, Madam Chair,
17 Commissioners, if there's anything else I can do, please let
18 me know.

19 COMMISSIONER NELSON: Dance a jig. Perfect.
20 Perfect.

21 CHAIRWOMAN CHAVEZ: All right. Anything else,
22 Commissioner Withers?

23 COMMISSIONER WITHERS: Madam Chair, I have --
24 perhaps I should first just ask a question about what we're
25 going to do next. This is my first time, so I'm not sure

1 how this all rolls out. I have lots of thoughts. I have
2 questions I'd like to pose to staff, but I don't want to
3 burden anybody's time any further.

4 CHAIRWOMAN CHAVEZ: Yup. So at this point,
5 presentations have been completed, right? We've got all the
6 public comment. We have the closing statements. We will
7 close the floor. Ready for a motion.

8 COMMISSIONER NELSON: Okay. In the manner --
9 matter of BA2026-0001/ZA2026-0024 -- and I hope I got that
10 right. Okay. I move we deny the appeal and then go ahead
11 and approve the findings and conditions that are -- that we
12 discussed.

13 MS. GOULD: So that would be the modified findings
14 and conditions as -- as read into the record.

15 COMMISSIONER NELSON: Yes, the modified ones, yes,
16 as read into the record. Thank you for putting it that way.

17 CHAIRWOMAN CHAVEZ: So we have a motion. Do we
18 have a second?

19 VICE CHAIR GUERRERO: Second.

20 CHAIRWOMAN CHAVEZ: All in favor signify by saying
21 aye.

22 COMMISSION: Aye.

23 CHAIRWOMAN CHAVEZ: Opposed?

24 COMMISSIONER WITHERS: There are -- no room for
25 discussion on the matter before we take a vote.

1 COMMISSIONER NELSON: We've been discussing.

2 COMMISSIONER WITHERS: That's what -- that's why I
3 asked the question.

4 COMMISSIONER NELSON: Discussing for like --

5 CHAIRWOMAN CHAVEZ: Sure. What -- what -- you
6 have the floor.

7 COMMISSIONER WITHERS: I would like to make a
8 comment before we vote on this, because I am in favor of
9 allowing this mosque to develop, but I'm very frustrated
10 with the process, and I think that the people in the room
11 who are going to be impacted by this deserve a little bit
12 more of an explanation about why the concerns about the
13 impact of the traffic aren't being addressed in this
14 process, and I think part of that has to do with the way
15 that the rules are set up.

16 And if you look at A-1 zoning, four out of five of the
17 conditions very clearly, I think, are met. A-1 zoning does
18 permit the church as a conditional use. It's not out of the
19 scope of the character of the community. There's a church
20 right down the street. They have enough parking. There
21 isn't a way to address the traffic issues, and it's
22 basically, "Well, it's just what it is and good luck." That
23 really frustrates me, and I'd just like to put that on the
24 record before we vote, and sorry for taking up time.

25 CHAIRWOMAN CHAVEZ: No. That's good.

1 COMMISSIONER NELSON: Well, you know, that's a
2 good point. However, that's one of the reasons that we
3 sequestered Julie Luna and troops to discuss all of the
4 traffic problems, because she is -- they are -- I'm not
5 trying to, you know, cut you out, but -- but they are the
6 heads of the -- of the traffic department, and they know
7 everything that's going on and how it works.

8 CHAIRWOMAN CHAVEZ: Okay. So floor's closed. We
9 have a motion and a second. Any further discussion? Okay.
10 Again, all in favor say aye.

11 COMMISSION: Aye.

12 CHAIRWOMAN CHAVEZ: Opposed?

13 COMMISSIONER WITHERS: Nay.

14 CHAIRWOMAN CHAVEZ: Okay. So the motion passes.
15 Thank you.

16 Mr. Hamm, other matters?

17 COMMISSIONER NELSON: Tell me there's no more
18 matters.

19 COMMISSIONER SILVA: What's for dinner?

20 MR. HAMM: Madam Chair, Commissioners, we have no
21 additional business today. It is Ms. Joe's last hearing
22 with us. She's -- she's taken a position at another
23 municipality, and we --

24 CHAIRWOMAN CHAVEZ: Can we wait just a second and
25 let this crowd -- folks, we are still in hearing. We

1 haven't been officially adjourned. So please either exit or
2 sit and --

3 COMMISSIONER NELSON: Talk outside.

4 CHAIRWOMAN CHAVEZ: -- talk outside. Move the
5 conversations outside, please.

6 Thank you. Go ahead, Mr. Hamm.

7 MR. HAMM: Madam Chair, Commissioners, just want
8 to take a moment to thank Valerie Joe for her service to
9 both the Planning Department and the Planning Commission.
10 She's taken a position at another municipality, so this will
11 be her last time joining us as the representative for the
12 County Attorney's Office.

13 MS. JOE: Thank you-all.

14 CHAIRWOMAN CHAVEZ: Well, thank you. Thank you
15 for all --

16 MS. JOE: Thank you-all. It's been a pleasure.

17 CHAIRWOMAN CHAVEZ: Thank you for your guidance.
18 We --

19 COMMISSIONER SILVA: Don't go.

20 CHAIRWOMAN CHAVEZ: -- enjoyed working with you,
21 and yeah.

22 COMMISSIONER NELSON: And we will miss you.

23 CHAIRWOMAN CHAVEZ: Yes.

24 MS. JOE: I'll be north, so just come up there.

25 COMMISSIONER SILVA: Where are you going, if you

1 don't mind me asking.

2 MS. JOE: Santa Fe County.

3 COMMISSIONER SILVA: Oh, nice. I heard they're
4 looking for a new manager.

5 CHAIRWOMAN CHAVEZ: Okay. No other matters?

6 MR. HAMM: Madam Chair, that's all for today.

7 Thank you.

8 CHAIRWOMAN CHAVEZ: Thank you. Motion to adjourn.

9 COMMISSIONER WITHERS: Second.

10 CHAIRWOMAN CHAVEZ: We're good. All right.

11 (Note: Hearing concluded at 3:52 p.m.)
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1 STATE OF NEW MEXICO)
2 COUNTY OF BERNALILLO) ss

3 I, JULIAN SERNA, Certified Court Reporter in the State
4 of New Mexico, hereby certify that I reported, to the best
5 of my ability, the above Bernalillo County Planning
6 Commission hearing; that the pages numbered 3 through 254,
7 inclusive, are a true and correct transcript of my
8 stenographic notes, and were reduced to typewritten
9 transcript through Computer-Aided Transcription; and that on
10 the date I reported these proceedings, I was a New Mexico
11 Certified Court Reporter.

12 Dated at Albuquerque, New Mexico, this 21st day of
13 July, 2026.

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17 _____
18 JULIAN SERNA
19 New Mexico CCR No. 206
20 Expires: December 31, 2026
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